

Plutarch's *Romane Questions*. Translated
A.D. 1603 by Philemon Holland, M.A., Fellow of
Trinity College, Cambridge. Now again edited
by Frank Byron Jevons, M.A., Classical
Tutor to the University of Durham
With Dissertations on Italian
Cults, Myths, Taboos, Man-
Worship, Argan Marriage
Sympathetic Magic
and the Eating
of Beans



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Author: Plutarch

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ROMANE QUESTIONS ***

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PREFACE.

On the whole, with the proper qualifications, Plutarch's *Romane Questions* may fairly be said to be the earliest formal treatise written on the subject of folk-lore. The problems which Plutarch proposes for solution are mainly such as the modern science of folk-lore undertakes to solve; and though Plutarch was not the first to propound them, he was the first to make a collection and selection of them and give them a place of their own in literature. On the other hand, though Plutarch's questions are in the spirit of modern scientific inquiry, his answers—or rather the answers which he sets forth, for they are not always or usually his own—are conceived in a different strain. They are all built on the assumption that the customs which they are intended to explain were consciously and deliberately instituted by men who possessed at least as much culture and wisdom as Plutarch himself, or the other philosophers who busied themselves with this branch of antiquities. This assumption, however, that the primitive Italians or the

pro-ethnic Aryans shared the same (erroneous) scientific and philosophical views as the savants of Plutarch's day, is an unverified and improbable hypothesis. The Aryans were in the Stone Age, and had advanced only to such rudimentary agriculture as is possible for a nomad people. If, therefore, we are to explain their customs, we must keep within the narrow circle which bounds the thought and imagination of other peoples in the same stage of development. Plutarch, however, in effect asks himself, "If I had instituted these customs, what would my motives have been?" and in reply to his own question he shows what very learned reasons might have moved him; and also, quite unconsciously, what very amiable feelings would in reality have governed him; for, if he ascribes to the authors of these customs the learning of all the many books which he had read, he also credits them with a kindliness of character which belonged to himself alone. Thus, to go no further than the first of the *Romane Questions*, viz., *What is the reason that new-wedded wives are bidden to touch fire and water?* Plutarch first gives four high philosophical reasons, which he may have borrowed, but concludes with one which we may be sure is his own: "Or last of all [is it] because man and wife ought not to forsake and abandon one another, but to take part of all fortunes; though they had no other good in the world common between them, but fire and water only?"

That this, like the rest of Plutarch's reasons, is fanciful, may not be denied, but would not be worth mentioning, were it not that here we have, implicit, the reason why no modern translation could ever vie with Philemon Holland's version of the *Romane Questions*. It is not merely because Philemon's antiquated English harmonises with Plutarch's antiquated speculation, and by that harmony disposes the reader's mind favourably towards it; but in Philemon's day, England, like the other countries of Western Europe, was discovering that all that is worth knowing is in Greek. The universal respect felt for Greek in those days, even by schoolmasters (Holland was himself Head-master of Coventry Free School), is still apparent to those who read this translation. But things are now so changed that the English language of to-day cannot provide a seemly garb for Plutarch's ancient reasonings. To say in modern English that "five is the odd number most connected with marriage," is to expose the Pythagorean doctrine of numbers to modern ridicule. But when Philemon says, "Now among al odde numbers it seemeth that Cinque is most nuptial," even the

irreverent modern cannot fail to feel that Cinque was an eminently respectable character, whose views were strictly honourable and a bright example to other odd numbers. Again, Philemon's insertion of the words "it seemeth" makes for reverence. The insertion is not apologetic; nor does it intimate that the translator hesitates to subscribe to so strange a statement. Rather, it summons the reader to give closer attention to the words which are about to follow—words of wisdom such as is to be found nowhere else but only in the fountain of all knowledge, Greek. Insertions and amplifications are indeed characteristic of Philemon as a translator. But, though his style is florid, it is lucid; his amplifications make the meaning clearer to the English reader, and, as a rule, only state explicitly what is really implied in the original. Sometimes (*e.g.*, towards the end of *R. Q. 6*) he does enlarge on the text beyond all measure; sometimes, again, defective scholarship leads him to ascribe things to Plutarch which Plutarch never said (*e.g.*, in *R. Q. 5*, ταῦτα τρόπον τινὰ τοῖς Ἑλληνικοῖς ἔοικεν does not mean "this may seeme in some sort to have beene derived from the Greeks"); and sometimes he is mistaken as to the meaning of a word (*e.g.*, ἔνοχος in *R. Q. 5*). On the other hand, where the text is corrupt, he sees and says what the meaning really is; and Hearne's verdict that Holland had "an admirable knack in translating books" does not go beyond the mark. Indeed, it does not do justice to Philemon, for it hardly prepares us to learn that, in the infancy of the study of Greek in England, Philemon threw off, among other trifles, translations of all the *Moralia* of Plutarch, the whole of Livy, the enormous *Natural History* of Pliny, Suetonius, Ammianus Marcellinus, the *Cyropædia* of Xenophon, and Camden's *Britannia*. Southey is more just to the assiduous labours of a life of study carried to the age of eighty-five, when he calls Philemon "the best of the Hollands." But the most discerning criticism of Holland, as "translator generall in his age" (Fuller), is contained in Owen's epigram on Holland's translation of the *Natural History*, that he was both *plenior* and *planior* than Plinius.

To judge from the *Romane Questions*, Philemon must have used as his text the edition of 1560-70, Venet., for he evidently avails himself of Xylander's emendations of the Aldine *editio princeps*, 1509-19. One cannot, however, be quite certain on this point, for the title-page of Holland's translation of the *Moralia* runs: "The Philosophie, commonly called the Morals, written by the learned philosopher Plutarch of Chaeronea, translated out of Greek

into English, and conferred with Latin and French." Now the Latin translation must have been Xylander's; and the only edition of the text used by Holland may have been that of H. Stephens, with which Xylander's Latin translation and notes were published. The French with which Philemon conferred was of course that of Jacques Amyot, who had already translated Plutarch's *Lives* in 1559, and followed up that translation with one of the *Moralia* in 1574. Philemon's translation of the *Morals* appeared in 1603 ("revised and corrected" in 1657).

The *Morals* in general and the *Romane Questions* in particular have received little attention from commentators. The only notes I have succeeded in getting hold of, besides those of Xylander and Reiske (complete edition of Plutarch, Lips., 1774-82), are some by Boxborn (in the fifth volume of the *Thesaurus* of Grævius, 1696), which includes one sensible remark (quoted p. xxxii. below), and those by Wyttenbach (Oxford, 1821), which, if I had looked at them before instead of after writing my Introduction, would have provided me with a good many classical references that, as it is, I have had to put together myself.

INTRODUCTION.

I. THE SUBJECT OF THE "ROMANE QUESTIONS" AND OF THIS INTRODUCTION.

The "fashions and costumes of Rome," which prompted Plutarch's questions, are directly or indirectly associated with the worship of the gods, while the solutions which he suggests contain occasionally myths. It is not, however, all Roman gods, cults, and myths that are discussed by Plutarch: he limits himself, on the whole, to those which are purely Roman, or rather purely Italian. This limitation is not accidental, and it is significant. It does not indeed appear that Plutarch designed to confine himself thus: the fact seems rather to be that, long before his time, the Romans had borrowed the myths, the ritual, and the gods of Greece, and that Plutarch, as a Greek, found nothing strange or unintelligible in the resemblances which the

Roman ritual of his day bore to the religion of his native land. It was the points of difference which caught his attention.

And here we must note a further limitation of the subject of the *Romane Questions* and of this Introduction. Surprise and inquiry are excited not by the familiar, but by the unusual; so Plutarch's attention was arrested not by customs which, though purely Italian, were universal in Italy, *e.g.*, the practice of covering the head during worship, but by fashions for which he could find no analogy or parallel in the stage of religion with which alone he was acquainted. In such isolated customs, out of harmony with their surroundings, modern science sees "survivals" from an earlier stage of culture; and it is as survivals that they will be treated in this Introduction. Now, the stage of religion with which Plutarch was familiar, and in which he could find no analogies for those "fashions and costumes," was polytheism; and if those practices are survivals, they must be survivals from a stage of religion earlier than polytheism.

Here, however, a difficulty meets us. If the teaching of the Solar Mythologists be true, the Aryans, having a mythology, were already polytheists: much more, therefore, must the Italians have been polytheists from the beginning. I am sorry to say that I cannot meet this difficulty: I can only frankly warn the reader that it exists. But in an Introduction which professes to confine itself to myths and cults which are purely Italian, it is impossible to discuss Solar Mythology, for the simple reason that there is no such thing in existence as an Italian solar myth, or indeed Nature-myth of any kind. The only story which is seriously claimed as a Nature-myth is that of Hercules and Cacus. Cacus, a monster or giant, stole some cows from Hercules, and hid them in his cave. Hercules discovered them, according to some accounts, by the aid of Caca, the sister of Cacus, according to other accounts, by the lowing which the cows in the cave set up when Hercules went by with the rest of his oxen. Hercules forced his way into the cave, and, in spite of the fire and flames which Cacus spat at him, killed the monster with his club. Then Hercules, in commemoration of the discovery of his cattle, erected an altar to Jupiter the Discoverer (*Jupiter Inventor*). Now a similar story, it would appear, is to be found in the Vedas. Vritra, a three-headed snake, steals cows from Indra, who discovers them in a cave by their lowing, and kills Vritra with a club. And the Vaidic story

must be a Nature-myth, because the Vedas expressly explain that the cows are clouds, the lowing is thunder, the club is the lightning, and Indra, on this occasion, the blue sky. But why is the interpretation given by the Vaidic philosophers to be accepted without examination, when we reject the teaching of the Stoics, who interpreted Rhea as matter, and Zeus, Posidon, and Hades as fire, water, and air respectively, in accordance with the Stoic philosophy of the universe? I submit it as a possibility, worth consideration at least, that we have here an ordinary folk-tale: the trick of using the bulls to make the cows reveal their hiding-place is like the trick in the folk-tale about the groom of Darius who caused his master's horse to neigh and so secured the Persian empire to Darius. The story may have been told of some clever fellow (not necessarily or probably of a god) in pro-ethnic Aryan times, or it may have been hit on by Hindoo and Italian story-tellers independently. Once invented, however, it was used by each of these two peoples in a characteristic manner. The learned Roman, whose object was to explain the origin of the customs, cults, institutions, &c., of Rome, seized on it as the obvious explanation of two facts which required explanation, viz., first, how the altar to Jupiter Inventor came into existence; and second, why the offering made in gratitude for the recovery of lost property, was an ox. The learned Hindoo, on the other hand, had the satisfaction of showing that even the stories with which (alone or chiefly) the common people were acquainted bore unsuspected witness to the truth of the religion he taught. But to return to our interpretation of the "fashions and costumes" of Rome as survivals of a stage of religion earlier than polytheism.

A second difficulty remains. Distinguished writers on the philosophy of religion hold that polytheism is not developed out of fetichism or animism, but is primitive and underived from any earlier stage. The survivals, then, which Plutarch records, could not point to the existence of an earlier stage. Here, again, it is not for me to handle such high themes as the philosophy of religion. I am bound down to the humbler task of noting the simple fact that, until borrowed from Hellas, polytheism was unknown in Italy.

This is a very bare statement—so naked as almost to amount to a literary impropriety. I must, therefore, take three sections to clothe it.

II. ITALIAN GODS.

That some of the great gods of Rome were but Greek gods borrowed is universally admitted (see *e.g.* Mommsen's *History of Rome*, i. 186 *ff.*, or Ihne, i. 119). Even so strong a supporter of the theory of a Græco-Italian period as Roscher admits unreservedly that the mythology, worship, and the very name of Apollo were borrowed in early but still historic times (*Lexikon*, i. 446). When, then, we find Plutarch putting the question why the temples of Æsculapius and Vulcan were built outside Rome (*Romane Questions*, 94 and 47), we at once surmise that these were imported gods, whose worship was indeed sanctioned and ordained by the Roman State but was not admitted within the sacred circle of the *pomærium*, reserved for the temples of indigenous Roman gods. In the case of Æsculapius we have historical proof that his was an imported worship; in consequence of a pestilence in Rome in B.C. 293 the god was fetched from Epidaurus, and the temple in question was erected two years afterwards.^[1] We do not happen to have any similar historical record of the introduction of Vulcan's worship, but the name of the god, be it Cretan or Etruscan, is foreign.^[2]

Having eliminated these and other loan-gods, we find that the genuine Italian deities which remain fall into two classes. The one class consists of such abstractions as Forculus, the spirit of doors; Cardea, that of hinges; Limentinus, that of the threshold, &c., which can scarcely be dignified by the name of gods, but are rather spirits, and amply warrant Chantepie de la Saussaye's remark that Roman religion was still steeped in animism.^[3] The other class includes such gods as Janus, Jupiter, Mars, Diana, Venus, Hercules, &c. It is necessary to note, however, that the worship even of these gods can be proved to have been considerably Hellenised in historic times:^[4] some of their ritual and all their mythology was borrowed from Greece, as we shall subsequently see. And when the loan-myths and loan-cults have been removed, the genuine Italian gods stand forth essentially and fundamentally different from those of Greece.^[5] Here, too, we may note that if comparative mythologists adhere to their principle of not identifying the gods of different nations, unless their names can be shown by comparative philology to be identical, they must admit that Mars and Ares, Venus and Aphrodite, Diana and Artemis, Juno and Hera, and all the

other pairs of deities which the ancients identified, are, with the sole exception of Jupiter and Zeus and of Vesta and Hestia, not of cognate but of diverse origin. In fine, the differences between Greek and Italian gods are fundamental and original: the resemblances can be shown to be due to borrowing in historic times.

There is, however, one of the great Roman gods who was never identified with any Hellenic deity, Janus. Now, although Janus ranks with Jupiter and Mars in the Roman system as an indubitable god, yet in origin and function he is not to be distinguished from those inferior, animistic powers to whom the title of spirit is the highest that can be assigned. Janus is the spirit that resides in or presides over door-openings (*ianus*, *ianua*), just as Forculus has to do with doors (*fores*), Limentinus with the threshold (*limen*), and Cardea with the hinges (*cardo*). He is also the "spirit of opening,"^[6] who was to be invoked at the commencement of every act. Plutarch's questions why he should be represented with two heads, and why the year should begin with the month named after him, January (*R. Q.*, 22 and 19), are thus at once explained: "The double-head looking both ways was connected with the gate that opened both ways;" and in January, "after the rest of the middle of winter, the cycle of the labours of the field began afresh."^[7]

That the door or the threshold is the seat of a tutelary spirit or genius is a belief familiar enough in folk-lore: the door must not be banged,^[8] nor wood chopped on the threshold,^[9] for fear of disturbing him. He is apt to disappear, taking the luck of the house with him, if a cat is maliciously buried under the door-sill,^[10] or if human hair is so buried.^[11] The importance of the door as a possible entrance for evil spirits, or exit for lucky ones, is manifest in many customs, *e.g.*, nailing a horse-shoe on the door or sticking a knife into the door, and in such beliefs as that when a door opens (apparently) of itself, a spirit is entering.

Whether the Italian spirit of the doorway, who in origin is indistinguishable from the similar though nameless spirits to be found elsewhere, was capable by his own unaided efforts of raising himself to the rank of a god, is matter for speculation. What is clear is that he had not the chance: the introduction of Greek polytheism into Italy promoted him without exertion on his part.

As, thus far, I have assumed a distinction between "gods" and "spirits," and have also assumed that a belief in the latter may exist without polytheism and precede it, it will be well here to state explicitly the distinction. And that I may not be suspected of drawing the distinction so as to suit my own ends, I shall here borrow from a standard work, Chantepie de la Saussaye's *Religionsgeschichte* (i. 90). De la Saussaye notes five characteristics involved in the conception of "gods." First, they are related to one another as members of a family or community, and as subject to one god, who is either lord of all, or at any rate *primus inter pares*. Second, with the growth of art, they are represented plastically and are made in the image of man. Third, as ethics advance, moral benefits are associated with their worship. Hence, in the fourth place, the gods are conceived as personal, individual beings, ideally good and beautiful. Finally, the human intellect demands that the relations of the gods to one another and to Nature should be co-ordinated into a system, and so theogonies and cosmogonies are invented.

Now, if these be the marks whereby gods are distinguished from spirits, I submit that, before the introduction of Greek gods and cults, the Romans had not advanced as far as polytheism, but were still in the purely animistic stage. Here again, to avoid the temptation of interpreting the evidence unduly in favour of the conclusion to which it seems to me to point, I will confine myself to quotations. Ihne (*Hist. of Rome*, i. 118) says that to the Romans, before the period of Hellenic influence, "the gods were only mysterious spiritual beings, without human forms, without human feelings and impulses, without human virtues or weaknesses.... Though the divine beings were conceived as male or female, they did not join in marriage or beget children.... No genuine Roman legend tells of any race of nobles sprung from gods." Again, "The original Roman worship had no images of the gods or houses set apart for them" (Mommsen, i. 183). "A simple spear, even a rough stone, sufficed as a symbol" (Ihne, 119). Roman religion had nothing to do with morality: "it was designed for use in practical life" (*Ibid.* 120). "The religion of Rome had nothing of its own peculiar growth even remotely parallel to the religion of Apollo investing earthly morality with its halo of glory" (Mommsen, 172). Mommsen's observation that "the hero-worship of the Greeks was wholly foreign to the Romans" (174) is explained by the fact that a hero is a being of human origin raised by good deeds to the rank of a god, and the Romans had no gods. Myths about the

love-adventures of the gods and theogonies were unknown to early Rome. [12] An Italian cosmogony has not yet been discovered, and even the widespread belief in the union of Father Sky and Mother Earth had not been evolved in Italy.

In fine "the beings which the Romans worshipped were rather *numina* than personal gods." [13] Even the spirits whom we can trace back under definite names to the purely Italian period, such as Jupiter, Juno, Vesta, Mars, are not individual, personal beings. Each of these names is the name of a class of spirits. "Each community of course had its own Mars, and deemed him to be the strongest and holiest of all" (Mommsen, i. 175). Each household had its own Vesta. There were many Jupiters, many Junos. In England, in the same way, the name of Puck, who is a definite individual personality in one stage of our fairy mythology, was originally a class-name of the spirits whom, as Burton says in his *Anatomy*, "we commonly call poukes."

I will conclude this section with quotations from two distinguished authorities on Mythology, who would both dissent from the views which have been advanced above, but whose words seem to me to bear unintentional testimony in favour of those views. E. H. Meyer, in his *Indogermanische Mythen* (ii. 612), says, "Roman religion seldom displays more than the *elementary rudiments*, or rather let us say the last remnants of mythology," and "whereas the cult of the greater gods is known to us in a form greatly affected by Hellenism, ... the local gods usually scarcely rise above the rank of spirits (*sich meistens kaum über daemonischen Rang erheben*)." Preller, in his *Römische Mythologie* (i. 48), says, "The Romans' belief in gods would be termed more rightly *pandæmonism* than *polytheism*.... One is involuntarily reminded of those Pelasgians of Dodona who, according to Herodotus, assigned neither names nor epithets to their gods.... Indeed, most of the names of the oldest Roman gods have such a shifting, indefinite meaning, that they can scarcely be regarded as proper names, as the names of persons."

III. ITALIAN CULTS.

The Italians borrowed cults as well as gods from Greece, but "these external additions gathered round the kernel of the Roman religion without affecting or transforming its inmost core" (Ihne, i. 119). The distinguishing characteristic of the religion of Rome is that "it was designed for use in practical life" (*Ibid.* 120), "The god of the Italian was above all things an instrument for helping him to the attainment of very solid earthly objects" (Mommsen, i. 181). In fact, the Italian god was a fetich, *i.e.*, a magical implement; and in this sense of the word it is true that "the Romans saw everywhere and in all things the agency and the direction of the gods" (Ihne, i. 118). Every act of life was entangled in a complicated network of ritual.^[14] Every part of the house, the door, doorway, threshold, hinges, every process of farming, sowing, manuring, &c., every act of life from birth to burial, had its own particular spirit; and the object of the Roman with reference to each particular spirit was "to manage, and even in case of need to over-reach or to constrain him" (Mommsen, i. 177). Preller in his *Römische Mythologie* characterises the religion of Rome as, above all things, "a cultus-religion." We may add that in Rome, as in China, Assyria, and Babylonia, the cult was nothing but organised magic,^[15] the superstitious customs, charms, and incantations familiar to the folk-lore in all countries were organised by the practical Roman and were state-established by him. In fine, the Romans "in their gods worshipped the abstract natural forces, to whose power man is conscious that he is subject every instant, but which he can win over and render subservient to his purposes by scrupulously obeying the external injunctions which the State issues for the worship of the gods."^[16]

A fundamental difference between the Greek and Roman religions manifests itself in the matter of magic. Magic was foreign to the Greeks, and was disliked by them: when it appears in their mythology, it is practised by foreigners—*e.g.*, Medea, Circe, Hecate—and is "barbarous." In fact, magic belongs to the animistic stage, and is opposed to the higher tendencies of polytheism. The forces of Nature, conceived as *numina* rather than as moral ideals, may well be influenced by magic to the advantage of the savage; but to control a deity by means other than prayer and good life is antitheistic.

Finally, it is not accidental or unmeaning that, on the one hand, the Greeks had oracles while the Italians had none; and on the other hand, that in China and Babylon (which resemble Rome in other pertinent points) divination played as large and as official a part as at Rome. An oracle is the voice of a god; whereas divination is simply sympathetic magic inverted.^[17]

IV. ITALIAN MYTHS.

In sect. 1 it has been said that the Italians had no Nature-myths. The reason why they had none should now be clear: the Italians had no Nature-gods. The sky-spirit, Jupiter, was undoubtedly distinguished from the vault of heaven by the primitive Italians, but he was not generically different from the spirits of vegetation, of sowing, of manuring, &c., and he seems to have been even of inferior dignity to the spirit of doorways.^[18] The earth, on the other hand, does not seem to have been conceived of as a spirit even, much less as a goddess; but, if worshipped at all, was worshipped as a fetich.^[19] Hence, the absence from Italy of any trace of the myth of the origin of all living creatures from a union between the earth and the sky.

Indeed, if by a myth we mean a tale told about gods or heroes, there are no Italian myths.^[20] Myths attached to Greek loan-gods were borrowed with the gods from Greece. Myths in which Italian gods figure were borrowed or invented when the Italian gods were identified with Greek gods. Thus the Golden Age myth, for instance, can be referred to the time (A.U.C. 257) when Saturnus was identified with Kronos.^[21] And of course, all the myths in which Æneas appears, and the whole mythical connection between Rome and Greece or Troy, are late.^[22] Evander,^[23] again, who figures in various passages of the *Romane Questions*, owes his existence wholly and solely to the attempt to connect Rome with Greece.

If, on the other hand, under the head of myth we include "the popular explanation of observed facts," then early Roman history, as Ihne says (i. 17), "is really nothing more than a string of tales, in which an attempt is made to explain old names, religious ceremonies and monuments, political institutions and antiquities, and to account for their origin." Some examples

of this may be drawn from the *Romane Questions*. Marriage by capture has left traces behind it in the wedding customs of many countries, and the meaning of these survivals is usually wholly forgotten. But the historic consciousness of the Romans was so far alive to the actual facts of the case that the mock capture was explained as the commemoration of an actual historical rape—the Rape of the Sabines. Thus were explained the lifting of the bride over the threshold (*Q. R.* 19), the use of a javelin point to divide the bride's hair (*Ibid.* 87), the hymeneal cry *Talassio* (*Ibid.* 31), and the fact that maids might not (though widows might) marry on festival days (*Ibid.* 105). The first of these customs is probably a survival from marriage by capture, and the last is indirectly connected with it. In Rome,^[24] as in many other places,^[25] the lamentations of the bride who was actually captured survived in the formal, extravagant lamentations of the bride who, in quieter times, was more peacefully won; and these cries would have been of bad omen on a day dedicated to the worship of the gods. Lamentation seems not to have been required of widows. The use of an iron javelin point is probably due to the dangers which, in the opinion of primitive man, attend on those about to marry, and require to be averted by the use of iron,^[26] from the head^[27] especially. The origin of the cry *Talassio* is beyond recovery.^[28]

But though the chief branch of Italian folk-tales consisted of popular explanations of observed facts, we can detect traces of those other folk-tales which from the beginning must have been designed simply and solely to gratify man's inherent desire for tales of adventure and the marvellous. Here it must suffice to point to two of the *Romane Questions*. In the fourth question we have a tale told of successful trickery on the part of Servius Tullius, which may well have formed part of some story of a Master Thief; and in *Romane Questions* 36, the nightly visits of Fortuna through the window to her lover, Servius Tullius, at once remind us of the "soul-maidens" and "swan-maidens," who visit, and eventually desert, their human lover through the window or the keyhole^[29]—the orthodox means of entrance and exit for spirits from the time of Homer at least.

IV. THE SOUL.

The customs and beliefs, the superstitious practices and supernatural beings, of modern European folk-lore are sometimes explained as the wrecks and remnants of the Pagan polytheism which preceded Christianity. And if the Aryan peoples were from the very beginning polytheists; if the Hellenes and the Hindoos, the Teutons and the Scandinavians, brought their myths and their cults with them from the original Aryan home, then this explanation seems more reasonable than that which proceeds on a mere conjecture, a pure assumption that the Aryan religion was animistic ere it was polytheistic; for then we are obliged to relegate Aryan animism almost to the æon "of chaos and eternal night,"—at any rate, to an abysm of time which is such that neither linguistic palæontology nor any other science has dared

"to venture down
The dark descent and up to
reascend."

But if the proposition submitted in the previous sections be sound, if in early but still historic times Italian religion was still in a stage anterior to polytheism, then Aryan animism is no longer a mere assumption, and need no longer be thrust back into pro-ethnic times. Early Italian customs and beliefs will not be the *débris* of a previous polytheism, and it will therefore be unreasonable to explain their counterparts in modern folk-lore as mutilated myths or as the cult of gods degraded but worshipped still.

Plutarch, in the fifth of his *Romane Questions* (p. 8 below), propounds an interesting problem: *Why are they who have beene falsly reported dead in a strange countrey, although they retorne home alive, not received nor suffred to enter directly at the doores, but forced to climbe up to the tiles of the house, and so to get down from the roufe into the house?* This remarkable custom continued to be practised long after its origin and object had been forgotten; for Plutarch relates a tale which is obviously a popular explanation, invented to account for a practice the *rationale* of which had become unintelligible.^[30] Hard, however, as Plutarch's question appears at first sight, it may by the aid of modern folk-lore and savage custom be explained. We have to note, in the first place, that the mode of entry

prescribed for the returned traveller is not spontaneously adopted by him; and presumably, therefore, is not prescribed in his interest: it is enforced by his relatives, and probably for their own protection. In the next place, though the traveller himself knows, of course, that he has not returned from that bourne from which no traveller returns, his relatives have no such assurance: it may be, indeed, that he did not die whilst away, as they were informed or led to believe; but, on the other hand, he may be "the ghost of their dear friend dead," seeking to obtain an entrance into his old home. The reasonable course for them to pursue, therefore, is to treat him as though he were a ghost: if he is no ghost, it will do him no harm; if he is, they will have protected themselves.

Thus far our explanation is hypothetical: to verify the hypothesis it is necessary to show that the dead are or were as a matter of fact treated as the Roman custom prescribes that the *soi disant* living man shall be treated. That the spirits of the dead are considered unwelcome visitors both in modern folk-lore and by savage man, has been insisted on most recently by Mr. G. L. Gomme.^[31] I will, therefore, only add one or two instances of the precautions taken to prevent the return of the deceased to his home.^[32] The first thing is to get the soul out of the house; this may be effected by sweeping out the house and by flapping dusters about, care being taken to shake and turn upside down all vessels, meal-boxes, &c., in which the soul might take refuge. Then the coffin must be carried foot foremost through the door; for if the corpse's face be turned to the house, the ghost can return. In Siam they run the corpse three times round the house, apparently on the same principle as, in the game of blind-man's buff, the blind-man is spun round in order to make him lose his bearings. In Bohemia they turn the coffin about cross-wise, outside the house-door, to prevent the dead man from coming back.

More pertinent for our present purpose are the precautions taken to prevent the dead from obtaining access to the house through the door. The safest course is to carry the corpse out, not through the door, for that gives the dead man the right of way which it is sought to bar, but through some opening which is specially made for the purpose and can be permanently closed. Thus the Hottentots make a breach through the wall for the purpose.

The ancient Norsemen did the same.^[33] The Teutons, in pre-Christian times, dug a hole under the threshold and pulled the corpse through with a rope. In Christian times they only treated the bodies of criminals and suicides in this way, though in the thirteenth century Brother Berthhold of Regensburg recommended it in the case of heretics and usurers.

When circumstances make it difficult or impossible to construct a special exit of this kind for the corpse, then some other means is found to avoid carrying the corpse through the door. The Eskimo take the body through a window; and a window was in 1858 used in Sonneberg in the case of a hanged man; while even now in East Prussia, if several children have died one after another, the corpse of the next to die is conveyed through the window.

Eventually it comes to be considered sufficient if a special means of egress is provided, not for the corpse, which is not likely to "walk," but for the spirit, which may want to return. Thus in China, at the moment of death, a small hole is made through the roof; while the custom of opening the window, to allow the soul of the dying man to depart, is universal in Germany and not unknown in England.

Finally, all that is considered necessary to bar the right of way to the dead man's spirit is to close the house-door immediately after the departure of the corpse, and keep it closed until the return of the funeral party.

If the explanation which has now been given of Plutarch's fifth question be correct, we must ascribe to the early Italians beliefs and customs similar to or identical with those quoted above from modern folk-lore; and it will not be illegitimate to seek further parallels to Italian religion from the same source. Thus, in *Romane Questions*, 51, Plutarch inquires why the Lares Præstites are represented as clad in dog-skins and as having a dog by their side.^[34] Now, it is universally admitted that the Lar Familiaris of the Romans is the same as the house-spirit of the Teutons, and that both are the spirits of a deceased ancestor, the founder of the family and its spirit guardian. In the absence of any presumption to the contrary, we may conclude that the Lares Præstites were also spirits of deceased ancestors.

The dog which accompanies the Lares was explained by the ancients as a symbolic representation of the fidelity and watch-dog functions of the Lares.^[35] So, too, the priests of ancient Egypt said that the animal forms in which their gods were represented were merely symbolical.^[36] But it may safely be laid down as a law in the evolution of religion that beast-worship is primitive, and that the theory of symbolism is but a *via media* whereby more elevated conceptions of deity are reconciled with the older and more savage worship. Analogy, then, is all in favour of the supposition that the Lares Præstites were originally conceived not in human shape, but in the form of dogs. What we require to confirm the analogy is evidence that the dead—if possible, evidence that guardian spirits—sometimes appear in the shape of a dog. As a matter of fact, the belief that a dead man's spirit may manifest itself in the likeness of a black dog still survives in Germany.^[37] As for the guardian spirit, I would suggest that the Mauthe dog of Peel Castle is a house-spirit; for as the hearth was the peculiar seat of the Lar Familiaris and of the Hûsing or Herdgota, and as the English house-spirit

"Stretch'd out all the
chimney's length
Basks at the fire;"

so the Mauthe dog, "as soon as candles were lighted, came and lay down before the fire."^[38] From this point of view we may consider that the black dog, which in modern folk-lore comes and lies down or howls before a house, in token that one of the inmates is about to die, was originally a spirit summoning the inmate to join the dead. This belief, it may further be conjectured, has been incorporated into Hindoo mythology, where a dog acts as the messenger of the death-god, Yama; and probably the Greek dog, Cerberus, was taken up into the literary mythology of Hellas from the same folk-belief.

Finally, we may here notice the fifty-second of Plutarch's Questions, wherein he wonders why a dog was sacrificed to Genita Mana, and a prayer made to her that none born in the house should become Manes. Genita Mana was, as her name plainly indicates, a spirit of birth and of death; and the prayer was such as might properly be offered to her. The sacrifice may

be explained on the principle laid down by Professor Robertson Smith,^[39] that an animal sacrificed to a deity was itself originally the deity. That one and the same spirit should have to do with "the child from the womb and the ghost from the tomb," points to the existence of a belief among the Romans similar to one held by the Algonkins. "Algonkin women who wished to become mothers flocked to the side of a dying person, in the hope of receiving and being impregnated by the passing soul."^[40]

Let us now turn to another point in which early Italian beliefs and modern folk-lore mutually illustrate each other. On the origin of fairies various theories have been held, and without denying that fairies are sometimes the representatives of earlier gods, sometimes of still earlier satyrs, fauns, nymphs, and wild men of the wood, we may recognise that they are sometimes spirits of the departed. In the first place, as the Italians called the dead "the good," *manes*, so in England and in Ireland fairies are "the good people."^[41] Next, fairies are small; and the savage conceives the soul of man as a smaller man. It is, according to Hurons, "a complete little model of the man himself," like the man, but smaller, of course, because, as the Australian blacks explain, it is within the man's breast.^[42] According to Kaffir ideas, the world of *manes* is exactly like that of the living, only much smaller, and the dead are themselves but mannikins.^[43] Again, the Teutonic house-spirit on the one hand is admittedly a deceased ancestor, and on the other is an indubitable fairy. Further, fairies are sometimes explicitly stated in folk-tales to be deceased spirits.^[44]

Now, one of most marked differences between the Greek and the Roman modes of worship was that the Greeks worshipped with their heads uncovered, the Romans with heads covered, *velato capite*. Roman antiquaries explained the practice as due to fear lest the worshipper should see anything of evil omen during his prayer. But I submit that we must connect it with the folk-belief that fairies resent being seen by mortals. "They are fairies; he that speaks to them shall die." If fairies were originally departed souls, the fear and the danger of seeing them is at once explained. On the other hand, the Roman custom of worshipping *velato capite* dates from a time before the introduction of polytheism, and must therefore have been attached originally to the worship of some beings other than gods. It is

at least plausible, therefore, to conjecture that it was a precaution adopted in the worship of deceased ancestors and of spirits, which, like Genita Mana, are best explained as spirits of the departed. The conjecture is somewhat confirmed by the fact that the Romans veiled their heads at the funeral of father or mother (R. Q. 14).

V. GENII.

No form of religion is easily or at once rooted out, even by a new religion. A *modus vivendi* has to be found between the old faith and the new. The animal, which was once itself worshipped, is tolerated merely as the symbol of some divine attribute. The nixies continue to ply their old calling under the new name of Old Nick. The sacrifices to the dead, condemned by the Indiculus Superstitionum, are subsequently licensed by the Church as the Feast of All Souls.^[45] Hence it comes about that what means one thing to the apostle of the new religion is long understood as something very different by the reluctant convert. The devil of folk-lore has attributes quite different from those assigned to him in any scheme of Christian theology.

If, therefore, polytheism was, as I have suggested, an importation into Italy, forced by the State on a people not yet prepared for anything higher than animism and ancestor-worship, we should expect to find the borrowed worship of a Greek loan-god sometimes concealing a native Italian cult of very dissimilar nature. Instances of the kind are forthcoming, and this section will be devoted to some of them.

The spirits which after the death of the body were termed *manes* by the Romans, were during its life called *genii* (or in the case of women *Junones*). The belief in *genii* was not borrowed from Greece. How primitive it is may be seen from two facts. First, it is itself the essence of animism, for not only had every man a genius, but every place and every thing had, in the belief of the Romans, a soul, to which the same name, genius, was given.^[46] Next, the genius was, I submit, the "external soul," which, as Mr. Frazer has shown, appears in the folk-tales of every Aryan nation, and in the religions of many savage peoples. The genius of a man did not reside inside the man.

Amongst the Romans, as amongst the Zulus, it resided in a serpent. As, according to the Banks Islanders, "the life of the man is bound up with the life of his tamanin,"^[47] so with the Romans, the man's health depended on his genius.^[48] When the serpent which was the genius of the father of the Gracchi was killed, Tiberius died;^[49] and, as all Romans were liable to the same mischance, these snakes were carefully protected from all harm, were reared in the house and the bed-chamber, and consequently grew so numerous, that Pliny says, had their numbers not been kept down by occasional conflagrations, they would have crowded out the human inhabitants of Rome.^[50]

This belief in the genius, however etherealised and spiritualised the form in which it appears in Horace or was held by highly-educated Romans, continued even in Imperial times amongst all other classes as primitive as it was tenacious. Its hold over the ordinary Italian mind was much greater than the Hellenised gods ever secured; for, in order to make them even comprehensible, the average Italian had to suppose that these fashionable, State-ordained gods were really worked by genii—just as it is self-evident to the savage that, if a locomotive engine moves, it is because it has horses inside. This, I suggest, is the explanation, in accord with the principle laid down at the beginning of this section, which must be given of the remarkable fact that, beginning from B.C. 58,^[51] and in ever-increasing numbers afterwards, inscriptions are found which ascribe a genius to Apollo, Asclepius, Mars, Juno, Jupiter, &c.

In this case Italian animism has held its own, not unsuccessfully, against imported polytheism. Our second instance, however, will show it less successful. When polytheism was spreading from Hellas over Italy, there would be no difficulty in adding the myths and cult of the Greek god Zeus bodily on to the worship of the Italian sky-spirit Jupiter. Nor would the process be much harder even when the Greek god and the Italian spirit were of totally different origin (as *e.g.* Hermes and Mercury, Kronos and Saturn), provided that some point of resemblance, in attribute or function, could be discovered between them. It was only one, and the least important of Hermes' functions, to protect traders, but it was quite enough to lead to the identification of the Greek god with the Italian spirit of gain (*Mercurius*,

from *merces*). The case of Heracles, however, presented more difficulty; he was a hero, and the very conception of a hero was new to the Italians. Being new, it was, not unnaturally, misunderstood. The nearest parallel which Italian religion offered to a being who was in a way a man and yet was also a sort of god was the genius, who also was in a way the man himself, and yet was worshipped like a god. Heracles, therefore, was identified with the genius, his name was Latinised into the form *Hercules* (cf. *Æsculapius*, from *Asclepios*), and the cults of the two were amalgamated. This amalgamation is the source and the explanation of some of Plutarch's *Roman Questions*. Plutarch was puzzled by the fact that on the one hand some elements in the cult of Hercules had counterparts in the worship of the Greek god, while on the other hand there were elements which received no explanation from a comparison of the cult of the Greek Heracles. Thus Plutarch is surprised to find an altar common to Hercules and to the Muses (*R. Q.* 59); but this is simply a loan from the ritual of the Greek Heracles, Musagêtês. On the other hand, as Plutarch informs us (*R. Q.* 60), there was an altar of Hercules from which women were excluded. This is a non-Greek element in the cult of Hercules, with which we may safely compare the fact, that whereas a man might swear "by his Hercules," a woman might not. Here the imported god has taken the place of the native genius both in the oath and at the altar; for the reason why the oath "me hercule" was restricted to men is that, until Hercules and the genius were identified, a man swore by his genius and a woman by her Juno. Again, in the time before Italy was invaded by the gods of Greece, in the time when temples were as yet unknown, the genius was worshipped and invoked, like other spirits, in the open air; and even after the Italians had learned from the Greeks that the gods were shaped in the likeness of men, and, like men, must have houses, an oath was felt to be more sacred and more binding if taken in the open air in the old fashion, than if sworn in the new way under a roof.^[52] Eventually, however, the old custom died out, and in Plutarch's day it was only children who were told that they must go out of doors if they wanted to swear "by Hercules" (*R. Q.* 28). Plutarch's attention was also arrested by the custom of giving tithes to Hercules (*R. Q.* 18). The practice is undoubtedly purely and characteristically Italian; but there is no evidence to show whether it was ever the custom to offer tithes to the genius. Another point, however, which is noted by Plutarch (*R. Q.* 90) in the cult of Hercules, may be more satisfactorily explained. When sacrifice was being

offered to Hercules, no dog was suffered *to be seene, within the purprise and precinct of the place where the sacrifice is celebrated*. Now, if Hercules represents the genius, and if the dog was the shape in which a departed spirit appears, then the danger lest the genius should be tempted away by the Manes is great enough to account for the prohibition.

This identification of Heracles with the genius shows in a striking way how far the Italians were from having reached the belief in personal individual gods at the time when Greek religion found its way into Italy, and how artificially Greek polytheism was superimposed on native beliefs. There were as many *genii virorum* as there were living men, and yet they were identified with Heracles.^[53] To the Italian convert, doubtless, it seemed nothing strange that every man should have his Hercules; while his Greek teacher probably never fully realised the catechumen's point of view.

The case is parallel to that of Hestia and Vesta. Both before and after the appearance in Italy of the anthropomorphised Hestia, every Roman household revered its own "hearth-spirit;" yet this class of spirits came to be identified with the personal individual goddess from Greece. Doubtless, also, in course of time Romans who shook off animism and became true polytheists explained the relation between their "hearth-spirits" and the State-goddess by regarding the former as so many manifestations of the latter. But it is, I submit, a mistake on the part of modern mythologists to accept this piece of late theology as primitive—unless, indeed, we are also prepared to say that the Lares were regarded as so many manifestations of one Lar, or all the many Manes as manifestations of one dead man. The *genii virorum*, at any rate, were not, in the first instance, so many manifestations of Hercules: on the contrary, they existed (in Italy), to begin with, and Heracles afforded them a collective name and a Greek cult.

In the same way, I submit, the original Italian Juno was no Nature-deity, no moon-goddess—the name was that of a class of spirits, like the correlative term *genii virorum*. There were many Junones, as there were many fauns in Italy, many satyrs and nymphs in Greece, many Pucks and fairies in England. When the Italians learnt that Hera was the goddess under whose protection the Greek women were, they naturally thought of the Juno who

was the guardian-spirit of each Italian woman, and applied to Juno the cult and myths that belonged to Hera. Hence the answer to Plutarch's question, why were the months sacred to Juno? (*R. Q.* 77). Because they were sacred to Hera.

But there were other spirits whom Italian women invoked besides their Junones, such as Juga, who yoked man and wife, Matrona, Pronuba, Domiduca, Unxia, Cinxia, Fluonia, Lucina, and other departmental spirits or *indigetes*, whose names appear in the *Indigitamenta*. These spirits, when once Juno had become a personal individual deity, came to be explained as special manifestations of the goddess, who was consequently called Juno Juga, Juno Matrona, &c.^[54]

VI. DI INDIGETES.

Before Greek gods and myths were known to them, the Italians worshipped not only Lares, Manes, Genii, and Junones, but also the spirits known as Di Indigetes. These spirits were not conceived in human or in animal form. They had not human parts or passions. They did not form a community. They had no common abode. There is nothing in Italian religion corresponding to the Olympus of Greek mythology. They did not marry or give in marriage. Above all, what distinguishes them both from Greek gods and from the tree-spirits, which also were worshipped by the Italians, is that they were rather *numina* or forces than beings. They were the forces which regulated and controlled all human actions, psychological and physiological, and through which all the work of man's hands could alone be brought to a favourable issue. When, however, we come to examine these *numina*, we find that the name of the *Indiges* is simply the name of the action which he controls: the *Indiges* of sowing is Saturnus; of remembering, Minerva; of suckling, Rumina, and so on. It is a canon of savage logic that he who possesses the name of a person or thing has that person or thing in his power; hence the Roman's belief that he could control any process, psychical or physical, if only he could put a name to it. This primitive form of magic was organised by the Roman State. The pontiffs were intrusted with the duty of drawing up catalogues (*indigitamenta*) of all the stages and processes of a man's life, from his begetting and birth to his

death and burial; and as the State was but a community of farmers, similar catalogues were made of all the agricultural operations by which crops are raised. To be effectual, it was necessary that these lists should be complete. As the Roman could avert or remedy any evil by simply naming the proper spirit, it was essential that his roll of spirits should have no omissions. Then, if he were in doubt what spirit to name, he could make assurance doubly sure by naming all.

Let it not be imagined that this State-organised magic, though it appear to us inconsistent with civilisation, is mere matter of inference, or belongs purely to pre-historic times. Not only did it survive the introduction of polytheism, it was a firm article of Roman faith in the most glorious days of the Republic, and until B.C. 211 or later, the belief was so living as to give birth continually to fresh spirits, as fresh departments of human activity were opened up.^[55] Nor did it cease then. It changed, but it did not die. In the worship of such abstractions as Fortuna, Spes, Juventas, Concordia, Pietas, Libertas, Felicitas, Annona, &c., we have evidence that abstract names exercised as great a hold over the minds of Romans of the Empire as they had over the earliest Italians.

On some *indigetes* Greek cults and myths were grafted, and these *numina*, which were in truth but *nomina*, henceforth lived as gods. Mercurius was declared to be Hermes. Minerva, the spirit of memory, was seen to be Athênê, the goddess of wisdom. Saturnus was identified with Kronos, and was henceforth worshipped in the Greek fashion with uncovered head (*R. Q.* 13). Opis was identified with Dêmêtêr, Venus with Aphroditê, and Libitina, the *numen* of funerals, was interpreted, by a pedantic etymological confusion with Libentina, as a bye-name of the new goddess (*R. Q.* 23). The *indiges* Liber^[56] was recognised in Dionysius Eleutherios (*R. Q.* 104).

In all these cases the identification proceeded on a fancied resemblance in name or an actual similarity of function. There seems to be only one instance of identification based on similarity of cult, that of the Roman Matuta and the Greek Leucothea. According to Plutarch (*R. Q.* 16) maid-servants were excluded from the temples of both, except when *the Dames of Rome, bringing in thither one alone and no more with them, fall to cuffing*

and boxing her about the eares and cheeks. Here the servant is the scapegoat, to whom are transferred the evils which may or might afflict the free women of the community, and the beating is done for purification. It is just conceivable that the Greek cult may have been borrowed by the Romans; but the use of a scapegoat and of beating in this way is so widespread over all the world, and so deeply seated in European folk-lore, that it is difficult to imagine it was unknown to the Romans. As a matter of fact, even in the *Roman Questions*, without going further, we have indications that both practices were known in Italy. In *R. Q.* 20 a myth is given, the earlier form of which is to be found in Macrobius (*S. i.* 12), who states that the Bona Dea was on a day scourged with myrtles. On the principle that customs often give rise to myths but cannot be originated by them, we may infer that the representative, or else the worshippers of the Bona Dea, were purified by scourging. Still less can it be doubted after Mannhardt's exhaustive investigation (*Myth. Forsch.*, pp. 72 ff.), that the Luperci, described in *R. Q.* 68, drove out the evil spirits of disease, sterility, &c., by the blows from their scourges. Again, the expulsion of evil tends in many places to become periodic; a day or season is devoted annually to the driving out of all devils and evil spirits, after which the community is expected to live sober and clean. The community, not unnaturally, indulges in a kind of carnival immediately before this season, and allows itself all sorts of license: slaves behave as though they were masters, men dress up in women's clothes, &c. This, presumably, is the explanation of the fact related by Plutarch (*R. Q.* 55), that *upon the Ides of Januarie, the minstrels at Rome who plaid upon the hautboies, were permitted to goe up and downe the city disguised in women's apparell.*^[57]

Though the influence of Hellenic religion failed to transform the many other *indigetes* into gods, still it affected their cult in other ways. For one thing, it provided them now for the first time with temples or chapels. This innovation was doubtless found strange by the folk to whom the fashionable ideas from Hellas penetrated slow and late. In the case of Carmenta it must have seemed particularly strange. Carmenta was one of the several *indigetes* whose power was manifested in the various processes of gestation;^[58] and she was invoked as Porrima (Prorsa or Antevorta) or Postverta, according as the child came into the world head or foot foremost. From the mention of a *saxum Carmentæ*,^[59] near which was the *porta Carmentalis*, and near

which the temple in question was erected, we may venture to infer that this rock was originally the local habitation of the spirit. Why then needed she to have a temple built? This was a point which, to the popular mind, required explanation; and a popular explanation was accordingly forthcoming, which has fortunately been preserved to us by Plutarch. It starts from a folk-etymology or confusion between the name Carmenta and the word *carpenta*, meaning "coaches," and may be read at length in *R. Q.* 56.

There remains one other *indiges* who is mentioned in the *Romane Questions*—Rumina (*R. Q.* 57) the *numen* of suckling. As the temple of Carmenta was erected near the *saxum Carmentæ*, so the *sacellum* of Rumina was built near the *figus Ruminalis*; and as we may conjecture that the rock was in the nature of a fetich, so we may infer that Rumina was a tree-spirit. It is easy to understand why a fig-tree was chosen as the abode of the spirit of suckling; the sap of this tree resembles milk and was known to the Romans as *lac*. The fact reported by Plutarch,^[60] that milk, not wine, was offered in the cult of Rumina, is quite in accord with the principles of sympathetic magic.

The worship of this spirit bears every mark of hoar antiquity, and it was worked into the legend of the foundation of Rome by the device of making the wolf suckle the twins under the *figus Ruminalis*.

VII. TREE AND FIELD CULTS.

Whenever two peoples come into contact with each other for the first time, a comparison of religions is set up; and one of the first-fruits of this earliest exercise of the comparative study of religions is that identification of gods and borrowing of cults and myths to which the term "syncretism" is applied. The part played by syncretism in the history of Italian religion is of singular importance: the Italian's misty, vaporous belief in abstract, impersonal spirits was precipitated into premature polytheism by the introduction of the anthropomorphic gods of Greece. Fortunately, the process being premature, was, and to the end remained, incomplete; and we are therefore able to employ the survivals from the older form of belief so as to form some idea

of the original Italian religion. To the last, many spirits resisted the individualising process, which is the essence and condition of polytheism: the Lares and the Manes not only never became gods, but none of them was dignified by a proper name, or attained even so much individuality as Puck or Robin Goodfellow. Not can such general abstract appellations as Bona Dea, Dea Dia, be regarded as personal names, *i.e.*, as the names of definite, individual, personal beings: they have not the personality of Venus or Vulcan, and yet they were the beings whom the people at large worshipped in preference to the State-gods, whose cult and myths were fashionably Hellenised.

She who, under the influence of Greek religion, became the goddess Diana, was originally a tree-spirit, having no personal name, but known only by an appellation as general and abstract as that of Bona Dea. The proof that the qualities and attributes of the Greek goddess Artemis were attached by syncretism to the Italian tree-spirit is brought to light by two of Plutarch's penetrating questions (*R. Q.* 3 and 4), why harts' horns are set up in all the temples of Diana save that on Mount Aventine, in which are ox-horns? and why men are excluded from one particular temple of the same goddess? These differences in cult obviously point to the worship of different goddesses under the same name; and, as a matter of fact, we know first that harts were sacred to the Greek goddess, Artemis, whereas the genuine Italian Diana was the goddess of oxen; next, we know that the identification of Artemis and Diana was effected by Servius Tullius.^[61] To understand the exclusion of men from the temple in the Patrician Street, however, we must inquire into the nature of the Italian Diana. With this object, we may either assume that the pro-ethnic Aryans were polytheists, and that therefore the primitive Italians also worshipped Nature-gods; in which case, starting from the etymology of the word Diana (from the root *div*, "shine"), we must either at once make Diana a moon-goddess,^[62] and thus account for the fact that she was a goddess of child-birth, and therefore men were excluded from her temple. But this seems improbable even to a writer in Roscher's *Lexikon* (Birt), who very properly notes (p. 1007) that "it is doubtful whether the belief that the moon influenced child-birth can be shown to be Italian." Birt, therefore, interprets the name to mean "the bright goddess," *i.e.*, the goddess of bright daylight, and boldly writes it down as a matter of course that the first attribute of a daylight or sky goddess is her close

relation to vegetable nature, especially woods and forests. Those who find this mortal leap beyond their power to follow, and who prefer to argue to the original nature of the goddess from what we know of her cult as a matter of fact, rather than from hypotheses as to the Nature-myths of the primitive Aryans, will note first that her name is as purely general and abstract as that of the Dea Dia or the Bona Dea, and means simply a bright spirit, or possibly simply a spirit. Next, wherever Diana was worshipped in Italy, she was originally worshipped in woods and groves, *e.g.*, in the forests on Mount Tifata, Mount Algidus at Anagnia, Corne, and Aricia. Indeed, in Aricia the place of her worship was simply called *Nemus*, and the goddess herself plain *Nemorensis*. In the next place, her worship is frequently associated with that of Silvanus,^[63] who is plainly a wood-spirit, and who is also a patron-spirit of domestic cattle.^[64] From this we may venture to class her with the "agrestes feminæ quas silvaticas vocant" of Burchard of Worms:^[65] she is a wood-spirit who became a goddess because of her likeness to the Greek Artemis. Her connection with child-birth does not indicate that she was a moon-goddess. Roman women in primitive times, like Swedish women, "twined their arms about a tree to ensure easy delivery in the pangs of child-birth; and we remember how, in our English ballads, women, in like time of need, 'set their backs against an oak.'"^[66] Finally, the annual washing and cleansing of the head, which Plutarch mentions in *R. Q.* 100, was done on a day sacred to Diana, probably because, on the one hand, women felt that they were under her protection specially, while, on the other, so great is the sanctity of the head amongst primitive peoples,^[67] that washing it is not to be undertaken lightly: "the guardian spirit of the head does not like to have the hair washed too often, it might injure or incommode him."^[68]

The *Romane Questions* afford another instance in which syncretism has obscured the original nature of an Italian field-spirit, and in which the cult of the Hellenised deity still betrays the primitive object of worship. In the pages of Virgil, Mars has so completely assumed the guise of the Greek Ares, that if we had only the verses and the mythology of the court-poet to instruct us, we could never even suspect that Mars had other functions than those of a war-god. When, however, we turn from myth to cult, and are confronted by the ceremony of the October horse, described in *R. Q.* 97, we

find, that though Mars was sung as "Lenker der Schlachten," he was worshipped as the spirit that makes the corn to grow. At Rome the corn-spirit was represented as a horse, as it still is amongst the peasants of Europe, not only near Stuttgart, but in our own country, in Hertfordshire and in Shropshire. The fructifying power of the spirit is supposed in modern folk-lore and in Africa, as it was at Rome, to reside specially in the animal's tail, which therefore was preserved over the hearth of the king's house, in order to secure a good harvest next year. The antiquity of this custom at Rome, and the fact that it dates from long before the Romans knew anything of the Greek Ares, are shown by the fight for the horse's head waged between the inhabitants of the two wards, the Via Sacra and the Subura, a fight which shows that the ceremonial goes back to a time when the Subura and Rome were separate and independent villages.

In connection with the killing of the corn-spirit, we may note a passage of the *Romane Questions* (63) which has not yet taken its place in modern works on the subject. Speaking of the *rex sacrorum*, Plutarch says, "Neere unto *Comitium*, they use to have a solemn sacrifice for the good estate of the citie; which, so soone as ever this king hath performed, he taketh his legs and runnes out of the place as fast as ever he can." Necessary as it was, according to primitive notions, that the vegetation-spirit should be, as it were, decanted into a new vessel, when the animal in which he was for the time residing was threatened with infirmity and decay, still the killing of the sacred animal was a dangerous and semi-sacrilegious act. Hence in Greece, the man who killed the ox in the sacrifice known as the *bouphonia* ran away as soon as he had felled the animal, and was subsequently tried for murder, but was acquitted on the ground that the axe was the real murderer; and so the axe was found guilty and cast into the sea. The Roman *regifugium* is obviously a fragment of a similar rite. The folk-explanation treated it as a symbol commemorative of the expulsion of the Tarquinii.

VIII. MAN-WORSHIP.

The rules of life prescribed for the priest of Jupiter, the Flamen Dialis, are given in part by Plutarch (Q. R. 40, 44, 50, 109, 110, 111, 112, and 113),^[69] and are a signal instance of the necessity of explaining Roman cults, not by

reference to the artificial mythology of the Vedas or to the civilised myths of Greece, but to the customs of peoples who are still steeped in animism. That a spirit may take up its abode as a Dryad in a tree or in an animal, as in the beasts worshipped by the ancient Egyptians, or may temporarily take possession of a human being, as Apollo possessed the Pythian priestess, is easily comprehended. But that a spirit should permanently dwell in a man, and that the man should exercise all the powers and receive all the worship that belong to the spirit, would be almost incredible were it not for the numerous instances of such worship collected by the erudition of Mr. Frazer.^[70] In Japan the sun-goddess dwelt in the Mikado; in Lower Guinea and among the Zapotecs of South Mexico the sun-spirit takes human form. In Cambodia the spirit of fire and the spirit of water manifest themselves in the (human) kings of fire and water. Rain-kings are found on the Congo, the Upper Nile, and among Abyssinian tribes. The weather-spirit is worshipped in the kings of Loango, Mombaza, Quiteva, the Banjars, and the Muyscas. In the South Sea Islands, generally, "every god can take possession of a man and speak through him."^[71]

In the next place, these divine kings or priests are all charged with a force which enables them to control the course of Nature. Lest, therefore, this force should be inadvertently and unintentionally discharged, with results disastrous to the recipient of the shock or to the universe at large, the divine priest or king must be insulated. And this insulation is effected by taboos: every action is taboo to him which might bring him into dangerous contact with others.^[72]

When, therefore, we learn that the Flamen Dialis was subject to a very large number of taboos, all of which find analogies, while some find their exact counterparts, in the taboos laid on the divine priests and kings previously mentioned; and when we further discover that Preller,^[73] on totally different grounds, considered the Flamen to have been "the living counterpart" of Jupiter, it seems not unreasonable to regard the Flamen Dialis as the human embodiment of the sky-spirit.

The Flamen, according to Plutarch (*R. Q.* 40), was forbidden to anoint his body in the open air, *i.e. sub Jove*; and of the Mikado we are told, "Much

less will they suffer that he should expose his sacred person to the open air."^[74] The Flamen was forbidden to touch meal or raw meat, *i.e.*, meal or meat which might be consumed by others; so, too, the vessels used by the Mikado were "generally broke, for fear they should come into the hands of laymen; for they believe religiously that if any layman should presume to eat his food out of these sacred dishes, it would swell and inflame his mouth and throat."^[75]

For the many other taboos imposed on the Flamen, I must refer to Mr. Frazer's great work.^[76] I will here only mention one, which is not explicitly explained in the *Golden Bough*. If the Flamen's wife died, he had to resign (Q. R. 50). Now, it is obvious from this that a widowed Flamen was somehow dangerous or in danger, and that the danger was one which re-marriage would not avert. I submit, therefore, that a widowed Flamen was considered in danger of sudden death, and that this danger (a danger to the community, which might thus lose the sky-spirit) consisted in the probability that the soul of the departed wife might tempt away the soul of the living Flamen. In Burmah, proper precautions are taken to prevent a baby's soul from following that of its dead mother, or the soul of a bereaved husband or wife from rejoining the lost one, or to prevent the soul of a dead child "from luring away the soul of its playmate to the spirit-land."^[77] But accidents will happen, and it is so important for an agricultural community to have the sky-spirit under direct control, that the Romans were doubtless well advised in running no risks, and in transferring the spirit into another Flamen.

IX. TABOOS.

In fairy tales it is not surprising that the hero should be forbidden to see his wife on certain days, or whilst she is washing, or at night, and that he should be required to take precautions lest he should take her unawares in one of the forbidden moments.^[78] But it is surprising to find that the prosaic Roman punctiliously observed fairy etiquette in these matters, and habitually behaved like an inhabitant of fairy-land. See R. Q. 9 and 65. It is also surprising to discover that in Italy, where, owing to "the vigorous

development of the marital authority, regardless of the natural rights of persons as such," the wife's "moral subjection became transformed into legal slavery,"^[79] the wife was "exempted from the tasks of corn-grinding and cooking," because, according to Mommsen, those tasks were menial.^[80] The exemption is mentioned by Plutarch in *R. Q.* 85; but we must take leave to question Mommsen's explanation. The exemption is not an exemption, but a prohibition: it is identical with the taboo laid on the Flamen Dialis (*R. Q.* 109), and has the same object. Doubtless if a Roman ate food touched by a woman, "it would swell and inflame his mouth or throat," or have some disastrous effect. For that even indirect contact with women at certain periods, *e.g.* child-birth, &c., is highly dangerous, is a belief found amongst the Australian blacks and the Eskimo, the Indians of North America, and the Kafirs of South Africa. An Australian blackfellow, having been brought accidentally into this dangerous contact, died of terror within a fortnight.^[81] It is not strange, therefore, that the Romans, returning home after absence, *if their wives were at home, used to send a messenger unto them before, for to give warning and advertisement of their coming.* And we can understand that the primitive public for whom the fairy tales in question were composed found the incident of the violated taboo as thrilling and as full of "actuality" as a modern reader finds the latest sensational novel.

The belief that a mother and her new-born babe are peculiarly at the mercy of malevolent spirits is world-wide. In the fairy tales of Christian Europe the period of danger is terminated by baptism, until which time various precautions, such as burning a light in the chamber, must be observed.^[82] In ancient Italy the danger ended when the child received its name, which, as Plutarch (*R. Q.* 103) informs us, was on the ninth day after birth in the case of boys, on the eighth in the case of girls. Until that day a candle was to be kept lighted, and the spirit Candelifera was to be invoked. On that day the child was purified (which indicates an original taboo), and received the *bullā*, mentioned by Plutarch (*R. Q.* 102), to preserve him henceforth from evil spirits and the evil eye. Whether the *bullā* derived its virtue from the substances which were enclosed in it, as in a box, or from its moon shape, is uncertain. If the latter be the true explanation, we may compare the fact recorded by Plutarch (*R. Q.* 76), *that those who are descended of the most*

noble and auncient houses of Rome carried little moones upon their shoes. The daughters of Sion also wore as amulets "round tires like the moon" (Isaiah, iii. 18). The moon-spirit sends disease or takes possession of the person who is "lunatick" or "moon-struck." But the spirit may be deluded, and will enter any moon-shaped object which the person attacked is wearing. The Chaldæans diverted the spirit of disease from the sick man by providing an image in the likeness of the spirit to attract the plague.^[83]

X.—SYMPATHETIC MAGIC.

The traveller who has little or no acquaintance with the language of the land in which he is, resorts naturally to the language of gesture, and mimics the thing which he wishes to have done. Primitive man communicates his wishes to Nature in exactly the same way: if he wishes to have game caught in the trap which he sets, he first pretends to fall into it himself. He has not learnt to "interrogate" Nature in her own language by means of experiment and crucial instances, but he has a presentiment of the method of Concomitant Variations and of the Substitution of Similars. If a thing is itself beyond his reach, he substitutes its counterpart, its image or its name, or something related to it or connected with it, in confidence that any changes he may work in the one will be accompanied by concomitant variations in the other. Hence the reluctance shown by many savages to allow their likenesses to be taken or their names to be known, as with the name or the likeness the man himself would pass into the power of the stranger.^[84] So the Romans, as Plutarch informs us (*R. Q.* 61), kept the name of their tutelar god secret, for the same reason, as Plutarch acutely observes, as other nations kept the images of their gods chained;^[85] and for the same reason, we may add, as the Romans forbade the living counterpart of the sky-spirit to leave the city, viz., lest he should pass out of their control.

In the same spirit, the Romans would not allow a table to be completely stripped of food (*R. Q.* 64) or a light to be extinguished (75): the action might produce permanent effects. The same feeling prevailed or prevails

with regard to the table in Chemnitz, though it is regarded as a sign of death if a light goes out of its own accord.^[86]

The practice of allowing the spoils taken from an enemy to rust—a practice which Plutarch (37) cannot comprehend—was doubtless a piece of sympathetic magic: as the armour rusted, the enemy's power of armed resistance would diminish.

Another interesting instance of sympathetic magic lurks in *R. Q.* 32. The images which, as Plutarch says, were thrown into the river, represented a spirit of vegetation or a corn-spirit; and the object of plunging them into the river was thereby to secure that the crops should be correspondingly drenched with rain.^[87] This rite also illustrates the origin of a conception which has its roots in sympathetic magic and yet exerts considerable influence in the civilised world—the conception of "legal fictions." The images, undoubtedly, were substitutes for human beings who were (as representing the corn-spirit) drowned in the Tiber. Human sacrifice, though exceptional, was not unknown at Rome in historic times, as appears from *R. Q.* 83; and the substitution of animals or of inanimate objects for human beings is not peculiar to Rome, but is the usual means by which the transition from the more to the less barbarous custom is effected. But the Romans, who were practical and logical to the extreme, who reduced magic to a system whereby they regulated their daily life, consistently enough also utilised sympathetic magic as a legal instrument. For it would be a great mistake to infer from the ridicule poured by Cicero (*Pro Murena*, xii. 62) on the fictions of Roman law, that those symbolisms were puerile mummeries designed to benefit the legal profession at the expense of its clients. The clod of earth which was brought into court was no mere symbol, but gave to those who held it exactly the same control over the estate from which it came, as the image of a god gives to its possessor, or as the hair or clothing of a person who is to be bewitched gives to the worker of the spell.

A form of sympathetic magic which is practised by agricultural peoples all over the world is a "sacred marriage," whereby two spirits or their images, or their living representatives, are united, in order that their union may be sympathetically followed by fertility in flock and field. The ceremony of the

"sacred marriage" frequently survives when its purpose has been forgotten, and then a popular explanation is invented for and by the folk. The myth of Acca Larentia, given by Plutarch, *R. Q.* 35, seems to me a piece of folk-lore of this kind. To begin with, it is not uncommon to find in Greek and Asiatic cults, for instance,^[88] a woman shut up with a god in his temple. And the result of this union is an increase in the agricultural wealth or fertility of the community. The same result appears in the "rationalised" explanation of the "sacred marriage" of Acca Larentia and Hercules, given by Plutarch. Further, an exactly similar tale is told of Hercules and Flora,^[89] whose name shows that she is a spirit of flowering and blossoming vegetation, whilst her cult points to a realistic sacred marriage in which she took part.^[90] Again, Acca Larentia and Flora were evidently felt to be spirits of the same class as the Dea Dia, for sacrifices were offered to them as part of the worship of the Dea Dia; and the Dea Dia was a corn-spirit, as is plainly shown by the *Acta Arvalium Fratrum*.^[91] At the same time, though Acca Larentia, Flora, and the Dea Dia were all spirits of the same class, it is clear that they were distinguished from each other, for the Arval Brothers sacrificed to each of them separately and under distinct names. Finally, whether Acca Larentia had originally anything to do with the Lares seems doubtful,^[92] and in spite of the fact that, in later times at any rate, she was called "the mother of the Lares," one cannot build much on the etymology which makes "Acca" mean "mother."^[93] Certain it is, however, that the Arval Brothers, in worshipping the Dea Dia, began their famous and very ancient song with an invocation of the Lares.^[94] It is plain, therefore, that there was from pre-historic times a tendency to associate the worship of the kindly Lares with that of spirits of the class to which the Dea Dia and Acca Larentia belonged. But the feast of the Larentalia (or Larentinalia), to which Plutarch alludes in *R. Q.* 34, was evidently a piece of ancestor-worship, and may therefore have been part of the worship of the Lares from the beginning. If this really be so, Acca Larentia will be a soul promoted to the rank of a spirit of vegetation.

The theory of sympathetic magic may perhaps afford the solution of Plutarch's problem (97), why they that would live chaste were forbidden to eat pulse. Plutarch suggests that as far as beans are concerned the reason

may be that the Pythagoreans abominated them. This "symbol" of the Pythagoreans is well-known. Milton was inspired by it to put the case—

"If all the world
Should in a fit of temp'rance feed
on pulse,"

and, according to Neanthes, quoted by Iamblichus in his life of Pythagoras, the prohibition extended even to treading down the growing bean; for, he informs us, Pythagoras inculcated the virtue of chastity so successfully that when ten of his disciples, being attacked, might have escaped by crossing a bean-field, they died to a man rather than tread down the beans: and when another disciple, who was shortly afterwards captured and brought before Dionysius, was bidden by that tyrant to explain the strange conduct of his fellows, he replied, "They suffered themselves to be put to death rather than tread beans under foot; and I will rather tread beans under foot than reveal the reason."

This is sufficiently mysterious; and the Pythagorean symbol can scarcely be said to explain the Italian prohibition. But though Plutarch has committed the error of defining *ignotum per ignotius*, he has nevertheless been led by a sound instinct, in comparing the two things together. Mr. Frazer (in *Folk-Lore*, i. 145 ff.) has abundantly shown that many of the symbols of Pythagoras are but maxims of folk-lore which have gathered round the name of that mysterious philosopher. It would be nothing strange, then, if a piece of Italian folklore should be fathered on Pythagoras, for Magna Graecia was the home of Pythagoreanism.

Now the folk has at all times been fond of discovering resemblances between plants and other objects, as the common names of flowers, &c., sufficiently show. Further, according to popular notions, these resemblances do not exist for nothing: between the plant and the object it resembles there exists an occult but potent relation. The "Doctrine of Signatures" was a quasi-scientific organisation of this branch of folk-lore. "Turmeric has a brilliant yellow colour, which indicates that it has the power of curing jaundice; for the same reason, poppies must relieve diseases of the head," to

take a couple of instances from the *Pharmacologia* of Dr. Paris (p. 43). The ancient Romans who substituted an offering of poppy-heads for a sacrifice of human beings were not practising a childish cheat on the gods: on all sound principles of folk-lore they were offering a perfectly valid equivalent.

When then we find Porphyry, in his life of Pythagoras (§ 43), saying that Pythagoras bade his followers "abstain from beans as from human flesh," we may reasonably infer that beans were regarded, in the folk-lore of the day, as resembling some part of the human body, and as having a mysterious affinity with it. This conjecture receives some support from the fact that, whereas Porphyry explains all the other "symbols" as allegorical statements of various moral and civic duties, he explains this by a piece of folk-lore of the same kind as the modern popular belief that a hair kept in water will turn into an eel. The exact part of the body to which beans were supposed to bear a resemblance may be difficult at this distance of time to determine. The passage in Porphyry gives some hints. ^[95]

A more interesting fact is that, according to Herodotus, ii. 37, the Egyptians had the same aversion to eating beans, and that Egyptian priests might not even look at a bean, so unclean was it considered. From this passage it is usually inferred that Pythagoras obtained this piece of his doctrine from the Egyptians; and V. D. Link (*Die Urwelt*, 225) sought to support the inference by the suggestion that the prohibition originally had reference to the sacred Egyptian bean, and was subsequently extended to the common bean (*faba vulgaris*). Pursuing this line of thought, we are at once struck by the fact that the sacred Egyptian bean (*nelumbium speciosum*) is a lotus; and the lotus, both as a plant and as a symbol, ^[96] carries our thoughts to India. We thus seem to see a piece of folk-lore migrating, along with the plant to which it was attached, from India to Egypt, from Egypt to Europe.

But when did this interesting migration take place? The prohibition was known pretty early in Sicily, for it makes its appearance in the fragments of Empedocles, who was born at Agrigentum, B.C. 490. We can, however, trace it back much earlier in Italy. There it dates from pre-historic times, for it was one of the taboos laid upon the flamen Dialis. And the idea that beans were human flesh is implied in the part which they played in the funeral

ceremonies of the primitive Italians. That part is remarkably interesting. Plutarch tells us that "the solemn suppers and bankets at funerals for the dead were usually served with pulse above all other viands." This is a strange contrast to the aversion shown otherwise for eating beans, and it cries aloud for explanation.

Mr. E. S. Hartland, in *Folk Lore*, III. ii., has put forward the theory that the practice of sin-eating is the transformed survival of a savage custom of eating deceased kinsmen. Even those who dissent from his conclusion will not be able to deny that the custom does exist among savages, and that the object of cannibalism is to secure to the eater the courage, cunning, strength, &c., of the person eaten; nor will it be denied that on the first movement from savagery a tendency would manifest itself to substitute for the corpse anything which, according to the canons of savage logic, might be regarded as an equivalent substitute. The Italians, regarding beans as human flesh, might, we may conjecture, substitute beans; as the Bavarian peasant substitutes *Leichen-nudeln*. Before, however, we can regard this as anything more than a guess, we want proof that the Italians did really look upon the beans which they ate at funeral feasts as representative of the deceased. That proof is forthcoming, I submit, in the belief mentioned by Pliny (*N. H.*, xviii. 30. 2) that "the spirit of the deceased was in the bean" (*mortuorum animæ sint in ea*, i.e., in the *faba*). And inasmuch as the law forbade them that would be chaste to eat pulse, it seems probable that the object of eating beans at funeral banquets was to convey the propagating powers of the deceased to his kinsmen.

If then the superstition about the bean was borrowed by the Italians, it must have been borrowed in primitive times; and we must think that the belief reached the Italians at the same time as the cultivation of the bean itself spread from its original (unknown) home. But, if we may trust comparative philology, the bean was probably known to the European Aryans before they divided into separate peoples, such as Slavs, Italians, &c. And thus we can catch glimpses of this piece of folk-lore on its travels in pro-ethnic times. But this, I confess, I find it rather hard to believe. Of course, if there were channels of communication by which the plant itself could travel in that "time long past," then by those same channels the superstition might be conveyed. But on the other hand, if one people could see a resemblance

between the bean and some part of the human body, so might another. We do not imagine that because some of the taboos laid on the Mikado were the same as some laid on the flamen Dialis, they were therefore borrowed. Why, then, should we resort to the hypothesis of borrowing to account for the fact the flamen of pre-historic times was forbidden, exactly in the same way as the priests of ancient Egypt, to see or name a bean?

Folk-lorists will naturally inquire whether any traces of the conceptions and customs we have been examining can be found in fairy-tales.

I may therefore conclude by pointing out that in a Lithuanian tale, published and translated into German in the *Litauische Volkslieder und Märchen* of A. Leskien and K. Brugman (p. 202 and p. 471), the bean has the same "signature" as it had in ancient Italy. Another story in the same collection (pp. 363-371 and 490-494) should also be noticed here: a maiden is given the heart of a dead man to eat, and two hours afterwards she bore a son, who could speak and run the moment he was born.

XI. ARYAN MARRIAGE.

In the *Romane Questions*^[97] Plutarch has preserved for us various marriage customs, which raise the whole question, not perhaps of human marriage, but certainly of Aryan marriage. Has monandry always been the prevailing form among the Aryan-speaking peoples? Among those peoples has the family, as far as we can see or guess, from the beginning been patriarchal and agnatic?

As a starting-point for the discussion of this question, two propositions may be laid down as broadly true. The first is, that at some period or other, all Aryans have been in the habit of obtaining their wives (or some of their wives) by capture and by purchase. This fact may ultimately imply scarcity of native women, female infanticide, polyandry, and kinship through the female line; or it may prove to be perfectly compatible with a patriarchal and agnatic system. But it is a fact, and a fact of the first importance for this discussion. The second proposition that may safely be made is, that in

historical times at least, the patriarchal form of family has always been the prevailing form amongst Aryan nations. The exceptions may be real, or they may be due to faulty observation; they may be of the highest importance, as being the sole indications of a prior and very different form of family life, or they may be merely local, transient departures from the normal patriarchal form, and so be insignificant or deceptive; but in any case, they are relatively so few as to leave it a practically true statement to say that the patriarchal family has been normal among the Aryans in historic times.

The evidence of the existence of marriage by capture is furnished by folklore. It is not necessary, nor is this the place to review that evidence; but the survivals of this form of marriage which are recorded in the *Romane Questions* must be mentioned. The Romans, Plutarch says (*R. Q.*, 29), "*would not permit the new wedded bride to passe of herself over the door-sill or threshold, when she is brought home to her husband's house, but they that accomanie her must lift her up between them from the ground, and so convey her in.*"^[98] That the Romans themselves were dimly conscious of the real origin of this custom is implied in the first solution suggested by Plutarch, viz., that the ceremony was "in remembrance of those first wives whom they ravished perforce from the Sabines;" and Rossbach, in his great work on Roman marriage,^[99] sees in the custom a survival from times when the bride, captured by force, was conveyed against her will into the house (or den) of her captor. Parallels to the Roman custom are to be found elsewhere. Among the modern Greeks the bride is lifted over the threshold, as it would be most unlucky if she touched it in crossing.^[100] It is the most important wedding-guest among the Servians,^[101] the bride's nearest relation in Lorraine,^[102] who carries her in his arms from the waggon into her new home. Among the North Frisians the "bride-lifter" (*bridlefstr*) is a regular wedding-official.^[103] The ceremony seems to have been known to the ancient Hindoos also.^[104] The Finnish-Ugrians, whether they borrowed or lent, or independently developed the custom, uniformly practise it.^[105] It is further noteworthy that the Finnish-Ugrians agree with the Romans, the Hindoos, and the Russians in this, viz., that the bride is not only carried over the threshold by some of the bridal party (not by the bridegroom) but is then caused by them "to sit upon a fliece of wooll."^[106] The meaning and object of this strange proceeding were quite unknown to the Romans, who

practised it in Plutarch's time, as they are to the Finnish-Ugrians and Russians who still observe the custom. Rossbach rightly compares the ancient Roman custom of making the *flamen* and *flaminica*, when married *per farreationem*, sit upon the fleece of the sheep that was slaughtered during the wedding ceremonies;^[107] he then refers to the Roman practice of sitting for a short time after prayer in silent meditation, and this he thinks explains the custom in question. But surely it leaves unexplained just that which requires explanation. Granted, that the Romans showed more reverence than, say the Scots whom Dr. Boyd can remember; still, are we to imagine them so rapt into "the mind's internal heaven" that they could sit down in the grease and the gore of a freshly-slaughtered sheep's fell, "nor heed nor see what things these be"? Why did they not sit down somewhere else?

A possible answer to this question may be found in the following considerations. Many savages consider themselves peculiarly liable on their wedding-day to the attacks of evil spirits. The Hindoos and the Finnish-Ugrians unanimously regard the seating of the bride on the fleece as the right time for exorcising evil spirits and purifying the bride: the Hindoos recite an incantation, the Esthonians clash daggers over her head, for iron is generally dreaded by spirits. It is, therefore, an easy inference that the fleece itself had purificatory powers; and, as a matter of fact, we find that the Greeks, at any rate, regarded a sheepskin in this light, for in the preliminary ceremonies of the Eleusinia was a purificatory rite which was known as the Zeus-fleece.^[108] In the collection of the Hôtel Lambert^[109] is a red-figured vase bearing a representation of this rite, in which the person purified is represented as crouching on the fleece.

In days when marriage by capture was real, and not merely symbolical, it was highly important that a strange woman should, immediately on entering the house, be, so to speak, spiritually disinfected, lest she should introduce unwelcome spirits into her new home; or, in the intimate relations which were to subsist between her and her captor,^[110] should bring him into the power of strange and hostile gods. Hence the close adhesion of the ceremony of the fleece, long after its meaning was forgotten, to that of lifting the bride over the threshold.

But it was necessary not merely to detach the strange woman from her own gods, she must also be introduced to the gods of her new home. This introduction survived in the Roman custom, whereby *new wedded wives are bidden to touch fire and water* (R. Q. 1).^[111] That this custom goes back to the time when wives were captured is indicated by the words "are bidden:" the force which was at first necessarily used survives in this gentle compulsion. Parallels to this custom are forthcoming: the Hindoo bride, according to the Kâuçikasûtra (77. 16), was led thrice round the hearth in the bridegroom's house. Exactly the same ceremony not only was practised by the ancient Teutons, but is still observed in some places in North Germany and in Westphalia.^[112] The Esthonians and Wotjaks still honour the custom.^[113] The first thing a Servian bride has to do on entering her new home is to mend the fire,^[114] and in ancient Greece she was taken at once to the hearth. It need hardly be said that the hearth is the abode of the house-spirit and the centre of the family worship. At Rome, we find from Festus,^[115] the bride was also sprinkled with water. In Sardinia,^[116] her mother-in-law empties a glass of water over her. Amongst the ancient Hindoos^[117] this was the bridegroom's duty; with the Servians it is the function of the *Djewer*.^[118] That this sprinkling was originally an introduction of the strange woman to the local water-spirit seems indicated by the fact that amongst the Servians the sprinkling is performed at the well, in the Unterkrain at the burn,^[119] in Albania^[120] at the village-spring, while in modern Greece the bride casts offerings into the spring.^[121]

The conventionally extravagant lamentation which was required of the Roman bride^[122] is regarded by Rossbach (p. 329) as a survival of marriage by capture, and may be paralleled amongst many Aryan nations: with the Hindoos it was part of the officially prescribed programme;^[123] in the Oberpfalz it is obligatory; in Bohemia and in Russia it is required by public opinion.^[124]

The evidence of folk-lore (so far as it is called for by the *Romane Questions*) that the Aryans obtained wives by capturing the women of other households or family groups than their own, has now been stated. It does not suffice to show that an Aryan was forbidden to marry a woman of his

own household; but a wider survey of early Aryan wedding-customs would bring out this important fact, that however other parts of the ceremony vary, there is one which is always present, and which may be regarded as essential—that is the *domum deductio*, the bringing-home of the bride; and from this fact we may fairly draw the conclusion that normally, and—so strong is custom—probably uniformly, the bride and the bridegroom belonged to different households, and that the bride came to live in the home of the bridegroom.

Marriage by purchase does not happen to be mentioned in the *Romane Questions*, nor is it necessary to prove what is universally admitted. All that need be remarked here is that purchase was not necessarily preceded by a state of things in which capture prevailed; frequently it may have been a peaceable remedy for the grievances caused by capture, but quite as often it may have been practised side by side with capture from the beginning. Further, the purchase, like the capture, of wives implies that husband and wife belonged to different households; and purchase indicates that the wife thus bought was the property of the husband, or at least that she was subject to him.

Let us now turn to the evidence showing that the family was patriarchal and agnatic. The evidence is furnished by the comparative study of law, especially the law regulating the order in which the relatives of a dead man shall succeed to his property. The order of succession prescribed by the earliest legal codes is strikingly similar among all the Aryan peoples; first, the deceased's male descendants to the third generation (his sons, grandsons, and great-grandsons); next, the male descendants of the deceased's father to the third generation (*i.e.*, the deceased's brothers, nephews, and grand-nephews); then the male descendants of the deceased's grandfather to the third generation (*i.e.*, his uncles, cousins, and their children); and finally, the male descendants of his great-grandfather to the third generation (*i.e.*, his great-uncles, his first cousins once removed, and his second cousins once removed). Beyond these degrees, kin was not counted; and if no heir were forthcoming within them, the property went, amongst the Hindoos, to those of the same name as the deceased; amongst the Romans, to the members of his *gens*; in Crete, to the village community. What is the origin of this unanimous and well-marked distinction between

the Near and the Remote Kin? Why were the *anchisteis*, "the nearest relations," as the Greeks technically named them, so sharply distinguished from the others?

To begin with, it is clear that the distinction, being common to all the Aryans, was not developed subsequently to their dispersion, but is pre-historic—indeed, pro-ethnic. Hence it follows that the distinction was not the work of any legislator or of any individual; it could not have been a law enacted by a lawgiver and enforced by the State under pains and penalties, for the simple reason that the Aryans, previous to their dispersion, were not organised into a State, and had no government to issue or execute laws. But before Law, Custom was, and "Kin and Custom go together and imply each other, as do Law and State. Law is the enactment of the State—Custom is the habit of the Kin. And as Custom precedes Law, so the State is preceded by kin or sib associations. The earliest form of the State is modelled on that of the sib associations out of which it is developed, and the first laws promulgated by the State are but the old customs committed to writing."^[125]

In what pro-ethnic Aryan custom, then, are we to seek the origin of the clear and deep-cut line between the Near and the Remote Kin? The answer is furnished by what is known among the Slavonians as the house community, and to Anglo-Indian lawyers as "the joint undivided family." As it exists now in India, the joint undivided family consists, or may consist, of the sons, grandsons, and great-grandsons of a man (deceased), who, on the death of their common ancestor, do not separate, but continue to live on the undivided estate and worship their deceased ancestor as their house-spirit. The family, as defined by the Judicial Committee of the Privy Council,^[126] is "joint in food, worship, and estate."

Now, the relatives whom the earliest Aryan codes, the laws of the Twelve Tables, the laws of Solon, of Menu, the Gortyn Code, &c., specify as a man's heirs-at-law are in every case precisely those relatives who belonged, or might at some time have belonged, to the same joint undivided family as the deceased. It is worth while to note that at different times a man might belong to four different joint undivided families: he might be born into a family which still united in worshipping the spirit of his great-grandfather:

and thus his cousins, his first cousins once removed, and his second cousins once removed, would dwell in the same household with him. His grandfather might then die and become a house-spirit: in that event, his grand-uncle (and descendants) would have to set up a family of his own, for they only can belong to a joint undivided family who are descended from a common house-father. Now, my grand-uncle, being the brother of my grandfather, is not descended from my grandfather, therefore cannot worship his spirit, therefore cannot belong to the joint undivided family which worships my grandfather's spirit. On the other hand, the family, of which my (deceased) grandfather is the house-spirit, includes my grandfather's descendants to the third generation, *i.e.*, includes not only my cousins, but also their sons. This (cousins' sons) is the limit of the second joint undivided family to which it is possible for a man to belong. Thirdly, when my father becomes a house-spirit, and is worshipped by his children's children, I dwell in the same household as my nephews and grand-nephews. Finally, when I am gathered to my fathers, I dwell, in the spirit, with my sons, grandsons, and great-grandsons.

Here we obviously have the key to the order of succession prescribed by the earliest Aryan codes: my own descendants (if any) are called first, because they constitute the joint undivided family, with which, at the time of dying, I am presumably dwelling. My father's descendants come next, because that was the family I had previously belonged to; and on the same principle my grandfather's descendants, and then those of my great-grandfather were called.

So long as the joint undivided family was a living institution, so long there was no need (as there was no thought) of specifying who a man's heirs were, and so long a man could be in no doubt as to who his Near Kin were—they were those who had been brought up in the same family as himself. It was only when this unwieldy form of family came to be disintegrated by the advance of civilisation that it became necessary to specify the order of succession, and to determine who were a man's Near Kin; and, as we have seen, the earliest laws on this subject are but the old customs reduced to writing.

Two facts of importance in the history of Aryan marriage have now been shown. The first, inferred from the *domum deductio* and from the existence of marriage by capture and by purchase, is that amongst the undispersed Aryans a man customarily abstained from marrying a woman belonging to his own family group. The second is that the family groups in which the Aryans lived, if not originally, certainly for some time before their dispersion, were joint undivided families. The Aryan was averse to marrying women of his Near Kin; the difficult question now arises, whether he was equally averse to marrying into his Remote Kin? The "prohibited degrees" of historic times do not help us much in answering this question. The Athenians had lost the Aryan aversion to marriages within the near kin: they married their cousins, and even half-sisters. There is no evidence to show that the Romans ever abstained from marrying their Remote Kin. Rossbach maintains that the prohibition extended only to first cousins; Klenze, Walter, Burchardy, Götting, and Gerlach make it go as far as the extreme limit of the Near Kin, *i.e.*, to second cousins once removed—no writer on Roman law or marriage supports a wider prohibition; and the *jus osculi*^[127] (which, by the way, was accorded by men to men as well as by women to men) extended only to the near kin. The Hindoos, again, were averse to marriage between any persons of the same name.

Does the Hindoo system come down from pro-ethnic times, or is it a development peculiar among Aryan nations to the Hindoos? Many savages have a much wider circle of prohibited degrees than civilised peoples possess, and amongst civilised peoples themselves the number of prohibited degrees has even in historic times diminished. We thus seem to get a sort of law of diminishing degrees, which would point to the Hindoo system as that which was known to the pro-ethnic Aryans. But though some savages have more prohibited degrees than civilised men have, other savages have few or none. The downward movement, therefore, from the maximum to the minimum number of prohibited degrees which is observable in historic times must have been preceded in pre-historic ages by an upward movement from the minimum to the maximum; and, as far as the evidence at present goes, though the upward movement may, in pro-ethnic times, have proceeded as far as the Remote Kin, it may equally well only have reached to the limits of the Near Kin; while, after the Aryan dispersion, the movement may have continued upwards amongst the Hindoos, downwards

amongst the Athenians, and, for a long time, have ceased to move in any direction amongst the conservative Romans.

A more important point to notice is that, if we believe the Hindoo system to date from pro-ethnic times, we must also assume that the Hindoo system of naming is pro-ethnic, *i.e.*, we must assume that each Aryan had two names, one distinguishing him personally from other people, the other indicating what kin he belonged to; and in this event, the Near and the Remote Kin must, in pro-ethnic times, have had a common name. There is, however, very little evidence to show that this was the case: gentile names are found among the Hindoos and the Romans alone of Aryan peoples. It is, of course, possible that, before the dispersion, the Aryans had gentile names, and that, after the dispersion, all the Aryans, with the exception of the Romans and the Hindoos, lost them entirely. On the other hand, if there was a time when gentile names had not yet been invented, if they have had a history and growth, we must consider it as at least possible that gentile names had not been evolved at the time of the dispersion, and were only developed subsequently by the Romans and Hindoos.

Whether the undispersed Aryans had gentile names, and at the same time an aversion to marriages between persons of the same name, is a question on which it were vain to pronounce confidently. We may more safely consider both these equally possible alternatives, together with the consequences which flow from each. Let us assume that marriage was, amongst the Aryans as amongst the Hindoos, prohibited between persons of the same gentile name: is there anything in the social organisation presupposed by this prohibition incompatible with the patriarchal system? According to Mr. D. M'Lennan there is: not only are there "numerous societies of which the patriarchal theory does not even attempt to give any account," but "in the societies upon contemplation of which it was formed, a most serious difficulty for it is presented by the tribes, which consist of several clans, each clan considered separate in blood from all the others. The patriarchal theory, of course, involves that the clans are all of the same blood."^[128] Mr. M'Lennan's difficulty seems to be this: where inheritance (of family name, property, sacra, &c.) is confined to the male line, the descendants of a common ancestor must all have the same family or gentile name; persons having different names cannot be descended from the same ancestor—that

is to say, different *gentes* or clans cannot have a common origin. A tribe, therefore, which consists of several clans cannot consist of descendants of a common ancestor. Yet, these clans believe they have an ancestor, however remote, in common. If their belief is incorrect (if the *gentes* have not a common origin), how did the error arise? If, on the other hand, the different *gentes* of the same tribe have a common origin, how came they to have different names?

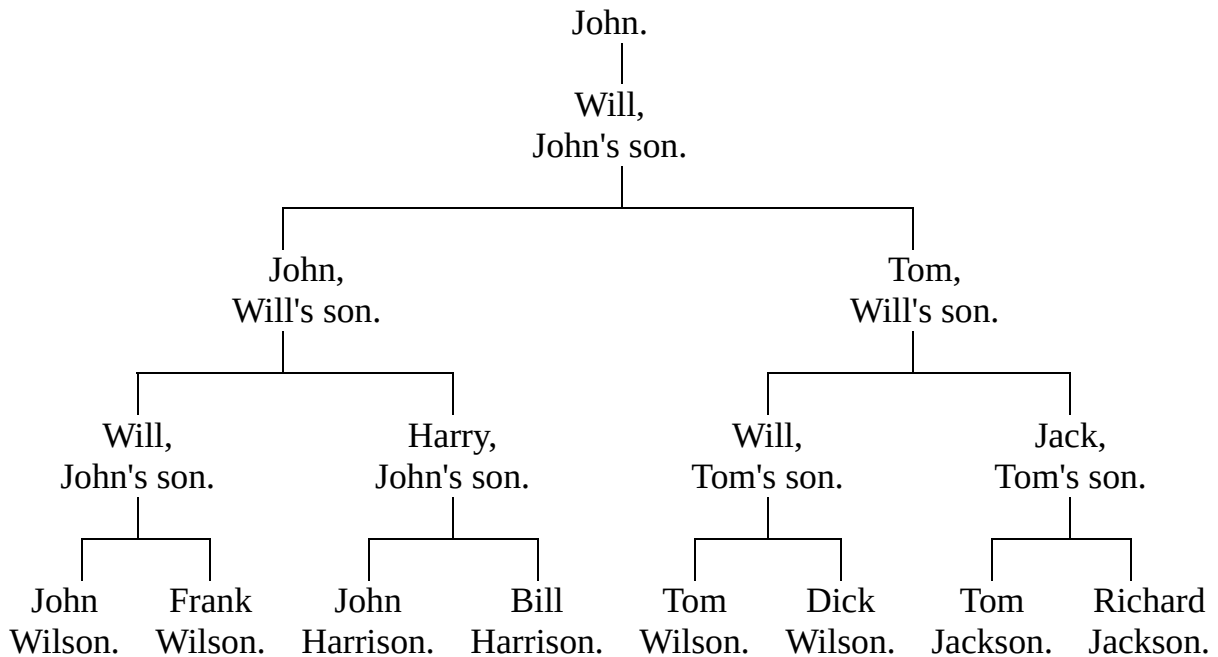
The source of this difficulty plainly is the assumption that the original ancestor of the tribe had a family name, which was inherited by all his descendants. It is impossible to disprove or to prove this assumption. We may, however, note that the Teutons (according to Dr. Taylor^[129]) rejoiced in only one name a-piece. An Athenian added to his own name his father's. And—to set assumption against assumption—we may conjecture that as patronymics are formed from personal names, so gentile names were developed out of patronymics. At first, a man's sons bore nothing in their names to indicate from what father they were sprung. In course of time the sons of Anchises were known as Anchisiadæ; and as long as the family group consisted only of parents and children, this system of nomenclature would suffice. It might even continue into times when the family group included three generations: Iulus, as well as his father, Æneas, might be an Anchisiades. And here we may note that if all the members of a joint undivided family bore the surname Anchisiades, an aversion to marriage in the near kin would forbid the marriage of any two Anchisiadæ. When, however, owing to natural growth, the joint undivided family of Anchises becomes so large that it is necessary for his younger (married) sons to go out into the world and start joint undivided families of their own, leaving Æneas and his children in possession of the old home, it is obvious that persons who once had belonged to the same joint undivided family, and therefore had possessed the same family name, and had been prohibited to intermarry, would now belong to different families, and (being named after the respective house-fathers of the newly formed families) would have different patronymics, and would be allowed to marry persons whom previously they were forbidden to wed. In these circumstances an extension both of prohibited degrees and of the family name might very naturally be the ultimate result. Iulus, who for years had worshipped Anchises as house-spirit, and had consequently been an Anchisiades, might, when Æneas

became his house-spirit, come to be known as an Ænæades, but on the other hand the old patronymic might stick to him and to his children for ever. In the same way, the aversion to marrying women who belonged to the same joint undivided family might cease when they ceased to belong to the same family, but it might continue. Hence a continual tendency to extend the family name, and to enlarge the number of prohibited degrees.

The transition from the system of naming by patronymics to that of gentile names would not be made in a day or in a generation, and during the transition the usage would fluctuate: the descendants of Æneas might choose to be known as Ænæadæ rather than as the sons of Anchises, while the children of Æneas' brothers might retain the name of Anchisiadæ, because their fathers were less distinguished than their grandfather. The period of this fluctuation in usage may be assumed to have been long enough to allow of the requisite diversity of gentile names, while the fact that the number of *gentes* is always fixed, however far back they can be historically traced, shows that the fluctuation at last hardened into unyielding custom.

It was pointed out in the last paragraph but one that second cousins once removed (the great-grandchildren of a common house-father) might at one time belong to the same joint undivided family, and subsequently to different families, and that they might wish to continue, after their separation, to consider each other as relatives. Language afforded them no means of indicating their relationship, for there was no word in the original Aryan language for "cousin," much less for "second cousin." And before patronymics had been stereotyped into gentile names, it might seem that the Aryan system of naming at that time afforded no means of binding these relatives together either. But a certain Athenian custom may perhaps be taken, both as evidence of the existence of the desire in question, and as an indication of the means taken for gratifying it. At Athens it was the custom to name a child after its grandfather; and if we assume this practice to have obtained in Aryan times, we have here a ready means for indicating the fact that second cousins are related without the aid of a gentile name; for if I and my first cousin are both named after our common grandfather, then our children (who are second cousins once removed) will have the same patronymic, and therefore will be related, and thence again prohibited to

marry. This may be illustrated by an imaginary pedigree, which will also serve to show how—when once patronymics, such as "John's son," became stereotyped into true family or gentile names, such as "Johnson"—all the *gentes* of a tribe might be descended from a common ancestor. Thus:—



We may now sum up. The oldest form of family organisation historically traceable amongst the Aryans is that of the joint undivided family. The pro-ethnic Aryans were probably averse to marriages between members of the same joint undivided family. They may also have been averse to marriages between second cousins once removed, even when those second cousins had ceased to dwell in the same joint household. If so, then, as language afforded no term even for "cousins," the memory of the relationship may have been kept up in one of three ways. As the members of a *genos* at Athens had no common family name, and as they were notoriously related, not by blood, but merely by the possession of a joint-worship, so amongst the Aryans a joint-worship may have served as the mark of kinship (as it does among the Hindoos still). Or the remote kin may have been enabled to claim kindred by means of a patronymic system, which survived at Athens. Or, third, gentile names may have been developed out of patronymics even in pro-ethnic times, in which case marriage would be prohibited, as amongst the Hindoos, between all persons of the same family name.

But there is nothing in this patriarchal organisation of the family and of the tribe which compels us to assume that it was evolved out of some earlier non-patriarchal form of family. The warrant for such an assumption, if to be found, must be sought elsewhere. Let us seek. Analogy will not help us. The patriarchal system may, elsewhere in the world, have been evolved out of the matriarchate; but, as the late Mr. M'Lennan warned us, we may not assume that marriage has everywhere had the same history. The widest survey of the various forms of human marriage (Westermarck's) that has yet been made warrants no presumption in favour of the priority of the

matriarchate. If the matriarchate was a pro-ethnic Aryan institution, it is on Aryan ground that traces of it must be discovered. Such traces are said to be discernible.

There are traces amongst some Aryan peoples of the levirate. The levirate is said to indicate polyandry, and polyandry to presuppose the matriarchate. This is a perfectly legitimate line of argument, but before resorting to polyandry for an explanation of the Aryan levirate, it is worth while to inquire whether there is anything in known Aryan customs capable of supplying an explanation. According to Aryan custom, the estate of a man who leaves no son passes to the next of kin, *i.e.*, his brother, or it may be a more distant relative. If the deceased leaves no son, but a daughter, then according to Athenian law, according to the Gortyn Code, and probably also according to Aryan custom, the next of kin (whether brother or not) must not only take the estate, but also marry the heiress, if any (whether wife or daughter of the deceased). According to the Gortyn Code, if the next of kin is married, he must put away his wife; if the heiress is already married, she must leave her husband. Now, if the obligation to raise up seed to the deceased extended only to his brothers, the Tibetan form of polyandry would afford an explanation which, whether correct or not, would, at any rate, account for all the facts. But inasmuch as the obligation is binding on all the near kin, and extends to the daughter as well as the wife of the deceased, it cannot be explained by the hypothesis of the Tibetan form of polyandry or any other form short of incest in every degree possible, not only amongst the members of the same joint undivided family, but also with the women who have married out of that family into some other. In truth, so far from *mutterrecht* being the source of the Aryan custom, that custom bears on its face the marks of the rudest and most savage application of the agnatic theory. The provisions of the Gortyn Code which require that the next of kin shall marry the heiress, even if the marriage necessitate divorce on both sides, show that the mother was held absolutely incapable of transmitting rights—only a kinsman could do that. A devotion to the principle of agnation so strong as to over-ride the innate Aryan aversion to endogamous marriages, so strong even in the days of civilised Athens as to afford the Orestes of Æschylus with the defence that the mother whom he had killed was not of his blood, cannot be explained as a survival from times when kinship was counted exclusively through the female line. The savage practice must have its roots in some equally crude and savage theory. What the Aryan theory was we can hardly hope to discover, but we may conjecture that it was at least as barbarous as that which leads savages to eat their dead kinsmen, and European peasants to eat corpse-cakes, in the belief that thereby "the virtues and advantages of the departed ... and the living strength of the deceased passed over ... into the kinsman who consumed them, and so were retained within the kindred" (Mr. E. S. Hartland in *Folk Lore*, III. ii. 149). The *Leichen-nudeln* of the Bavarian peasant, or the beans of the primitive Italian funeral feasts, would, when eaten, qualify the next of kin to wed the heiress and to raise up seed to the dead kinsman.

Before leaving the subject of the levirate we may note that the joint undivided family survived in historic times at Athens and in Sparta, and that in both places brothers lived on the joint-estate as well after the death as during the life of their father. In Sparta, if one only of the brothers had a son, that son was naturally heir to the joint-estate, and was considered the son of all. Amongst the Hindoos, too, Vasishtha says (xvii. 10), "If amongst many brothers who are begotten by one father, one have a son, they all have offspring through that son" (*cf.* Vishnu, xv. 42).^[130] Now, a casual observer, ignorant of the nature and constitution of the joint undivided family, might thus easily draw the mistaken inference that the wife of one brother was common to them all; and this may be the origin of Cæsar's statement with regard to the polyandry of the ancient Britons, and of Polybius' with regard to the Spartans. Or, again, it is possible that the joint undivided family may in these instances have given rise to this form of polyandry. It is thus not safe to infer that where polyandry is, the matriarchate must previously have been.

There remains the argument from totems. Unfortunately their very existence in Europe is questioned, and this is not the place to discuss the question. It is safer not to meddle in European totems at present. Their appearance in Greek mythology, however, may fittingly here be made the subject of a brief allusion. The value, to the anthropologist, of ancient Roman customs and beliefs is that they show us the Italians at a much lower stage of civilisation than that in which the Vedas show us the Hindoos or the Homeric poems the Greeks. They show us an Aryan people having no mythology, and they warrant the inference that myths were unknown to the pro-ethnic Aryans. The Greek myths about the amours of Zeus in animal form cannot go back, therefore, to Aryan times. They may be the peculiar invention of the early Greeks, or it may be that the families which claimed to be descended from animals were pre-Hellenic, and that, when they joined the immigrating Greeks, they learnt the worship of Zeus, and were aided in their conversion by identifying Zeus with their animal ancestor.

Against the instances of polyandry and the survivals of totemism, which may or may not show that the matriarchate was known to Aryan peoples, we may fairly set the evidence of comparative philology. The original Aryan language possessed terms for grandfather, father, son, and grandson; and these are just the direct ascendants and descendants who could compose a joint undivided family. There was a word for the paternal uncle, whom the children brought up in such a family would know; there is none for the maternal uncle, with whom they would not dwell. There were special designations for husband's father, husband's mother, husband's brother, husband's sister, and even for husband's brothers' wives—just the words which would be required if the wife left her own family to dwell in that of her husband. There were none for wife's father, mother, &c., which would be required if the husband became a

member of his wife's family. And this—which is inconsistent with the matriarchal system—is in accord with the evidence afforded by wedding customs, viz., that the wife left father and mother, and was brought, by the *domum deductio*, to her husband's home.

Still, it would be as unjustifiable to say that the matriarchate could never have established itself on Aryan ground, as it is to say that the agnatic family must have been developed out of the system of "maternal rights" and "female descent." The list of prohibited degrees varies among early Aryan peoples from the minimum possible for a civilised people (as at Athens) to the maximum possible even for savages (as amongst the Hindoos). There may have been a similar variation in the organisation of the family. Nor can we say with confidence that the pro-ethnic Aryans were more uniform than their descendants. The different languages evolved out of the common Aryan tongue existed as dialects from the beginning, and in the beginning there may have been differences in social organisation. But whereas we can certainly trace the joint undivided family and the principle of agnation as far back as modern science enables us to trace the Aryans at all, the evidence for the existence of the matriarchate at any time amongst any Aryan people is inferior both in amount and in value.

XII. CONCLUSION.

After writing a hundred pages as though one knew something, it is a relief to confess one's ignorance. So I shall do myself the pleasure of concluding with a list of Romane Questions which are too hard for me. Why *they kept the temple of the goddess Horta open alwaies* I own to me is a mystery yet. I cannot even conjecture *what is the reason that Quintus Metellus forbad to observe auspices after the moneth Sextilis*, nor why *they thought Aruspices ought to have their lanterns and lampes alwaies open*, nor why *obsserve they the vultures most of any other fowles in taking of presages*. White, as a mourning colour, which is prescribed in R. Q. 26, may be paralleled in the customs of Gambreion, in Asia Minor, and in Argos, but the explanation is beyond me. The origin of the proverb *Sardi venales*, and of the interesting custom associated with it (R. Q. 53), can scarcely be said to be explained either by Festus (p. 322) or by Cicero (VII. *Fam.*, 24). Nor do I know why boys were named on the ninth, whereas girls were named on the eighth day of birth. And why did the Romans of old time invariably, when they went out to supper, take with them *their young sonnes*, even when they were but in their very infancie and childhood?

ROMANE QVESTIONS,

THAT IS TO SAY,

AN ENQUIRIE INTO THE
CAUSES OF MANIE FASHIONS
AND CUSTOMES OF ROME.

*A Treatise fit for them who are conversant
in the reading
of Romane histories and antiquities, giving
a light
to many places otherwise obscure and hard
to be understood.*

ROMANE QUESTIONS.

1.

What is the reason that new wedded wives are bidden to touch fire and water?



s it because that among the elements and principles, whereof are composed naturall bodies, the one of these twaine, to wit, fire is the male, and water the female, of which, that infuseth the beginning of motion, and this affoordeth the propertie of the subject and matter?

2. Or rather, for that, as the fire purgeth, and water washeth; so a wife ought to continue pure, chaste and cleane all her life.

3. Or is it in this regard, that as fire without humidity, yeeldeth no nourishment, but is dry; and moisture without heat is idle, fruitlesse and barren; even so the male is feeble, and the female likewise, when they be apart and severed a sunder: but the conjunction of two married folke yeeldeth unto both, their cohabitation and perfection of living together.

4. Or last of all, because man and wife ought not to forsake and abandon one another, but to take part of all fortunes; though they had no other good in the world common betweene them, but fire and water onely.

2.

How is it, that they use to light at weddings five torches, and neither more nor lesse, which they call Wax-lights.

1. WHETHER is it as *Varro* saith, because the *Prætours* or generals of armies use three, and the *Aediles* two: therefore it is not meet that they should have more than the *Prætours* and *Aediles* together: considering that new married folke goe unto the *Aediles* to light their fire?

2. Or, because having use of many numbers, the odde number seemed unto them as in all other respects better, and more perfect than the even: so it was fitter and more agreeable for mariage: for the even number implieth a kinde of discord and division, in respect of the equall parts in it, meet for siding, quarrell, and contention: whereas the odde number cannot be divided so just and equally, but there will remaine somewhat still in common for to be parted. Now among al odde numbers, it seemeth that *Cinque* is most nuptial, & best beseeming mariage; for that *Trey* is the first odde number, & *Deuz* the first even; of which twaine, five is compounded, as of the male and the female.

3. Or is it rather, because light is a signe of being and of life: and a woman may beare at the most five children at one burden; and so they used to cary five tapers or waxe candels?

4. Or lastly, for that they thought, that those who were married had need of five gods and goddesses: namely, *Jupiter*^[131] genial, *Juno* genial, *Venus*, *Suade*, and above all *Diana*; whom (last named) women in their labour and travell of childe-birth, are wont to call upon for helpe.

3.

What is the cause that there being many Temples of Diana in Rome, into that onely which standeth in the Patrician street, men enter not.

1. Is it not because of a tale which is told in this maner: In old time a certeine woman being come thither for to adore and worship this goddess, chaunced there to bee abused and suffer violence in her honor: and he who forced her, was torne in pieces by hounds: upon which accident, ever after, a certeine superstitious feare possessed mens heads, that they would not presume to goe into the said temple.

4.

Wherefore is it, that in other temples of Diana men are woont ordinarily to set up and fasten Harts hornes; onely in that which is upon mount Aventine; the hornes of oxen and other beefes are to be seen.

MAY it not be, that this is respective to the remembrance of an ancient occurrent that sometime befell? For reported it is that long since in the Sabines countrey, one *Antion Coratius* had a cow, which grew to be exceeding faire and woonderfull bigge withall above any other: and a certeine wizzard or soothsaier came unto him and said: How predestined it was that the citie which sacrificed that cow unto *Diana* in the mount *Aventine*, should become most puissant and rule all *Italy*: This *Coratius* therefore came to *Rome* of a deliberate purpose to sacrifice the said cow accordingly: but a certaine houshold servant that he had, gave notice secretly unto king *Servius Tullius* of this prediction delivered by the abovesaid soothsaier: whereupon *Servius* acquainted the priest of *Diana*, *Cornelius*, with the matter: and therefore when *Antion Coratius* presented himselfe for to performe his sacrifice, *Cornelius* advertised him, first to goe downe into the river, there to wash; for that the custome and maner of those that sacrificed was so to doe: now whiles *Antion* was gone to wash himselfe in the river, *Servius* steps into his place, prevented his returne, sacrificed the cow unto the goddessse, and nailed up the hornes when he had so done, within her temple. *Juba* thus relateth this historie, and *Varro* likewise, saving that *Varro* expressly setteth not downe the name of *Antion*, neither doth he write that it was *Cornelius* the priest, but the sexton onely of the church that thus beguiled the Sabine.

5.

Why are they who have beene falsly reported dead in a strange countrey, although they returne home alive, not received nor suffred to enter directly at the dores, but forced to climbe up to the tiles of the house, and so to get downe from the roufe into the house?

Varro rendreth a reason heereof, which I take to be altogether fabulous: for hee writeth, that during the Silician warre, there was a great battell fought upon the sea, and immediately upon it, there ranne a rumour of many that they were dead in this fight; who notwithstanding, they returned home safe, died all within a little while after: howbeit, one there was among the rest, who when he would have entred into his owne house, found the dore of the owne accord fast shut up against him; and for all the forcible meanes that was made to open the same, yet it would not prevaile: whereupon this man taking up his lodging without, just before his dore, as he slept in

the night, had a vision which advertised and taught him how he should from the rooffe of the house let himselfe downe by a rope, and so get in: now when he had so done, he became fortunate ever after, all the rest of his life; and hee lived to be a very aged man: and heereof arose the foresaid custome, which alwaies afterwards was kept and observed.

But haply this fashion may seeme in some sort to have beene derived from the Greeks: for in *Greece* they thought not those pure and cleane who had beene caried foorth for dead to be enterred; or whose sepulchre and funerals were solemnized or prepared: neither were such allowed to frequent the company of others, nor suffred to come neere unto their sacrifices. And there goeth a report of a certaine man named *Aristinus*, one of those who had beene possessed with this superstition, how he sent unto the oracle of *Apollo* at *Delphos*, for to make supplication and praier unto the god, for to bee delivered out of this perplexed anxietie that troubled him by occasion of the said custome or law then in force: and that the prophetesse *Pythia* returned this answer:

*Looke whatsoever women doe in childbed
newly laid,
Unto their babes, which they brought foorth,
the verie same I say
See that be done to thee againe: and after
that be sure,
Unto the blessed gods with hands to sacrifice,
most pure.*

Which oracle thus delivered, *Aristinus* having well pondered and considered, committed himselfe as an infant new borne unto women for to be washed, to be wrapped in swadling clothes, and to be suckled with the brest-head: after which, all such others, whom we call *Hysteropotmous*, that is to say, those whose graves were made, as if they had beene dead, did the semblable. Howbeit, some doe say, that before *Aristinus* was borne, these ceremonies were observed about those *Histropotmi*, and that this was a right auncient custome kept in the semblable case: and therefore no marvell it is, that the Romans also thought, that such as were supposed to have beene once buried, and raunged with the dead in another world, ought not to enter in at the same porch, out of which they goe, when they purpose to sacrifice unto the gods, or at which they reenter when they returne from sacrifice: but would have them from above to descend through the tiles of the roufe into the close house, with the aire open over their heads: for all their purifications ordinarily they performed without the house abroad in the aire.

Why doe women kisse the lips of their kinsfolks?

Is it as most men thinke, for that women being forbidden to drinke wine, the manner was brought up: That whensoever they met their kinsfolke, they should kisse their lips, to the end they might not be unknowen, but convicted if they had drunke wine? or rather for another reason, which *Aristotle* the philosopher hath alledged? for as touching that occasion, which is so famous and commonly voiced in every mans mouth, yea, and reported of divers and sundrie places; it was no doubt the hardy attempt executed by the dames of *Troie*, and that upon the coasts of *Italy*; for when the men upon their arrivall were landed; the women in the meanwhile set fire upon their ships, for very desire that they had to see an end once, one way or other of their long voiage, & to be delivered frõ their tedious travel at sea: but fearing the fury of their men, when they should returne, they went forth to meet their kinsfolke and friends upon the way, and welcomed them with amiable embracing & sweet kisses of their lips: by which means having appeased their angrie mood, and recovered their favours, they continued ever after, the custome of kind greeting and loving salutation in this manner.

Or was not this a priviledge granted unto women for their greater honour and credit; namely, to be knowen and seen for to have many of their race and kinred, and those of good worth and reputation?

Or because it was not lawfull to espouse women of their blood and kinred, therefore permitted they were to entertaine them kindly and familiarly with a kisse, so they proceeded no farther; insomuch as this was the onely marke and token left of their consanguinitie. For before time, they might not marrie women of their owne blood; no more than in these daies their aunts by the mothers side, or their sisters: and long it was ere men were permitted to contract marriage with their cousin germains; and that upon such an occasion as this. There was a certaine man of poore estate and small living, howbeit otherwise of good and honest cariage, and of all others that managed the publike affairs of State most popular and gracious with the commons: who was supposed to keepe as his espoused wife a kinswoman of his and cousin germain, an inheritresse; by whom he had great wealth, and became verie rich: for which he was accused judicially before the people; but upon a speciall favour that they bare unto him, they would not enquire into the cause in question; but not onely suppressed his bill of enditement, and let her go as quit of all crime, but also even they, enacted a statute; by vertue whereof, lawfull it was for all men from that time forward to marrie, as far as to their cousin germains, but in any higher or neerer degree of consanguinitie, they were expresly forbidden.

7.

Wherefore is it not lawfull either for the husband to receive a gift of his wife, or for the wife of her husband.

MAY it not be, for that, as *Solon* ordained that the donations and bequests, made by those that die shall stand good, unlesse they be such as a man hath granted upon necessitie, or by the inducement and flatterie of his wife: in which proviso, he excepted necessitie, as forcing and constraining the will; and likewise pleasure, as deceiving the judgement; even so have men suspected the mutuall gifts passing between the husband and the wife, and thought them to be of the same nature.

Or was it not thought, that giving of presents was of all other the least & worst signe of amity and goodwill (for even strangers and such as beare no love at all use in that sort to be giving) and in that regard they would banish out of marriage such kind of pleasing and curring favour; to the end that the mutuall love and affection between the parties should be free and without respect of salarie and gaine, even for it selfe and nothing else in the world.

Or because women commonly admit and entertaine straungers, as corrupted by receiving of presents and gifts at their hands, it was thought to stand more with honour and reputation, that wives should love their owne husbands, though they gave them nothing by way of gift.

Or rather, for that it was meet and requisit, that the goods of the husband should be common to the wife, and to the wife likewise of the husband: for the partie who receiveth a thing in gift, doth learne to repute that which was not given, to be none of his owne, but belonging to another: so that man and wife in giving never so little one to another, despoil and defraud themselves of all that is beside.

8.

What might be the cause that they were forbidden to receive any gift either of
[132]Sonne in law, or [133]Father in law?

OF Sonne in law, for feare lest the gift might be thought by the meanes of the Father to passe about the returne unto the wife: and of the Father in law, because it was supposed meet and just, that he who gave not, should not likewise receive ought. ^[134]

9.

What should be the reason that the Romans when they returned from some voyage out of a farre and forraine countrey, or onely from their ferme into the citie; if their wives were at home, used to send a messenger unto them before, for to give warning and advertisement of their comming?

EITHER it was because this is a token of one that beleeveth and is verily perswaded that his wife intendeth no lewdnesse, nor is otherwise busied than well: whereas to come upon her at unwares and on a sodain, is a kind of forlaying and surprize. Or for that they make haste to send them good newes of their comming, as being assured that they have a longing desire, and doe expect such tidings.

Or rather because themselves would be glad to heare from them some good newes, to wit, whether they shall find them in good health when they come, and attending affectionately and with great devotion, their returne.

Or else because women ordinarily, when their husbands be away and from home, have many petie businesses and house affaires: and other whiles there fall out some little jarres and quarrels within doores with their servants, men or maidens: to the end therefore all such troubles and inconveniences might be overblown, and that they might give unto their husbands a loving and amiable welcome home, they have intelligence given unto them before hand of their arrivall and approach.

10.

What is the cause that when they adore and worship the gods, they cover their heads: but contrariwise when they meet with any honourable or worshipfull persons, if their heads haplie were then covered with their cover, they discover the same, and are bare headed.

FOR it seemeth that this fashion maketh the former doubt and braunch of the question more difficult to be assoiled: and if that which is reported of *Aeneas* be true; namely, that as *Diomedes* passed along by him whiles he sacrificed, he covered his head, and so performed his sacrifice; there is good reason and consequence, that if men be covered before their enemies, they should be bare when they encounter either their friends, or men of woorth and honour: for this maner of being covered before the gods, is not properly respective unto them, but occasioned by accident, and hath, since that example of *Aeneas*, beene observed and continued.

But if we must say somewhat else beside, consider whether it be not sufficient to enquire onely of this point; namely, why they cover their heads when they worship the gods, seeing the other consequently dependeth heereupon: for they stand bare before men of dignitie and authoritie, not to doe them any more honor thereby, but contrariwise to diminish their envie, for feare they might be thought to require as much reverence and the same honor as is exhibited to the gods, or suffer themselves, and take pleasure to bee observed and revered equally with them: as for the gods they adored them after this sort; either by way of lowlinesse and humbling themselves before their majestie, in covering and hiding their heads; or rather because they feared lest as they made their praier, there should come unto their hearing, from without, any sinister voice or inauspicate and ominous osse: and to prevent such an object they drew their hood over their eares: And how true it is that they had a carefull eie and regard to meet with all such accidents, it may appeere by this, that when they went to any oracle for to be resolved by answer from thence upon a scrupulous doubt, they caused a great noise to be made all about them, with ringing of pannes or brasen basons.

Or it may well be, (as *Castor* saith, comparing in concordance the Romane fashions with the rites of the Pythagoreans) for that the Dæmon or good angell within us, hath need of the gods helpe without, and maketh supplication with covering the head, giving thus much covertly to understand thereby, that the soule is likewise covered and hidden by the bodie.

11.

Why sacrifice they unto Saturne bare-headed.

Is it because *Aeneas* first brought up this fashion of covering the head at sacrifice; and the sacrifice to *Saturnus* is much more auncient than his time?

Or, for that they used to be covered unto the celestiall gods: but as for *Saturne* he is reputed a Subterranean or terrestriall god?

Or, in this respect, that there is nothing hidden, covered, or shadowed in Trueth? For among the Romans, *Saturne* was held to be the father of Veritie.

12.

Why doe they repute Saturne the father of Trueth.

Is it for that (as some Philosophers deeme) they are of opinion that ^[135]*Saturne* is ^[136]Time? and Time you know well findeth out and revealeth the Truth.

Or, because as the Poets fable, men lived under *Saturnes* reigne in the golden age: and if the life of man was then most just and righteous, it followeth consequently that there was much trueth in the world.

13.

What is the reason that they sacrificed likewise unto the god whom they tearmed Honor, with bare head? now a man may interpret Honor to be as much as Glory and Reputation.

It is haply because Honor and glory is a thing evident, notorious, and exposed to the knowledge of the whole world: and by the same reason that they veile bonet before men of worship, dignitie, and honor, they adore also the deitie that beareth the name of Honor, with the head bare.

14.

What may be the cause, that sonnes cary their Fathers and Mothers foorth to be enterred, with their heads hooded and covered: but daughters bare headed, with their haire detressed and hanging downe loose.

Is it for that Fathers ought to be honored as gods by their male children, but lamented and bewailed as dead men by their daughters, and therefore the law having given and graunted unto either sex that which is proper, hath of both together made that which is beseeming and convenient.

Or, it is in this regard, that unto sorrow and heaviness, that is best beseeming which is extraordinarie and unusuall: now more ordinarie it is with women to go abroad with their heads veiled and covered: and likewise with men, to be discovered and bare headed. For even among the Greeks when there is befallen unto them any publike calamitie, the manner and custome is, that the women should cut of the hayres of their head, and the men weare them long; for that otherwise it is usuall that men should poll their heads, and women keepe their haire long. And to prove that sonnes were wont to be covered; in such a case, and for the said cause, a man may alledge that which *Varro* hath written; namely, that in the solemnitie of funerals, and about the tombs of their fathers, they carry themselves with as much reverence and devotion

as in the temples of the gods: in such sort, as when they have burnt the corps in the funeral fire, so soone as ever they meet with a bone, they pronounce, that he who is dead, is now become a god. On the contrary side, women were no wise permitted to vaile and cover their heads. And we find upon record, that the first man who put away and divorced his wife was *Spurius Carbilus*, because she bare him no children; the second, *Sulpitius Gallus*, for that he saw her to cast a robe over her head: and the third *Publius Sempronius*, for standing to behold the solemnitie of the funerall games.

15.

How it commeth to passe, that considering the Romans esteemed Terminus a god, and therefore in honour of him celebrated a feast called thereupon Terminalia, yet they never killed any beast in sacrifice unto him?

It is because *Romulus* did appoint no bonds and limits of his countrey, to the end that he might lawfully set out and take in where pleased him, and repute all that land his owne so far as, (according to that saying of the Lacedæmonian) his speare or javelin would reach? But *Numa Pompilius* a just man and politick withall, one who knew well how to govern, and that by the rule of Philosophie, caused his territorie to be confined betweene him and his neighbour nations, and called those frontier bonds by the name of *Terminus* as the superintendent, over-seer and keeper of peace and amitie between neighbours; and therefore he supposed, that this *Terminus* ought to be preserved pure and cleane from all blood, and impollute with any murder.

16.

What is the reason that it is not lawfull for any maid servants to enter into the temple of the goddesse ^[137]Leucothea? and the Dames of Rome, bringing in thither one alone and no more with them, fall to cuffing and boxing her about the eares and cheeks.

As for the wench that is thus buffeted, it is a sufficient signe and argument, that such as she, are not permitted to come thither: now for all others they keepe them out in regard of a certaine poetically fable reported in this wise: that ladie *Ino* being in times past jealous of her husband, and suspecting him with a maid servant of hers, fell mad, and was enraged against her owne sonne: this servant the Greeks say, was an Aetolian borne, and had to name *Antiphera*: and therefore it is that heere among us in the citie of *Chæroneia*, before the temple or chappell of *Matuta*, the sexton taking a whip in his

hand crieth with a loud voice: No man servant or maid servant be so hardie as to come in heere; no Aetolian hee or shee presume to enter into this place.

17.

What is the cause that to this goddess, folke pray not for any blessings to their owne children, but for their nephews onely, to wit, their brothers or sisters children?

MAY it not be that *Ino* being a ladie that loved her sister wonderous well, in so much as she suckled at her owne breast a sonne of hers: but was infortunate in her owne children?

Or rather, because the said custome is otherwise very good and civill, inducing and moving folks hearts to carie love and affection to their kinreds.

18.

For what cause, were many rich men wont to consecrate and give unto Hercules the Disme or tenth of all their goods?

WHY may it not be upon this occasion, that *Hercules* himselfe being upon a time at [\[138\]](#) *Rome*, sacrifice the tenth cow of all the drove which he had taken from *Gerion*?

Or for that he freed and delivered the Romans from the tax and tribute of the Dismes which they were wont to pay out of their goods unto the Tuskans.

Or in case this may not go current for an authenticall historie, and worthie of credit; what and if we say that unto *Hercules* as to some great bellie god, and one who loved good cheere, they offered and sacrificed plenteously and in great liberalitie?

Or rather, for that by this meanes they would take downe and diminish a little, their excessive riches which ordinarily is an eie-sore and odious unto the citizens of a popular state, as if they meant to abate and bring low (as it were) that plethoricall plight and corpulency of the bodie, which being growen to the height is daungerous: supposing by such cutting off, and abridging of superfluities, to do honour and service most pleasing unto *Hercules*, as who joied highly in frugalitie: for that in his

life time he stood contented with a little, and regarded no delicacie or excesse whatsoever.

19.

Why begin the Romans their yeere at the moneth Januarie?

FOR in old time the moneth of March was reckoned first, as a man may collect by many other conjectures, and by this specially, that the fift moneth in order after March was called *Quintilis*, and the sixt moneth *Sextilis*, and all the rest consequently one after another until you come to the last, which they named December, because it was the tenth in number after March: which giveth occasion unto some for to thinke & say, that the Romans (in those daies) determined and accomplished their compleat yeere, not in twelve moneths but in ten: namely, by adding unto everie one of those ten moneths certain daies over and above thirtie. Others write, that December indeed was the tenth moneth after March; but Januarie was the eleventh, and Februarie the twelfth: in which moneth they used certaine expiatorie and purgatorie sacrifices, yea, and offered oblations unto the dead (as it were) to make an end of the yere. Howbeit afterwards they transposed this order, and ranged Januarie in the first place, for that upon the first day thereof, which they call the Calends of Januarie; the first Consuls that ever bare rule in *Rome* were enstalled, immediatly upon the deposition and expulsion of the kings out of the citie. But there seemeth to be more probability & likelihood of truth in their speech, who say, that *Romulus* being a martiall prince, and one that loved warre and feats of armes, as being reputed the sonne of *Mars*, set before all other moneths, that which caried the name of his father: howbeit *Numa* who succeeded next after him, being a man of peace, and who endeavored to withdraw the hearts and minds of his subjects and citizens from warre to agriculture, gave the prerogative of the first place unto Januarie, and honoured *Janus* most, as one who had beene more given to politick government, and to the husbandrie of ground, than to the exercise of warre and armes.

Consider moreover, whether *Numa* chose not this moneth for to begin the yeere withall, as best sorting with nature in regard of us; for otherwise in generall, there is no one thing of all those that by nature turne about circularly, that can be said first or last, but according to the severall institutions and ordinances of men, some begin the time at this point, others at that. And verely they that make the Winter solstice or hibernall Tropick the beginning of their yeere, do the best of all others: for that the Sunne ceasing then to passe farther, beginneth to returne and take his way againe toward us: for it seemeth, that both according to the course of nature, and also in regard of us, this season is most befitting to begin the yeere: for that it increaseth unto

us the time of daie light, and diminisheth the darknesse of night, and causeth that noble starre or planet to approach neerer and come toward us, the lord governour and ruler of all substance transitorie and fluxible matter whatsoever.

20.

Why do women when they dresse up and adorne the chappell or shrine of their feminine goddesse, whom they call Bona, never bring home for that purpose any branches of Myrtle tree: and yet otherwise have a delight to employ all sorts of leaves and flowers?

MAY it not be, for that, as some fabulous writers tell the tale, there was one ^[139]*Flavius* a soothsaier had a wife, who used secretely to drinke wine, and when she was surprised and taken in the manner by her husband, she was well beaten by him with myrtle rods: and for that cause they bring thither no boughs of myrtle: marry they offer libations unto this goddesse of wine, but forsooth they call it Milke.

Or is it not for this cause, that those who are to celebrate the ceremonies of this divine service, ought to be pure and cleane from all pollutions, but especially from that of *Venus* or lechery? For not onely they put out of the roome where the service is performed unto the said goddesse *Bona*, all men, but also whatsoever is besides of masculine sex; which is the reason that they so detest the myrtle tree, as being consecrated unto *Venus*, insomuch as it should seeme they called in old time that *Venus*, *Myrtea*, which now goeth under the name, of *Murcia*.

21.

What is the reason that the Latines doe so much honour and reverence the Woodpecker, and forbear altogether to do that bird any harme?

Is it for that *Picus* was reported in old time by the enchantments and sorceries of his wife, to have changed his owne nature, and to be metamorphozed into a Woodpecker; under which forme he gave out oracles, and delivered answeres unto those who propounded unto him any demaunds?

Or rather, because this seemeth a meere fable, and incredible tale: there is another storie reported, which carieth more probabilitie with it, and soundeth neerer unto trueth. That when *Romulus* and *Remus* were cast foorth and exposed to death; not onely a female wolfe gave them her teats to sucke, but also a certeine Woodpecker

flew unto them, and brought them food in her bill, and so fedde them: and therefore haply it is, that ordinarily in these daies wee may see, as *Nigidius* hath well observed; what places soever at the foot of an hill covered and shadowed with oakes or other trees a Woodpecker haunteth, thither customably you shall have a wolfe to repaire.

Or peradventure, seeing their maner is to consecrate unto every god one kinde of birde or other, they reputed this Woodpecker sacred unto *Mars*, because it is a couragious and hardy bird, having a bill so strong, that he is able to overthrow an oke therewith, after he hath jobbed and pecked into it as farre as to the very marrow and heart thereof.

22.

How is it that they imagine Janus to have had two faces, in which maner they use both to paint and also to cast him in mold.

Is it for that he being a Græcian borne, came from *Perrhæbia*, as we finde written in histories; and passing forward into *Italy*, dwelt in that countrey among the Barbarous people, who there lived, whose language and maner of life he changed?

Or rather because he taught and perswaded them to live together after a civill and honest sort, in husbandry and tilling the ground; whereas before time their manners were rude, and their fashions savage without law or justice altogether.

23.

What is the cause that they use to sell at Rome all things pertaining to the furniture of Funerals, within the temple of the goddesse Libitina, supposing her to be Venus.

THIS may seeme to be one of the sage and philosophicall inventions of king *Numa*, to the end that men should learne not to abhorre such things, nor to flie from them, as if they did pollute and defile them?

Or else this reason may be rendred, that it serveth for a good record and memoriall, to put us in minde, that whatsoever had a beginning by generation, shall likewise come to an end by death; as if one and the same goddesse were superintendent and governesse of nativitie and death: for even in the city of *Delphos* there is a pretie image of *Venus*, surnamed *Epitymbia*; that is to say sepulchrall: before which they use

to raise and call forth the ghosts of such as are departed, for to receive the libaments and sacred liquors powred forth unto them.

24.

Why have the Romans in every moneth three beginnings as it were, to wit, certeine principall and prefixed or preordained^[140] daies, and regard not the same intervall or space of daies betweene?

Is it because as *Juba* writeth in his chronicles, that the chiefe magistrates were wont upon the first day of the moneth to call and summon the people; whereupon it tooke the name of *Calends*: and then to denounce unto them that the *Nones* should be the fift day after; and as for the *Ides* they held it to be an holy and sacred day?

Or for that they measuring and determining the time according to the differences of the moone, they observed in her every moneth three principall changes and diversities: the first, when she is altogether hidden, namely during her conjunction with the sunne; the second when she is somewhat remooved from the beames of the sunne, & beginneth to shew herselfe croissant in the evening toward the West whereas the sunne setteth; the third, when she is at the full: now that occultation and hiding of hers in the first place, they named *Calends*, for that in their tongue whatsoever is secret & hidden, they say it is [*Clam*] and to hide or keepe close, they expresse by this word [*Celare*]; and the first day of the moones illumination, which wee heere in *Greece* tearme *Noumenia*, that is to say, the new-moone, they called by a most just name *Nonæ*, for that which is new and yoong, they tearme *Novum*, in manner as wee doe νέον. As for the *Ides*, they tooke their name of this word εἶδος, that signifieth beautie; for that the moone being then at the full, is in the very perfection of her beautie: or haply they derived this denomination of *Dios*, as attributing it to *Jupiter*: but in this we are not to search out exactly the just number of daies, nor upon a small default to slander and condemne this maner of reckoning, seeing that even at this day, when the science of Astrologie is growen to so great an increment, the inequalitye of the motion, and course of the moone surpasseth all experience of Mathematicians, and cannot be reduced to any certeine rule of reason.

25.

What is the cause that they repute the morrowes after Calends, Nones, and Ides, disasterous or dismall daies, either for to set forward upon any journey or voiage, or to march with an army into the field?

Is it because as many thinke, and as *Titus Livius* hath recorded in his storie; the Tribunes militarie, at what time as they had consular and soveraigne authoritie, went into the field with the Romane armie the morrow after the *Ides* of the moneth *Quintilis*, which was the same that July now is, and were discomfited in a battell by the Gaules, neere unto the river *Allia*: and cōsequently upon that overthrow, lost the very city it selfe of *Rome*: by which occasion the morrow after the *Ides*, being held and reputed for a sinister and unluckie day; superstition entring into mens heads, proceeded farther (as she loveth alwaies so to doe) and brought in the custome for to hold the morrow after the *Nones*, yea, and the morrow after the *Calends*, as unfortunate, and to be as religiously observed in semblable cases.

But against this there may be opposed many objections: for first and formost, they lost that battell upon another day, and calling it *Alliensis*, by the name of the river *Allia*, where it was stricken, they have it in abomination for that cause. Againe, whereas there be many daies reputed dismal and unfortunate, they doe not observe so precisely and with so religious feare, other daies of like denomination in every moneth, but ech day apart onely in that moneth wherein such and such a disaster, hapned: and that the infortunitie of one day should draw a superstitious feare simply upon all the morrowes after *Calends*, *Nones*, and *Ides*, carieth no congruitie at all, nor apparence of reason.

Consider moreover and see, whether, as of moneths they used to consecrate the first to the gods celestiall; the second to the terrestriall, or infernall, wherein they performe certeine expiatorie ceremonies and sacrifices of purification, and presenting offirings and services to the dead: so of the daies in the moneth, those which are chiefe and principall, as hath beene said, they would not have to be kept as sacred and festivall holidiaies; but such as follow after, as being dedicated unto the spirits, called *Dæmons*, and those that are departed; they also have esteemed cōsequently as unhappy, & altogether unmeet either for to execute or to take in hand any businesse: for the Greeks adoring and serving the gods upon their new moones and first daies of the moneth, have attributed the second daies unto the demi-gods and *Dæmons*: like as at their feasts also they drinke the second cup unto their demi-gods, and demi-goddesses. In summe, Time is a kinde of number, and the beginning of number is (I wot not what,) some divine thing, for it is Unitie: and that which commeth next after it is Deuz or two, cleane opposite unto the said beginning, and is the first of all even numbers: as for the even number it is defective, unperfect, and indefinit, whereas contrariwise, the uneven or odde number it selfe is finite, complet, and absolute: and for this cause like as the *Nones* succeed the *Calends* five daies after; so the *Ides* follow the *Nones* nine daies after them; for the uneven and odde numbers doe determine those beginnings, or principall daies; but those which presently ensue after the said principall daies being even, are neither ranged in any order, nor have power

and puissance: and therefore men doe not enterprise any great worke, nor set forth voiage or journey upon such daies: and heereto wee may to good purpose annex that pretie speech of *Themistocles*: For when the morrow (quoth he) upon a time quarrelled with the festivall day which went next before it, saying, that herselfe was busied and tooke a great deale of pains, preparing & providing with much travel those goods which the feast enjoied at her ease, with all repose, rest, and leisure: the Festivall day made this answer: Thou saidst true indeed; but if I were not, where wouldst thou be? This tale *Themistocles* devised, and delivered unto the Athenian captaines, who came after him; giving them thereby to understand, that neither they nor any acts of theirs would ever have beene seene, unlesse hee before them had saved the citie of Athens. Forasmuch then, as every enterprise and voiage of importance hath need of provision, and some preparatives; and for that the Romans in old time upon their festivall daies, dispensed nothing, nor took care for any provision; being wholly given and devoted at such times to the service & worship of God, doing that, and nothing else; like as even yet at this day, when the priests begin to sacrifice, they pronounce with a loud voice before all the companie there assembled HOC AGE, that is to say, Minde this, and doe no other thing: verie like it is, and standeth to great reason, that they used not to put themselves upon the way for any long voiage, nor tooke in hand any great affaire or businesse presently after a festivall day, but kept within house all the morrow after, to thinke upon their occasions, and to provide all things necessarie for journey or exploit: or we may conjecture, that as at this very day the Romans after they have adored the gods, and made their praiers unto them within their temples, are woont to stay there a time, and sit them downe; even so they thought it not reasonable to cast their great affaires so, as that they should immediately follow upon any of their festivall daies; but they allowed some respite and time betweene, as knowing full well, that businesses carie with them alwaies many troubles and hinderances, beyond the opinion, expectation, and will of those who take them in hand.

26.

What is the cause that women at Rome, when they mourne for the dead, put on white robes, and likewise weare white cawles, coifes and kerchiefs upon their heads.

MAY it not be that for to oppose themselves against hell and the darkenesse thereof, they conforme their raiment and attire to that colour which is cleere and bright?

Or doe they it not rather for this: that like as they clad and burie the dead corps in white clothes, they suppose, that those who are next of kin, and come nearest about

them, ought also to weare their liverie? Now the bodie they doe in this wise decke, because they cannot adorne the soule so; and it they are willing to accompanie as lightsome, pure and net, as being now at the last delivered and set free, and which hath performed a great a variable combat.

Or rather, we may guesse thus much thereby: that in such cases, that which is most simple and least costly, is best beseeming; whereas clothes of any other colour died, do commonly bewray either superfluitie or curiositie: for we may say even aswell of blacke, as of purple: These robes are deceitfull: these colours also are counterfeit. And as touching that which is of it selfe blacke, if it have not that tincture by diers art, surely it is so coloured by nature, as being mixed and compounded with obscuritie: and therefore there is no colour els but white, which is pure, unmixt, and not stained and sullied with any tincture, and that which is inimitable; in which regard, more meet and agreeable unto those who are interred, considering that the dead is now become simple, pure, exempt from all mixtion, and in very trueth, nothing els but delivered from the bodie, as a staine and infection hardly scowred out and rid away. Semblably, in the citie of *Argos*, whensoever they mourned, the maner was to weare white garments, washed (as *Socrates* said) in faire and cleere water.

27.

What is the reason that they esteeme all the walles of the citie sacred and inviolable, but not the gates.

Is it (as *Varro* saith) because we ought to thinke the walles holie, to the end that we may fight valiantly, and die generously in the defence of them? for it seemeth that this was the cause, why *Romulus* killed his owne brother *Remus*, for that he presumed to leape over an holy and inviolable place: whereas contrariwise, it was not possible to consecrate and hallow the gates, thorow which there must needs be transported many things necessary, and namely, the bodies of the dead. And therefore, they who begin to found a citie, environ and compasse first with a plough all that pourprise and precinct wherein they meant to build, drawing the said plough with an oxe and a cow coupled together in one yoke: afterwards, when they have traced out all the said place where the walles should stand, they measure out as much ground as will serve for the gates, but take out the plough-share, and so passe over that space with the bare plough, as if they meant thereby, that all the furrow which they cast up and eared, should be sacred and inviolable.

28.

What is the reason, that when their children are to sweare by Hercules, they will not let them do it within doores, but cause them to go forth of the house, and take their oath abroad?

Is it because (as some would have it) that they thinke *Hercules* is not delighted with keeping close within house and fitting idely, but taketh pleasure to live abroad and lie without?

Or rather, for that of all the gods, *Hercules* is not (as one would say) home-bred, but a stranger, come amongst them from afarre? For even so they would not sweare by *Bacchus*, under the rooffe of the house, but went forth to do it; because he also is but a stranger among the gods.

Or haply, this is no more but a word in game and sport, given unto children: and besides (to say a trueth) it may be a meanes to withholde and restraine them from swearing so readily and rashly, as *Phavorinus* saith: for this device causeth a certeine premeditate preparation, and giveth them (whiles they goe out of the house) leasure and time to consider better of the matter. And a man may conjecture also with *Phavorinus*, and say with him: That this fashion was not common to other gods, but proper to *Hercules*: for that we finde it written, that he was so religious, so respective and precise in his oath, that in all his life time he never sware but once, and that was onely to *Phileus* the sonne of *Augias*. And therefore, the prophetisse at *Delphos*, named *Pythia*, answered thus upon a time to the Lacedæmonians:

*When all these oaths you once forfend,
Your state (be sure) shall dayly mend.*

29.

What should be the reason, that they would not permit the new wedded bride to passe of herselfe over the doore-sill or threshold, when she is brought home to her husband's house, but they that accompanie her, must lift her up betweene them from the ground, and so convey her in.

Is it in remembrance of those first wives whom they ravished perforce from the Sabines, who entred not into their houses of themselves with their good will, but were carried in by them, in this maner?

Or is it perhaps, because they would be thought to goe against their willes into that place where they were to lose their maidenhead?

Or haply it may be, that a wedded wife ought not to goe foorth of her doores, and abandon her house, but perforce, like as she went first into it by force. For in our countrey of *Bæotia*, the maner is, to burne before the doore where a new married wife is to dwell, the axel tree of that chariot or coatch in which she rode when she was brought to her husbands house. By which ceremonie, thus much she is given to understand, that will she nill she, there she must now tarrie, considering that it which brought her thither, is now gone quite and consumed.

30.

Wherefore do they at Rome, when they bring a new espoused bride home to the house of her husband, force her to say these words unto her spouse: Where you are Cajus, I will be Caja?

Is it to testifie by these words, that she entreth immediately to communicate with him in all goods, and to be a governesse and commaunder in the house as well as he? for it implieth as much, as if she should say; where you are lord and master, I will be lady and mistres. Now these names they used as being common, and such as came first to hand, and for no other reason else: like as the Civill lawiers use ordinarily these names, *Cajus*, *Seius*, *Lucius*, and *Titius*: the Philosophers in their schooles, *Dion* and *Theon*.

Or peradventure it is in regard of *Caia Cæcilia* a beautifull and vertuous lady, who in times past, espoused one of the sonnes of king *Tarquinius*: of which dame there is yet to be seene even at this day one image of brasse, within the temple of the god *Sanctus*: and there likewise in old time, her slippers, her distaffe and spindels laid up for to bee seene: the one to signifie that she kept the house well, and went not ordinarily abroad; the other to shew how she busied herselfe at home.

31.

How commeth it, that they use to chaunt ordinarily at Weddings, this word so much divulged, Talassio?

Is it not of *Talasia*, the Greeke word, which signifieth yarne: for the basket wherein women use to put in their rolles of carded wooll, they name *Talosos* in Greeke, and *Calathus* in Latine? Certes they that lead the bride home, cause her to sit upon a fliece of wooll, then bringeth she foorth a distaffe and a spindle, and with wooll all to hangeth and decketh the dore of her husbands house.

Or rather, if it be true which historians report: There was sometime a certaine yoong gentleman, very valiant and active in feats of armes, and otherwise of excellent parts and singular wel conditioned, whose name was *Talasius*: and when they ravished and caried away the daughters of the Sabines who were come to *Rome*, for to behold the solemnitie of their festivall games and plaies: certaine meane persons, such yet as belonged to the traine & retinue of *Talasius* aforesaid, had chosen foorth & were carying away, one damosel above the rest most beautiful of visage, and for their safety and securitie as they passed along the streets, cried out aloud *Talasio, Talasio*, that is to say, for *Talasius*, for *Talasius*; to the end that no man should be so hardy as to approach nere unto them, nor attempt to have away the maiden from them, giving it out, that they caried her for to be the wife of *Talasius*; and others meeting them upon the way, joined with them in company for the honour of *Talasius*, and as they followed after, highly praised their good choice which they had made, praying the gods to give both him and her joy of their marriage, and contentment to their hearts desire. Now for that this marriage prooved happy and blessed, they were woont ever after in their wedding songs to rechant and resound this name, *Talasius*, like as the maner is among the Greeks to sing in such carrols, *Hymenæus*.

32.

What is the reason that in the moneth of May, they use at Rome to cast over their wooden bridge into the river, certaine images of men, which they call Argeos?

Is it in memoriall of the Barbarians who sometimes inhabited these parts, and did so by the Greeks, murdering them in that maner as many of them as they could take? But *Hercules* who was highly esteemed among them for his vertue, abolished this cruell fashion of killing of strangers, and taught them this custome to counterfet their auncient superstitions, and to fling these images in stead of them: now in old time our ancestors used to name all Greeks of what countrey soever they were, *Argeos*: unlesse haply a man would say, that the Arcadians reputing the Argives to be their enemies, for that they were their neighbour borderers, such as fled with *Evander* out of *Arcadia*, and came to inhabit these quarters, reteined still the old hatred and ranckor, which time out of minde had taken root, and beene settled in their hearts against the said Argives.

33.

What is the cause that the Romans in old time never went foorth out of their houses to supper, but they caried with them their yoong sonnes, even when

they were but in their very infancie and childhood.

WAS not this for the very same reason that *Lycurgus* instituted and ordeined, that yoong children should ordinarily be brought into their halles where they used to eat in publicke, called *Phiditia*, to the end that they might be inured and acquainted betimes, not to use the pleasures of eating and drinking immoderately, as brutish and ravenous beasts are wont to doe; considering that they had their elders to oversee them, yea, and to controll their demeanour: and in this regard haply also, that their fathers themselves should in their carriage be more sober, honest, and frugall, in the presence of their children: for looke where old folke are shamelesse, there it can not chuse but (as *Plato* saith) children and youth will be most gracelesse and impudent.

34.

What might the reason be, that whereas all other Romans made their offerings, ceremonies, and sacrifices for the dead, in the moneth of February: Decimus Brutus as Cicero saith, was wont to doe the same in the moneth of December: now this Brutus was he who first invaded the countrey of Portugall, and with an armie passed over the river of Lethe, that is to say, oblivion.

MAY it not be, that as the most part of men used not to performe any such services for the dead, but toward the end of the moneth, and a little before the shutting in of the evening; even so it seemeth to carie good reason, to honour the dead at the end of the yeere; and you wot well that December was the last moneth of all the yeere.

Or rather, it is because this was an honour exhibited to the deities terrestriall: and it seemeth that the proper season to reverence and worship these earthly gods, is when the fruits of the earth be fully gathered and laid up.

Or haply, for that the husband men began at this time to breake up their grounds against their seednesse: it was meet and requisite to have in remembrance those gods which are under the ground.

Or haply, because this moneth is dedicate and consecrated by the Romans to *Saturne*; for they counted *Saturne* one of the gods beneath, and none of them above: and withall, considering the greatest and most solemne feast, which they call *Saturnalia*, is holden in this moneth, at what time as they seeme to have their most frequent meeting, and make best cheere, he thought it meet and reasonable that the dead also should enjoy some little portion thereof.

Or it may be said, that it is altogether untrue that *Decimus Brutus* alone sacrificed for the dead in this moneth: for certeine it is that there was a certeine divine service performed to *Acca Larentia*, and solemne effusions and libaments of wine and milke were powred upon her sepulchre in the moneth of December.

35.

Why honoured the Romans this Acca Larentia so highly, considering she was no better than a strumpet or courtisan?

FOR you must thinke, that the histories make mention of another *Acca Larentia*, the nurse of *Romulus*, unto whom they do honour in the moneth of Aprill. As for this courtizan *Larentia*, she was (as men say) surnamed *Fabula*, and came to be so famous and renowned by such an occasion as this. A certeine sexton of *Hercules* his temple, having little els to doe, and living at ease (as commonly such fellowes doe) used for the most part to spend all the day in playing at dice and with cokall bones: and one day above the rest, it fortunied, that meeting with none of his mates and play-fellowes who were woont to beare him company at such games, and not knowing what to do nor how to passe the time away, he thought with himselfe to challenge the god whose servant he was, to play at dice with him, upon these conditions: That if himselfe woon the game, *Hercules* should be a meanes for him of some good lucke and happy fortune; but in case he lost the game, he should provide for *Hercules* a good supper, and withall, a pretie wench and a faire, to be his bedfellow: these conditions being agreed upon and set downe, he cast the dice, one chance for himselfe, and another for the god; but his hap was to be the loser: whereupon minding to stand unto his challenge, and to accomplish that which he had promised, he prepared a rich supper for *Hercules* his god, and withall, sent for this *Acca Larentia*, a professed courtisan and common harlot, whom he feasted also with him, and after supper bestowed her in a bed within the very temple, shut the doores fast upon, and so went his way. Now the tale goes forsooth, that in the night, *Hercules* companied with her, not after the maner of men, but charged her, that the next morning betimes she should go into the market-place, and looke what man she first met withall, him she should enterteine in all kindnesse, and make her friend especially. Then *Larentia* gat up betimes in the morning accordingly, and chanced to encounter a certeine rich man and a stale bachelor, who was now past his middle age, and his name was *Taruntius*; with him she became so familiarly acquainted, that so long as he lived, she had the command of his whole house; and at his death, was by his last will and testament instituted inheritresse of all that he had. This *Larentia* likewise afterward departed this life, and left all her riches unto the citie of *Rome*: whereupon this honour abovesaid was done unto her.

36.

What is the cause, that they name one gate of the citie Fenestra, which is as much to say, as window; neere unto which adjoineth the bed-chamber of Fortune?

Is it for that king *Servius* a most fortunate prince, was thought & named to lie with Fortune, who was woont to come unto him by the window? or is this but a devised tale? But in trueth, after that king *Tarquinius Priscus* was deceased, his wife *Tanaquillis* being a wise ladie, and endued with a roiall mind, putting forth her head, and bending forward her bodie out of her chamber window, made a speech unto the people, perswading them to elect *Servius* for their king. And this is the reason that afterwards the place reteined this name, *Fenestra*.

37.

What is the reason, that of all those things which be dedicated and consecrated to the gods, the custome is at Rome, that onely the spoiles of enemies conquered in the warres, are neglected and suffered to run to decay in processe of time: neither is there any reverence done unto them, nor repaired be they at any time, when they wax olde?

WHETHER is it, because they (supposing their glory to fade and passe away together with these first spoiles) seeke evermore new meanes to winne some fresh marks and monuments of their vertue, and to leave them same behinde them.

Or rather, for that seeing time doth waste and consume these signs and tokens of the enmity which they had with their enemies, it were an odious thing for them, and very invidious, if they should refresh and renew the remembrance thereof: for even those among the Greeks, who first erected their trophes or pillars of brasse and stone, were not commended for so doing.

38.

What is the reason that Quintus Metellus the high priest, and reputed besides a wise man and a politike, forbad to observe auspices, or to take presages by flight of birds, after the moneth Sextilis, now called August.

Is it for that, as we are woont to attend upon such observations about noone or in the beginning of the day, at the entrance also and toward the middle of the moneth: but

we take heed and beware of the daies declination, as inauspicate and unmeet for such purposes; even so *Metellus* supposed, that the time after eight moneths was (as it were) the evening of the yeere, and the latter end of it, declining now and wearing toward an end.

Or haply, because we are to make use of these birds, and to observe their flight for presage, whiles they are entire, perfect and nothing defective, such as they are before Summer time. But about Autumne some of them moult, grow to be sickly and weake; others are over young and too small; and some againe appeare not at all, but like passengers are gone at such a time into another countrey.

39.

What is the cause, that it was not lawfull for them who were not prest soldiours by oth and enrolled, although upon some other occasions they conversed in the campe, to strike or wound an enemy? And verely Cato himselfe the elder of that name signified thus much in a letter missive which he wrote unto his sonne: wherein he straitly charged him, that if he had accomplished the full time of his service, and that his captain had given him his conge and discharge, he should immediately returne: or in case he had leifer stay still in the campe, that he should obtaine of his captaine permission and licence to hurt and kill his enemy.

Is it because there is nothing else but necessitie alone, doeth warrantize the killing of a man: and he who unlawfully and without expresse commaundement of a superiour (unconstrained) doth it, is a meere homicide and manslaier. And therefore *Cyrus* commended *Chrysantas*, for that being upon the verie point of killing his enemy, as having lifted up his cemiter for to give him a deadly wound, presently upon the sound of the retreat by the trumpet, let the man go, and would not smite him, as if he had beene forbidden so to do.

Or may it not be, for that he who presenteth himselfe to fight with his enemy, in case he shrink, and make not good his ground, ought not to go away cleere withal, but to be held faulty and to suffer punishment: for he doth nothing so good service that hath either killed or wounded an enemy, as harme and damage, who reculeth backe or flieth away: now he who is discharged from warfare, and hath leave to depart, is no more obliged and bound to militarie lawes: but he that hath demaunded permission to do that service which sworne and enrolled souldiers performe, putteth himselfe againe under the subjection of the law and his owne captaine.

How is it, that the priest of Jupiter, is not permitted to annoint himselfe abroad in the open aire?

Is it for that in old time it was not held honest and lawfull for children to do off their clothes before their fathers; nor the sonne in law in the presence of his wives father; neither used they the stouph or bath together: now is *Jupiter* reputed the priests or *Flamines* father: and that which is done in the open aire, seemeth especially to be in the verie eie and sight of *Jupiter*?

Or rather, like as it was thought a great sinne and exceeding irreverence, for a man to turne himselfe out of his apparrell naked, in any church, chappell, or religious and sacred place; even so they carried a great respect unto the aire and open skie, as being full of gods, demi-gods, and saints. And this is the verie cause, why we doe many of our necessarie businesses within doores, enclosed and covered with the rooffe of our houses, and so remooved from the eies as it were of the deitie. Moreover, some things there be that by law are commaunded and enjoined unto the priest onely; and others againe unto all men, by the priest: as for example, heere with us in *Bæotia*; to be crowned with chaplets of flowers upon the head; to let the haire grow long; to weare a sword, and not to set foot within the limits of *Phocis*, pertaine all to the office and dutie of the captaine generall and chiefe ruler: but to tast of no new fruits before the Autumnall Aequinox be past; nor to cut and prune a vine but before the Aequinox of the Spring, be intimated and declared unto all by the said ruler or captaine generall: for those be the verie seasons to do both the one & the other. In like case, it should seeme in my judgement that among the Romans it properly belonged to the priest; not to mount on horseback; not to be above three nights out of the citie; not to put off his cap, whereupon he was called in the Roman language, *Flamen*. But there be many other offices and duties, notified and declared unto all men by the priest, among which this is one, not to be enhuiled or anointed abroad in the open aire: For this manner of anointing drie without the bath, the Romans mightily suspected and were afraid of: and even at this day they are of opinion, that there was no such cause in the world that brought the Greeks under the yoke of servitude and bondage, and made them so tender and effeminate, as their halles and publike places where their yong men wrestled & exercised their bodies naked: as being the meanes that brought into their cities, much losse of time, engendred idlenesse, bred lazie slouth, and ministred occasion & opportunity of lewdnesse and vilany; as namely, to make love unto faire boies, and to spoile and marre the bodies of young men with sleeping, with walking at a certeine measure, with stirring according to motions, keeping artificiall compasse, and with observing rules of exquisit diet. Through which fashions, they see not, how (ere they be aware) they be fallen from exercises of armes, and have

cleane forgotten all militarie discipline: loving rather to be held and esteemed good wrestlers, fine dauncers, conceited pleasants, and faire minions, than hardie footmen, or valiant men of armes. And verely it is an hard matter to avoid and decline these inconveniences, for them that use to discover their bodies naked before all the world in the broad aire: but those who annoint themselves closely within doores, and looke to their bodies at home are neither faulty nor offensive.

41.

What is the reason that the auncient coine and mony in old time, caried the stampe of one side of Ianus with two faces: and on the other side, the prow or the poope of a boat engraved therein.

WAS it not as many men do say, for to honour the memorie of *Saturne*, who passed into *Italy* by water in such a vessel? But a man may say thus much as well of many others: for *Janus*, *Evander*, and *Aeneas*, came thither likewise by sea; and therefore a man may peradventure gesse with better reason; that whereas some things serve as goodly ornaments for cities, others as necessarie implements: among those which are decent and seemely ornaments, the principall is good government and discipline, and among such as be necessary, is reckoned, plentie and abundance of victuals: now for that *Janus* instituted good government, in ordeining holsome lawes, and reducing their manner of life to civilitie, which before was rude and brutish, and for that the river being navigable, furnished them with store of all necessary commodities, whereby some were brought thither by sea, others from the land; the coine caried for the marke of a law-giver, the head with two faces, like as we have already said, because of that change of life which he brought in; and of the river, a ferrie boate or barge: and yet there was another kinde of money currant among them, which had the figure portraied upon it, of a beefe, of a sheepe, and of a swine; for that their riches they raised especially from such cattle, and all their wealth and substance consisted in them. And heereupon it commeth, that many of their auncient names, were *Ovilij*, *Bubulci* and *Porcij*, that is to say, Sheepe-reeves, and Neat-herds, and Swineherds according as *Fenestella* doth report.

42.

What is the cause that they make the temple of Saturne, the chamber of the citie, for to keepe therein the publicke treasure of gold and silver: as also their arches, for the custodie of all their writings, rolles, contracts and evidences whatsoever.

Is it by occasion of that opinion so commonly received, and the speech so universally currant in every mans mouth, that during the raigne of *Saturne*, there was no avarice nor injustice in the world; but loialtie, truth, faith, and righteousnesse caried the whole sway among men.

Or for that he was the god who found out fruits, brought in agriculture, and taught husbandry first; for the hooke or sickle in his hand signifieth so much, and not as *Antimachus* wrote, following therein and beleeving *Hesiodus*:

*Rough Saturne with his hairy skinne, against
all law and right,
Of Aemons sonne, sir Ouranus, or Cœlus
sometime hight,
Those privy members which him gat, with
hooke a-slant off-cut.
And then anon in fathers place of reigne,
himselſe did put.*

Now the abundance of the fruits which the earth yeeldeth, and the vent or disposition of them, is the very mother that bringeth foorth plentie of monie: and therefore it is that this same god they make the author and maintainer of their felicitie: in testimonie whereof, those assemblies which are holden every ninth day in the cōmon place of the city, called *Nundinæ*, that is to say, Faires or markets, they esteeme consecrated to *Saturne*: for the store & foison of fruits is that which openeth the trade & comerce of buying and selling. Or, because these reasons seeme to be very antique; what and if we say that the first man who made (of *Saturns* temple at *Rome*) the treasurie or chamber of the citie was *Valerius Poplicola*, after that the kings were driven out of *Rome*, and it seemeth to stand to good reason that he made choise thereof, because he thought it a safe and secure place, eminent and conspicuous in all mens eies, and by consequence hard to be surprised and forced.

43.

What is the cause that those who come as embassadours to Rome, from any parts whatsoever, go first into the temple of Saturne, and there before the Questors or Treasurers of the citie, enter their names in their registers.

Is it for that *Saturne* himselſe was a stranger in *Italy*, and therefore all strangers are welcome unto him?

Or may not this question be solved by the reading of histories? for in old time these Questors or publick Treasurers, were wont to send unto ambassadors certeine presents, which were called *Lautia*: and if it fortun'd that such ambassadors were sicke, they tooke the charge of them for their cure; and if they chanced to die, they enterred them likewise at the cities charges. But now in respect of the great resort of ambassadors from out of all countries, they have cut off this expense: howbeit the auncient custome yet remaineth, namely, to present themselves to the said officers of the treasure, and to be registred in their booke.

44.

Why is it not lawfull for Jupiters priest to sweare?

Is it because an oth ministered unto free borne men, is as it were the racke and torture tendred unto them? for certeine it is, that the soule as well as the bodie of the priest, ought to continue free, and not be forced by any torture whatsoever.

Or, for that it is not meet to distrust or discredit him in small matters, who is beleev'd in great and divine things?

Or rather because every oth ended with the detestation and malediction of perjurie: and considering that all maledictions be odious and abominable; therefore it is not thought good that any other priests whatsoever, should curse or pronounce any malediction: and in this respect was the priestesse of *Minerva* in *Athens* highly commended, for that she would never curse *Alcibiades*, notwithstanding the people commanded her so to doe: For I am (quoth she) ordeined a priestesse to pray for men, and not to curse them.

Or last of all, was it because the perill of perjurie would reach in common to the whole common wealth, if a wicked, godlesse and forsworne person, should have the charge and superintendance of the praiers, vowes, and sacrifices made in the behalfe of the citie.

45.

What is the reason that upon the festivall day in the honour of Venus, which solemnitie they call Veneralia, they use to powre foorth a great quantitie of wine out of the temple of Venus.

Is it as some say upon this occasion, that *Mezentius* sometime captaine generall of the Tuscans, sent certaine ambassadors unto *Aeneas*, with commission to offer peace unto him, upon this condition, that he might receive all the wine of that ^[141]yeeres vintage. But when *Aeneas* refused so to doe, *Mezentius* (for to encourage his souldiers the Tuskans to fight manfully) promised to bestow wine upon them when he had woon the field: but *Aeneas* understanding of this promise of his, consecrated and dedicated all the said wine unto the gods: and in trueth, when he had obtained the victorie, all the wine of that yeere, when it was gotten and gathered together, he powred forth before the temple of *Venus*.

Or, what if one should say, that this doth symbolize thus much: That men ought to be sober upon festivall daies, and not to celebrate such solemnities with drunkennesse; as if the gods take more pleasure to see them shed wine upon the ground, than to powre overmuch thereof downe their throats?

46.

What is the cause that in ancient time they kept the temple of the goddesse Horta, open alwaies.

WHETHER was it (as *Antistius Labeo* hath left in writing) for that, seeing *Hortari* in the Latine tongue signifieth to incite and exhort, they thought that the goddesse called *Horta*, which stirreth and provoketh men unto the enterprise and execution of good exploits, ought to be evermore in action, not to make delaies, nor to be shut up and locked within dores, ne yet to sit still and do nothing?

Or rather, because as they name her now a daies *Hora*, with the former syllable long, who is a certaine industrious, vigilant and busie goddesse, carefull in many things: therefore being as she is, so circumspect and so watchfull, they thought she should be never idle, nor rechlesse of mens affaires.

Or els, this name *Hora* (as many others besides) is a meere Greeke word, and signifieth a deitie or divine power, that hath an eie to overlooke, to view and controll all things; and therefore since she never sleepeth, nor laieth her eies together, but is alwaies broad awake, therefore her church or chapel was alwaies standing open.

But if it be so as *Labeo* saith, that this word *Hora* is rightly derived of the Greeke verbe ὀρμᾶν or παρορμᾶν, which signifieth to incite or provoke; consider better, whether this word *Orator* also, that is to say, one who stirrith up, exhorteth, encourageth, and adviseth the people, as a prompt and ready counsellor, be not

derived likewise in the same sort, and not of ἀρα or εὐχή, that is to say, praier and supplication, as some would have it.

47.

Wherefore founded Romulus the temple of Vulcane without the citie of Rome?

Is it for the jealousie (which as fables do report) *Vulcane* had of *Mars*, because of his wife *Venus*: and so *Romulus* being reputed the sonne of *Mars*, would not vouchsafe him to inhabit and dwell in the same citie with him? or is this a meere foolerie and senselesse conceit?

But this temple was built at the first, to be a chamber and parlour of privie counsell for him and *Tatius* who reigned with him; to the end that meeting and sitting there in consultation together with the Senatours, in a place remote from all troubles and hinderances, they might deliberate as touching the affaires of State with ease and quietnesse.

Or rather, because *Rome* from the very first foundation was subject to fire by casualtie, hee thought good to honour this god of fire in some sort, but yet to place him without the walles of the citie.

48.

What is the reason, that upon their festivall day called Consualia, they adorned with garlands of flowers as well their asses as horses, and gave them rest and repose for the time?

Is it for that this solemnitie was holden in the honour of *Neptune* surnamed *Equestris*, that is to say, the horseman? and the asse hath his part of this joyfull feast, for the horses sake?

Or, because that after navigation and transporting of commodities by sea was now found out and shewed to the world, there grew by that meanes (in some sort) better rest and more ease to poore labouring beasts of draught and carriage.

49.

How commeth it to passe, that those who stood for any office and magistracie, were woont by an old custome (as Cato hath written) to present themselves unto the people in a single robe or loose gowne, without any coat at all under it?

WAS it for feare lest they should carrie under their robes any money in their bosomes, for to corrupt, bribe, and buy (as it were) the voices and suffrages of the people?

Or was it because they deemed men woorthy to beare publicke office and to governe, not by their birth and parentage, by their wealth and riches, ne yet by their shew and outward reputation, but by their wounds and scarres to be seene upon their bodies. To the end therefore, that such scarres might be better exposed to their fight whom they met or talked withall, they went in this maner downe to the place of election, without inward coats in their plaine gownes.

Or haply, because they would seeme by this nuditie and nakednesse of theirs, in humilitie to debase themselves, the sooner thereby to curry favor, and win the good grace of the commons, even as well as by taking them by the right hand, by suppliant craving, and by humble submission on their very knees.

50.

What is the cause that the Flamen or priest of Jupiter, when his wife was once dead, used to give up his Priesthood or Sacerdotall dignitie, according as Ateius hath recorded in his historie.

WAS it for that he who once had wedded a wife, and afterwards buried her, was more infortunate, than he who never had any? for the house of him who hath married a wife, is entire and perfect, but his house who once had one, and now hath none, is not onely unperfect, but also maimed and lame?

Or might it not bee that the priests wife was consecrated also to divine service together with her husband; for many rites and ceremonies there were, which he alone could not performe, if his wife were not present: and to espouse a new wife immediately upon the decease of the other, were not peradventure possible, nor otherwise would well stand with decent and civill honesty: wherupon neither in times past was it lawful for him, nor at this day as it should seem, is he permitted to put away his wife: and yet in our age *Domitian* at the request of one, gave licence so to doe: at this dissolution and breach of wedlocke, other priests were present and

assistant, where there passed among them many strange, hideous, horrible, and monstrous ceremonies.

But haply a man would lesse wonder at this, if ever he knew and understood before, that when one of the Censors died, the other of necessity must likewise quit & resigne up his office. Howbeit, when *Livius Drusus* was departed this life, his companion in office *Aemylius Scaurus*, would not give over and renounce his place, untill such time as certeine Tribunes of the people, for his contumacie commanded, that he should be had away to prison.

51.

What was the reason that the idols Lares, which otherwise properly be called Præstites, had the images of a dogge standing hard by them, and the Lares themselves were portraied clad in dogges skinnnes?

Is it because this word *Præstites* signifieth as much as ὡροεστῶτες, that is to say, Presidents, or standing before as keepers: and verily such Presidents ought to be good house-keepers, and terrible unto all strangers, like as a dogge is; but gentle and loving to those of the house.

Or rather, that which some of the Romans write is true, like as *Chrysippus* also the philosopher is of opinion; namely, that there be certeine evill spirits which goe about walking up and downe in the world; and these be the butchers and tormentors that the gods imploy to punish unjust and wicked men: and even so these *Lares* are held to be malignant spirits, & no better than divels, spying into mens lives, and prying into their families; which is the cause that they now be arraied in such skinnnes, and a dogge they have sitting hard by them, whereby thus much in effect is given to understand, that quicke sented they are, and of great power both to hunt out, and also to chastice leud persons.

52.

What is the cause that the Romans sacrifice a dogge unto the goddesse called Genita-Mana, and withall make one praier unto her, that none borne in the house might ever come to good?

Is it for that this *Genita-Mana* is counted a *Dæmon* or goddesse that hath the procuration and charge both of the generation and also of the birth of things

corruptible? for surely the word implieth as much, as a certaine fluxion and generation, or rather a generation fluent or fluxible: and like as the Greeks sacrificed unto *Proserpina*, a dog, so do the Romans unto that *Genita*, for those who are borne in the house. *Socrates* also saith, that the Argives sacrificed a dogge unto *Ilithya*, for the more easie and safe deliverance of child-birth. Furthermore, as touching that Praier, that nothing borne within the house might ever proove good, it is not haply meant of any persons, man or woman, but of dogges rather which were whelped there; which ought to be, not kinde and gentle, but curst and terrible.

Or peradventure, for that they ^[142]that die (after an elegant maner of speech) be named Good or quiet: under these words they covertly pray, that none borne in the house might die. And this need not to seeme a strange kinde of speech; for *Aristotle* writeth, that in a certaine treatie of peace betweene the Arcadians & Lacedemonians, this article was comprised in the capitulations: That they should make none ^[143]of the Tegeates, Good, for the aid they sent, or favour that they bare unto the Lacedæmonians; by which was meant, that they should put none of them to death.

53.

What is the reason, that in a solemne procession exhibited at the Capitoline plaies, they proclame (even at this day) by the voice of an herald, port-sale of the Sardians? and before all this solemnitie and pompe, there is by waye of mockerie and to make a laughing stocke, an olde man led in a shew, with a jewell or brooch pendant about his necke, such as noble mens children are woont to weare, and which they call Bulla?

Is it for that the Veientians, who in times past being a puissant State in Tuscan, made warre a long time with *Romulus*: whose citie being the last that he woonne by force, he made sale of many prisoners and captives, together with their king, mocking him for his stupiditie and grosse follie. Now for that the Tuscans in ancient time were descended from the Lydians, and the capitall citie of *Lydia* is *Sardis*, therefore they proclaimed the sale of the Veientian prisoners under the name of the Sardians; and even to this day in scorne and mockerie, they reteine still the same custome.

54.

Whence came it, that they call the shambles or butcherie at Rome where flesh is to be solde, Macellum?

Is it for that this word *Macellum*, by corruption of language is derived of Μάγειρος, that in the Greek tongue signifieth a cooke? like as many other words by usage and custome are come to be received; for the letter C. hath great affinitie with G. in the Romane tongue: and long it was ere they had the use of G. which letter *Spurius Carbillius* first invented. Moreover, they that muffle and stammer in their speech, pronounce ordinarily L. instead of R.

Or this question may be resolved better by the knowledge of the Romane historie: for we reade therein, that there was sometime a violent person and a notorious thiefe at *Rome*, named *Macellus*, who after he had committed many outrages and robberies, was with much ado in the end taken and punished: and of his goods which were forfeit to the State, there was built a publike shambles or market place to sell flesh-meats in, which of his name was called *Macellum*.

55.

Why upon the Ides of Januarie, the minstrels at Rome who plaied upon the hautboies, were permitted to goe up and downe the city disguised in womens apparell?

AROSE this fashion upon that occasion which is reported? namely, that king *Numa* had granted unto them many immunities and honorable priviledges in his time, for the great devotion that hee had in the service of the gods? and for that afterwards, the Tribunes militarie who governed the citie in Consular authority, tooke the same from them, they went their way discontented, and departed quite from the citie of *Rome*: but soone after, the people had a misse of them, and besides, the priests made it a matter of conscience, for that in all the sacrifices thorowout the citie, there was no sound of flute or hautboies. Now when they would not returne againe (being sent for) but made their abode in the citie *Tibur*; there was a certeine afranchised bondslave who secretly undertooke unto the magistrates, to finde some meanes for to fetch them home. So he caused a sumptuous feast to be made, as if he meant to celebrate some solemne sacrifice, and invited to it the pipers and plaiers of the hautboies aforesaid: and at this feast he tooke order there should be divers women also; and all night long there was nothing but piping, playing, singing and dancing: but all of a sudden this master of the feast caused a rumor to be raised, that his lord and master was come to take him in the maner; whereupon making semblant that he was much troubled and affrighted, he perswaded the minstrels to mount with all speed into close coatches, covered all over with skinnes, and so to be carried to *Tibur*. But this was a deceitfull practise of his; for he caused the coatches to be turned about another way, and unawares to them; who partly for the darkenesse of the night, and in part because they

were drowsie and the wine in their heads, tooke no heed of the way, he brought all to *Rome* betimes in the morning by the breake of day disguised as they were, many of them in light coloured gownes like women, which (for that they had over-watched and over-drunke themselves) they had put on, and knew nor therof. Then being (by the magistrates) overcome with faire words, and reconciled againe to the citie, they held ever after this custome every yeere upon such a day: To go up and downe the citie thus foolishly disguised.

56.

What is the reason, that it is commonly received, that certein matrons of the city at the first founded and built the temple of Carmenta, and to this day honour it highly with great reverence?

FOR it is said, that upon a time the Senat had forbidden the dames and wives of the city to ride in coatches: whereupon they tooke such a stomacke and were so despighteous, that to be revenged of their husbands, they conspired altogether not to conceive or be with child by them, nor to bring them any more babes: and in this minde they persisted still, untill their husbands began to bethinke them selves better of the matter, and let them have their will to ride in their coatches againe as before time: and then they began to breede and beare children a fresh: and those who soonest conceived and bare most and with greatest ease, founded then the temple of *Carmenta*. And as I suppose this *Carmenta* was the mother of *Evander*, who came with him into *Italy*; whose right name indeed was *Themis*, or as some say *Nicostrata*: now for that she rendred propheticall answeres and oracles in verse, the Latins surnamed her *Carmenta*: for verses in their tongue they call *Carmina*. Others are of opinion, that *Carmenta* was one of the Destinies, which is the cause that such matrons and mothers sacrifice unto her. And the Etymologie of this name *Carmenta*, is as much as *Carens mente*, that is to say, beside her right wits or bestraught, by reason that her senses were so ravished and transported: so that her verses gave her not the name *Carmenta*, but contrariwise, her verses were called *Carmina* of her, because when she was thus ravished and caried beside herselfe, she chanted certeine oracles and prophesies in verse.

57.

What is the cause that the women who sacrifice unto the goddesse Rumina, doe powre and cast store of milke upon their sacrifice, but no wine at all do they bring thither for to be drunke?

Is it, for that the Latins in their tongue call a pap, *Ruma*? And well it may so be, for that the wilde figge tree neere unto which the she wolfe gave sucke with her teats unto *Romulus*, was in that respect called *Ficus Ruminalis*. Like as therefore we name in our Greeke language those milch nurses that suckle yoong infants at their brests, *Thelona*, being a word derived of *Thele*, which signifieth a pap; even so this goddesse *Rumina*, which is as much to say, as Nurse, and one that taketh the care and charge of nourishing and rearing up of infants, admitteth not in her sacrifices any wine; for that it is hurtfull to the nouriture of little babes and sucklings.

58.

What is the reason that of the Romane Senatours, some are called simply, Patres; others with an addition, Patres conscripti?

Is it for that they first, who were instituted and ordeined by *Romulus*, were named *Patres & Patritii*, that is to say, Gentlemen or Nobly borne, such as we in *Greece*, tearme *Eupatrides*?

Or rather they were so called, because they could avouch and shew their fathers; but such as were adjoined afterwards by way of supply, and enrolled out of the Commoners houses, were *Patres conscripti*, thereupon?

59.

Wherefore was there one altar common to Hercules and the Muses?

MAY it not be, that for *Hercules* taught *Evander* the letters, according as *Juba* writeth? Certes, in those daies it was accounted an honhourable office for men to teach their kinsefolke and friends to spell letters, and to reade. For a long time after it, and but of late daies it was, that they began to teach for hire and for money: and the first that ever was knowen to keepe a publicke schoole for reading, was one named *Spurius Carbilus*, the freed servant of that *Carbilus* who first put away his wife.

60.

What is the reason, that there being two altars dedicated unto Hercules, women are not partakers of the greater, nor tast one whit of that which is offered or sacrificed thereupon?

Is it, because as the report goes *Carmenta* came not soone enough to be assistant unto the sacrifice: no more did the family of the *Pinarij*, whereupon they tooke that name? for in regard that they came tardie, admitted they were not to the feast with others who made good cheere; and therefore got the name *Pinarij*, as if one would say, pined or famished?

Or rather it may allude unto the tale that goeth of the shirt empoisoned with the blood of *Nessus* the Centaure, which ladie *Deianira* gave unto *Hercules*.

61.

How commeth it to passe, that it is expresly forbidden at Rome, either to name or to demaund ought as touching the Tutelar god, who hath in particular recommendation and patronage, the safetie and preservation of the citie of Rome: nor so much as to enquire whether the said deitie be male or female? And verely this prohibition proceedeth from a superstitious feare that they have; for that they say that Valerius Soranus died an ill death, because he presumed to utter and publish so much.

Is it in regard of a certaine reason that some latin historians do alledge; namely, that there be certaine evocations and enchantings of the gods by spels and charmes, through the power whereof they are of opinion, that they might be able to call forth and draw away the Tutelar gods of their enemies, and to cause them to come and dwell with them: and therefore the Romans be afraid lest they may do as much for them? For, like as in times past the Tyrians, as we find upon record, when their citie was besieged, enchained the images of their gods to their shrines, for feare they would abandon their citie and be gone; and as others demanded pledges and sureties that they should come againe to their place, whensoever they sent them to any bath to be washed, or let them go to any expiation to be clensed; even so the Romans thought, that to be altogether unknownen and not once named, was the best meanes, and surest way to keepe with their Tutelar god.

Or rather, as *Homer* verie well wrote:

*The earth to men all, is common great and
small:*

That thereby men should worship all the gods, and honour the earth; seeing she is common to them all: even so the ancient Romans have concealed and suppress the

god or angell which hath the particular gard of their citie, to the end that their citizens should adore, not him alone but all others likewise.

62.

What is the cause that among those priests whom they name Fæciales, signifying as much as in greeke εἰρηνοποῖοι, that is to say, Officers going between to make treatie of peace; or σπονδοφόροι, that is to say, Agents for truce and leagues, he whom they call Pater Patratus is esteemed the chieftest? Now Pater Patratus is he, whose father is yet living, who hath children of his owne: and in truth this chiefe Fæcial or Herault hath still at this day a certain prerogative, & special credit above the rest. For the emperours themselves, and generall captains, if they have any persons about them who in regard of the prime of youth, or of their beautifull bodies had need of a faithfull, diligent, and trustie guard, commit them ordinarily into the hands of such as these, for safe custodie.

Is it not, for that these *Patres Patrati*, for reverent feare of their fathers of one side, and for modest shames to scandalize or offend their children on the other side, are enforced to be wise and discreet?

Or may it not be, in regard of that cause which their verie denomination doth minister and declare: for this word *PATRATUS* signifieth as much as compleat, entire and accomplished, as if he were one more perfect and absolute every way than the rest, as being so happie, as to have his owne father living, and be a father also himselfe.

Or is it not, for that the man who hath the superintendence of treaties of peace, and of othes, ought to see as *Homer* saith, ἄμα πρόσω καὶ ἐπίσω, that is to say, before and behind. And in all reason such an one is he like to be, who hath a child for whom, and a father with whom he may consult.

63.

What is the reason, that the officer at Rome called Rex sacrorum, that is to say, the king of sacrifices, is debarred both from exercising any magistracie, and also to make a speech unto the people in publike place?

Is it for that in old time, the kings themselves in person performed the most part of sacred rites, and those that were greater, yea and together with the priests offered

sacrifices; but by reason that they grew insolent, proud, and arrogant, so as they became intollerable, most of the Greeke nations, deprived them of this authoritie, and left unto them the preheminence onely to offer publike sacrifice unto the gods: but the Romans having cleane chased and expelled their kings, established in their stead another under officer whom they called King, unto whom they granted the oversight and charge of sacrifices onely, but permitted him not to exercise or execute any office of State, nor to intermedle in publick affaires; to the end it should be knowen to the whole world, that they would not suffer any person to raigne at *Rome*, but onely over the ceremonies of sacrifices, nor endure the verie name of Roialtie, but in respect of the gods. And to this purpose upon the verie common place neere unto *Comitium*; they use to have a solemn sacrifice for the good estate of the citie; which so soone as ever this king hath performed, he taketh his legs and runnes out of the place, as fast as ever he can.

64.

Why suffer not they the table to be taken cleane away, and voided quite, but will have somewhat alwaies remaining upon it?

GIVE they not heereby covertly to understand, that wee ought of that which is present to reserve evermore something for the time to come, and on this day to remember the morrow.

Or thought they it not a point of civill honesty and elegance, to repress and keepe downe their appetite when they have before them enough still to content and satisfie it to the full; for lesse will they desire that which they have not, when they accustome themselves to absteine from that which they have.

Or is not this a custome of courtesie and humanitie to their domesticall servants, who are not so well pleased to take their victuals simply, as to partake the same, supposing that by this meanes in some sort they doe participate with their masters at the table.

Or rather is it not, because we ought to suffer no sacred thing to be emptie; and the boord you wot well is held sacred.

65.

What is the reason that the Bridegrome commeth the first time to lie with his new wedded bride, not with any light but in the darke?

Is it because he is yet abashed, as taking her to be a stranger and not his owne, before he hath companied carnally with her?

Or for that he would then acquaint himselfe, to come even unto his owne espoused wife with shamefacednesse and modestie?

Or rather, like as *Solon* in his Statutes ordeined, that the new married wife should eat of a quince before she enter into the bride bed-chamber, to the end that this first encounter and embracing, should not be odious or unpleasant to her husband? even so the Romane law-giver would hide in the obscuritie of darkenesse, the deformities and imperfections in the person of the bride, if there were any.

Or haply this was instituted to shew how sinfull and damnable all unlawfull companie of man and woman together is, seeing that which is lawfull and allowed, is not without some blemish and note of shame.

66.

Why is one of the races where horses use to runne, called the Cirque or Flaminius.

Is it for that in old time an ancient Romane named *Flaminius* gave unto the citie, a certeine piece of ground, they employed the rent and revenues thereof in runnings of horses, and chariots: and for that there was a surplussage remaining of the said lands, they bestowed the same in paving that high way or causey, called *Via Flaminia*, that is to say, *Flaminia* street?

67.

Why are the Sergeants or officers who carie the knitches of rods before the magistrates of Rome, called Lictores.

Is it because these were they who bound malefactors, and who followed after *Romulus*, as his guard, with cords and leather thongs about them in their bosomes? And verily the common people of *Rome* when they would say to binde or tie fast, use the word *Alligare*, and such as speake more pure and proper Latin, *Ligare*.

Or is it, for that now the letter *C* is interjected within this word, which before time was *Litores*, as one would say *Λειτοῦργοι*, that is to say, officers of publike charge;

for no man there is in a maner, ignorant, that even at this day in many cities of *Greece*, the common-wealth or publicke state is written in their lawes by the name of *Δῆτον*:

68.

Wherefore doe the Luperci at Rome sacrifice a Dogge? Now these Luperci are certeine persons who upon a festivall day called Lupercalia, runne through the citie all naked, save that they have aprons onely before their privy parts, carying leather whippes in their hands, wherewith they flappe and scourge whomsoever they meet in the streets.

Is all this ceremoniall action of theirs a purification of the citie? whereupon they call the moneth wherein this is done *Februarius*, yea, and the very day it selfe *Febraten*, like as the maner of squitching with a leather scourge *Februare*, which verbe signifieth as much as to purge or purifie?

And verily the Greeks, in maner all, were wont in times past, and so they continue even at this day, in all their expiations, to kill a dogge for sacrifice. Unto *Hecate* also they bring foorth among other expiatorie oblations, certeine little dogges or whelpes: such also as have neede of clensing and purifying, they wipe and scoure all over with whelpes skinnes, which maner of purification they tearme *Periscylacismos*.

Or rather is it for that *Lupus* signifieth a wolfe, & *Lupercalia*, or *Lycæa*, is the feast of wolves: now a dogge naturally, being an enemy to wolves, therefore at such feasts they sacrificed a dogge.

Or peradventure, because dogges barke and bay at these *Luperci*, troubling and disquieting them as they runne up and downe the city in maner aforesaid.

Or else last of all, for that this feast and sacrifice is solemnized in the honor of god *Pan*; who as you wot well is pleased well enough with a dogge, in regard of his flocks of goates.

69.

What is the cause that in auncient time, at the feast called Septimontium, they observed precisely not to use any coaches drawn with steeds, no more than those doe at this day, who are observant of old institutions and doe not despise

them. Now this Septimontium is a festivall solemnity, celabrated in memoriall of a seventh mountaine, that was adjoined and taken into the pourprise of Rome citie, which by this meanes came to have seven hilles enclosed within the precinct thereof?

WHETHER was it as some Romans doe imagine, for that the city was not as yet conjunct and composed of all her parts? Or if this may seeme an impertinent conjecture, and nothing to the purpose: may it not be in this respect, that they thought they had atchieved, a great piece of worke, when they had thus amplified and enlarged the compasse of the citie, thinking that now it needed not to proceed any further in greatnesse and capacitie: in consideration whereof, they reposed themselves, and caused likewise their labouring beasts of draught and cariage to rest, whose helpe they had used in finishing of the said enclosure, willing that they also should enjoy in common with them, the benefit of that solemne feast.

Or else we may suppose by this, how desirous they were that their citizens should solemnize and honour with their personall presence all feasts of the citie, but especially that which was ordeined and instituted for the peopling and augmenting thereof: for which cause they were not permitted upon the day of the dedication, and festival memorial of it, to put any horses in geeres or harnesse for to draw; for that they were not at such a time to ride forth of the citie.

70.

Why call they those who are deprehended or taken in theft, pilferie or such like servile trespasses, Furciferos, as one would say, Fork bearers.

Is not this also an evident argument of the great diligence and carefull regard that was in their ancients? For when the maister of the family had surprised one of his servants or slaves, committing a lewd and wicked pranck, he commaunded him to take up and carrie upon his necke betweene his shoulders a forked piece of wood, such as they use to put under the spire of a chariot or waine, and so to go withall in the open view of the world throughout the street, yea and the parish where he dwelt, to the end that every man from thence forth should take heed of him. This piece of wood we in Greeke call στήριγμα, and the Romanes in the Latin tongue *Furca*, that is to say, a forked prop or supporter: and therefore he that is forced to carie such an one, is by reproch termed *Furcifer*.

71.

Wherefore use the Romans to tie a wisp of hey unto the hornes of kine, and other beefes, that are woont to boak and be curst with their heads, that by the meanes thereof folke might take heed of them, and looke better to themselves when they come in their way?

Is it not for that beefes, horses, asses, yea and men become fierce, insolent, and dangerous, if they be highly kept and pampered to the full? according as *Sophocles* said:

*Like as the colt or jade doth winse and kick,
In case he find his provender to prick:
Even so do'st thou: for lo, thy paunch is full
Thy cheeks be puft, like to some greedie gull.*

And thereupon the Romans gave out, that *Marcus Crassus* caried hey on his horne: for howsoever they would seeme to let flie and carpe at others, who dealt in the affaires of State, and government, yet beware they would how they commersed with him as being a dangerous man, and one who caried a revenging mind to as many as medled with him. Howbeit it was said afterwards againe on the other side, that *Cæsar* had plucked the hey from *Crassus* his horne: for he was the first man that opposed himselfe, and made head against him in the management of the State, and in one word set not a straw by him.

What was the cause that they thought those priests who observed bird-flight, such as in old time they called Aruspices, and now a daies Augures, ought to have their lanterns and lamps alwaies open, and not to put any lid or cover over them?

MAY it not be, that like as the old Pythagorean Philosophers by small matters signified and implied things of great consequence, as namely, when they forbad their disciples to sit upon the measure Chænix; and to stirre fire, or rake the hearth with a sword; euen so the ancient Romans used many ænigmes, that is to say, outward signes and figures betokening some hidden and secret mysteries; especially with their priests in holy and sacred things, like as this is of the lampe or lanterne, which symbolizeth in some sort the bodie that containeth our soule. For the soule within resembleth the light, and it behooveth that the intelligent and reasonable part thereof should be alwaies open, evermore intentive and seeing, and at no time enclosed and shut up, nor blowen upon by wind. For looke when the winds be aloft, fowles in their flight keepe no certaintie, neither can they yeeld assured presages, by reason of their variable and wandering instabilitie: and therefore by this ceremoniall custome they teach those who do divine and fortell by the flight of birds, not to go forth for to take their auspices and observations when the wind is up, but when the aire is still, and so calme, that a man may carie a lanterne open and uncovered.

73.

Why were these Southsaiers or Augures forbidden to go abroad, for to observe the flight of birds, in case they had any sore or ulcer upon their bodies?

WAS not this also a significant token to put them in minde, that they ought not to deale in the divine service of the gods, nor meddle with holy and sacred things if there were any secret matter that gnawed their minds, or so long as any private ulcer or passion settled in their hearts: but to be void of sadnesse and grieve, to be sound and sincere, and not distracted by any trouble whatsoever?

Or, because it standeth to good reason; that if it be not lawfull nor allowable for them to offer unto the gods for an oast or sacrifice any beast that is scabbed, or hath a sore upon it, nor to take presage by the flight of such birds as are maungie, they ought more strictly and precisely to looke into their owne persons in this behalfe, and not to presume for to observe celestiaall prognostications and signes from the gods, unlesse they be themselves pure and holy, undefiled, and not defective in their owne selves: for surely an ulcer seemeth to be in maner of a mutilation and pollution of the bodie.

74.

Why did king Servius Tullus found and build a temple of little Fortune which they called in Latine Brevis fortunæ, that is to say, of Short fortune?

WAS it not thinke you in respect of his owne selfe, who being at the first of a small and base condition, as being borne of a captive woman, by the favour of Fortune grew to so great an estate that he was king of *Rome*?

Or for that this change in him sheweth rather the might and greatnesse, than the debilitie and smallnesse of Fortune. We are to say, that this king *Servius* deified Fortune, & attributed unto her more divine power than any other, as having entituled and imposed her name almost upon every action: for not onely he erected temples unto Fortune, by the name of Puissant, of Diverting ill lucke, of Sweet, Favourable to the first borne and masculine; but also there is one temple besides, of private or proper Fortune; another of Fortune returned; a third of confident Fortune and hoping well; and a fourth of Fortune the virgine. And what should a man reckon up other surnames of hers, seeing there is a temple dedicated (forsooth) to glewing Fortune, whom they called *Viscata*; as if we were given thereby to understand, that we are caught by her afarre off, and even tied (as it were) with bird-lime to businesse and affaires.

But consider this moreover, that he having knowen by experience what great power she hath in humane things, how little soever she seeme to be, and how often a small matter in hapning or not hapning hath given occasion to some, either to misse of great exploits, or to atcheive as great enterprises, whether in this respect, he built not a temple to little Fortune, teaching men thereby to be alwaies studious, carefull and diligent, and not to despise any occurrences how small soever they be.

75.

What is the cause that they never put foorth the light of a lampe, but suffered it to goe out of the owne accord?

WAS it not (thinke you) uppon a certeine reverent devotion that they bare unto that fire, as being either cousen germaine, or brother unto that inextinguible and immortall fire.

Or rather, was it not for some other secret advertisment, to teach us not to violate or kill any thing whatsoever that hath life, if it hurt not us first; as if fire were a living creature: for need it hath of nourishment and moveth of it selfe: and if a man doe squench it, surely it uttereth a kinde of voice and scricke, as if a man killed it.

Or certainly this fashion and custome received so usually, sheweth us that we ought not to marre or spoile, either fire or water or any other thing necessarie, after we our selves have done with it, and have had sufficient use thereof, but to suffer it to serve other mens turnes who have need, after that we ourselves have no imploiment for it.

76.

How commeth it to passe that those who are defended of the most noble and auncient houses of Rome, caried little moones upon their shoes.

Is this (as *Castor* saith) a signe of the habitation which is reported to be within the bodie of the moone?

Or for that after death, our spirits and ghosts shall have the moone under them?

Or rather, because this was a marke or badge proper unto those who were reputed most ancient, as were the Arcadians descended from *Evander*, who upon this occasion were called *Proseleni*, as one would say, borne before the moone?

Or, because this custome as many others, admonisheth those who are lifted up too high, and take so great pride in themselves, of the incertitude and instabilitie of this life, and of humane affaires, even by the example of the moone,

*Who at the first doth new and yoong
appeere,
Where as before she made no shew
at all;
And so her light increaseth faire
and cleere,
Untill her face be round and full
withall:
But then anon she doth begin to
fall,
And backward wane from all this
beautie gay,
Untill againe she vanish cleane
away.*

Or was not this an holosome lesson and instruction of obedience, to teach and advise men to obey their superiors, & not to thinke much for to be under others: but like as the moone is willing to give eare (as it were) and apply her selfe to her better, content to be ranged in a second place, and as *Parmenides* saith,

*Having aneie and due regard
Alwaies the bright Sun beames
toward;*

even so they ought to rest in a second degree, to follow after, and be under the conduct and direction of another, who sitteth in the first place, and of his power, authority and honor, in some measure to enjoy a part.

77.

Why think they the yeeres dedicated to Jupiter, and the moneths to Juno?

MAY it not be for that of Gods invisible and who are no other wise seene but by the eies of our understanding: those that reigne as princes be *Jupiter* and *Juno*; but of the visible, the Sun and Moone? Now the Sun is he who causeth the yeere, and the Moone maketh the moneth. Neither are we to thinke, that these be onely and simply the figures and images of them: but beleewe we must, that the materiall Sun which we behold, is *Jupiter*, and this materiall Moone, *Juno*. And the reason why they call her *Juno*, (which word is as much to say as yoong or new) is in regarde of the course of the Moone: and otherwhiles they surname her also *Juno-Lucina*, that is to say; light or shining: being of opinion that she helpeth women in travell of child-birth, like as the Moone doth, according to these verses:

*By starres that turne full round in
Azur skie:
By Moone who helps child-births
right speedily.*

For it seemeth that women at the full of the moone be most easily delivered of childbirth.

78.

What is the cause that in observing bird-flight, that which is presented on the ^[144]left hand is reputed lucky and prosperous?

Is not this altogether untrue, and are not many men in an error by ignorance of the equivocation of the word *Sinistrum*, & their manner of Dialect; for that which we in Greece call ἀριστερον, that is to say, on the right or left hand, they say in Latin, *Sinistrum*; and that which signifieth to permit, or let be, they express by the verbe *Sinere*, and when they will a man to let a thing alone, they say unto him, *Sine*; whereupon it may seeme that this word *Sinistrum* is derived. That presaging bird then, which permitteth and suffreth an action to be done, being as it were *Sinisterion*; the vulgar sort suppose (though not aright) to be *Sinistrum*, that is to say, on the left hand, and so they tearme it.

Or may it not be rather as *Dionysius* saith, for that when *Ascanius* the sonne of *Aeneas* wanne a field against *Mezentius* as the two armies stood arranged one affronting the other in battell ray, it thundred on his left hand; and because thereupon he obtained the victory, they deemed even then, that this thunder was a token presaging good, and for that cause observed it, ever after so to fall out. Others thinke that this presage and foretoken of good lucke hapned unto *Aeneas*: and verily at the battell of *Leuctres*, the Thebanes began to breake the ranks of their enemies, and to discomfit them with the left wing of their battell, and thereby in the end atchieved a brave victorie; whereupon ever after in all their conflicts, they gave preference and the honour of leading and giving the first charge, to the left wing.

Or rather, is it not as *Juba* writeth, because that when we looke toward the sunne rising, the North side is on our left hand, and some will say, that the North is the right side and upper part of the whole world.

But consider I pray you, whether the left hand being the weaker of the twaine, the presages comming on that side, doe not fortifie and support the defect of puissance which it hath, and so make it as it were even and equall to the other?

Or rather considering that earthly and mortall things they supposing to be opposite unto those that be heavenly and immortall, did not imagine consequently, that whatsoever was on the left in regard of us, the gods sent from their right side.

79

Wherefore was it lawfull at Rome, when a noble personage who sometime had entred triumphant into the city, was dead, and his corps burnt (as the maner was) in a funerall fire, to take up the reliques of his bones, to carie the same into the city, and there to strew them, according as Pyrrho the Lyparean hath left in writing.

WAS not this to honour the memorie of the dead? for the like honourable priviledge they had graunted unto other valiant warriors and brave captaines; namely, that not onely themselves, but also their posteritie descending lineally from them, might be entered in their common market place of the city, as for example unto *Valerius* and *Fabricius*: and it is said, that for to continue this prerogative in force, when any of their posteritie afterwards were departed this life, and their bodies brought into the market place accordingly, the maner was, to put a burning torch under them, and doe no more but presently to take it away againe; by which ceremonie, they reteined still the due honour without envie, and confirmed it onely to be lawfull if they would take the benefit thereof.

80.

What is the cause that when they feasted at the common charges, any generall captaine who made his entrie into the citie with triumph, they never admitted the Consuls to the feast; but that which more is, sent unto them before-hand messengers of purpose, requesting them not to come unto the supper?

WAS it for that they thought it meet and convenient to yeeld unto the triumpher, both the highest place to sit in, and the most costly cup to drinke

out of, as also the honour to be attended upon with a traine home to his house after supper? which prerogatives no other might enjoy but the Consuls onely, if they had beene present in the place.

81.

Why is it that the Tribune of the commons onely, weareth no embrodered purple robe, considering that all other magistrates besides doe weare the same.

Is it not, for that they (to speak properly) are no magistrates? for in truth they have no ushers or vergers to carie before them the knitches of rods, which are the ensignes of magistracie; neither sit they in the chaire of estate called *Sella curulis*, to determine causes judicially, or give audience unto the people; nor enter into the administration of their office at the beginning of the yeere, as all other magistrates doe: neither are they put downe and deposed after the election of a Dictatour: but whereas the full power and authoritie of all other magistrates of State, he transferred from them upon himselfe: the Tribunes onely of the people continue still, and surcease not to execute their function, as having another place and degree by themselves in the common-weale: and like as some oratours and lawiers doe hold, that exception in law is no action, considering it doth cleane contrary to action; for that action intendeth, commenseth, and beginneth a processe or sute; but exception or inhibition, dissolveth, undooeth, and abolisheth the same: semblably, they thinke also, that the Tribunate was an impeachment, inhibition, and restraint of a magistracie, rather than a magistracie it selfe: for all the authority and power of the Tribune, lay in opposing himselfe, and eroding the jurisdiction of other magistrates, and in diminishing or repressing their excessive and licentious power.

Or haply all these reasons and such like, are but words, and devised imaginations to mainteine discourse: but to say a trueth, this Tribuneship having taken originally the first beginning from the common people, is great and mighty in regard that it is popular; and that the Tribunes themselves are not proud nor highly conceited of themselves above others, but equall in apparell, in port, fare, and maner of life, to any other citizens

of the common sort: for the dignity of pompe and outward shew, apperteineth to a Consull or a Prætour: as for the Tribune of the people, he ought to be humble and lowly, and as *M. Curio* was woont to say; ready to put his hand under every mans foot; not to carie a loftie, grave, and stately countenance, nor to bee hard of accesse, nor strange to be spoken with, or dealt withall by the multitude; but howsoever he behave himselfe to others, he ought to the simple and common people, above the rest, for to be affable, gentle, and tractable: and heereupon the maner is, that the dore of his house should never be kept shut, but stand open both day and night, as a safe harbour, sure haven, and place of refuge, for all those who are distressed and in need: and verilie the more submisse that he is in outward appeerance, the more groweth hee and encreaseth in puissance; for they repute him as a strong hold for common recourse and retrait, unto al comers, no lesse than an altar or priviledged sanctuary. Moreover, as touching the honour that he holdeth by his place, they count him holy, sacred, and inviolable, insomuch as if he doe but goe foorth of his house abroad into the citie, and walke in the street,^[145] the maner was of all, to clense and sanctifie the body, as if it were steined and polluted.

82.

What is the reason that before the Prætors, generall Captaines and head Magisrates, there be caried bundels of rodde, together with hatchets or axes fastned unto them?

Is it to signifie, that the anger of the magistrate ought not to be prompt to execution, nor loose and at libertie?

Or, because that to undoe and unbinde the said bundels, yeeldeth some time and space for choler to coole, and ire to asswage, which is the cause otherwhiles that they change their mindes, and doe not proceed to punishment?

Now forasmuch as among the faults that men commit, some are curable, others remedillesse: the rodde is to reforme those who may be amended;

but the hatchets to cut them off who are incorrigible.

83.

What is the cause that the Romanes having intelligence given vnto them, that the Bletonesians, a barbarous nation, had sacrificed unto their gods, a man; sent for the magistrates peremptorily, as intending to punish them: but after they once understood, that they had so done according to an ancient law of their countrey, they let them go againe without any hurt done unto them; charging them onely, that from thence forth they should not obey such a law; and yet they themselves, not many yeeres before, had caused for to be buried quicke in the place, called the Beast Market, two men and two women, that is to say, two Greekes, and two Gallo-Greekes or Galatians? For this seemeth to be verie absurd, that they themselves should do those things, which they reprooved in others as damnable.

MAY it not be that they judged it an execrable superstition, to sacrifice a man or woman unto the gods, marie unto diuels they held it necessarie?

Or was it not for that they thought those people, who did it by a law or custome, offended highly: but they themselves were directed thereto by expresse commaundement out of the bookes of *Sibylla*. For reported it is, that one of their votaries or Vestall nunnes named *Helbia*, riding on horsebacke, was smitten by a thunderbolt or blast of lightning; and that the horse was found lying along all bare bellied, and her selfe likewise naked, with her smocke and petticote turned up above her privie parts, as if she had done it of purpose: her shooes, her rings, her coife and head attire cast here and there apart from other things, and withall lilling the toong out of her head. This strange occurrent, the soothsayers out of their learning interpreted to signifie, that some great shame did betide the sacred virgins, that should be divulged and notoriously knowen; yea, and that the same infamie should reach also as far, as unto some of the degree of gentlemen or knights of *Rome*. Upon this there was a servant belonging unto a certeine Barbarian horseman, who detected three Vestal virgins to have at one time forfeited their honor, & been naught of their bodies, to wit, *Aemilia*, *Licinia*,

& *Martia*; and that they had companied too familiarly with men a long time; and one of their names was *Eutetius*, a Barbarian knight, and master to the said enformer. So these vestall Votaries were punished after they had beene convicted by order of law, and found guiltie: but after that this seemed a fearfull and horrible accident: ordeined it was by the Senate, that the priests should peruse over the bookes of *Sibyllaes* propheties, wherein were found (by report) those very oracles which denounced and foretold this strange occurrent, and that it portended some great losse and calamitie unto the common-wealth: for the avoiding and diverting whereof, they gave commaundement to abandon unto (I wot not what) maligne and divelish strange spirits, two Greekes, and two Galatians likewise; and so by burying them quicke in that verie place, to procure propitiation at Gods hands.

84.

Why began they their day at midnight?

WAS it not, for that all policie at the first had the beginning of militarie discipline? and in war, and all expeditions the most part of woorthy exploits are enterprised ordinarily in the night before the day appeare?

Or because the execution of desseignes, howsoever it begin at the sunne rising; yet the preparation thereto is made before day-light: for there had need to be some preparatives, before a worke be taken in hand; and not at the verie time of execution, according as *Myson* (by report) answered unto *Chilo*, one of the seven sages, when as in the winter time he was making of a van.

Or haply, for that like as we see, that many men at noone make an end of their businesse of great importance, and of State affaires; even so, they supposed that they were to begin the same at mid-night. For better prooffe whereof a man may frame an argument hereupon, that the Roman chiefe ruler never made league, nor concluded any capitulations and covenants of peace after mid-day.

Or rather this may be, because it is not possible to set downe determinately, the beginning and end of the day, by the rising and setting of the sunne: for if we do as the vulgar sort, who distinguish day and night by the sight and view of eie, taking the day then to begin when the sunne ariseth; and the night likewise to begin when the sunne is gone downe, and hidden under our horizon, we shall never have the just Aequinox, that is to say, the day and night equall: for even that verie night which we shall esteeme most equall to the day, will proove shorter than the day, by as much as the body or biggenesse of the sunne containeth. Againe, if we doe as the Mathematicians, who to remedie this absurditie and inconvenience, set downe the confines and limits of day and night, at the verie instant point when the sunne seemeth to touch the circle of the horizon with his center; this were to overthrow all evidence: for fall out it will, that while there is a great part of the sunnes light yet under the earth (although the sunne do shine upon us) we will not confesse that it is day, but say, that it is night still. Seeing then it is so hard a matter to make the beginning of day and night, at the rising or going downe of the sunne, for the absurdities abovesaid, it remaineth that of necessitie we take the beginning of the day to be, when the sunne is in the mids of the heaven above head, or under our feet, that is to say, either noon-tide or mid-night. But of twaine, better it is to begin when he is in the middle point under us, which is just midnight, for that he returneth then toward us into the East; whereas contrariwise after mid-day he goeth from us Westward.

85.

*What was the cause that in times past they would not suffer their wives,
either to grinde corne, or to lay their hands to dresse meat in the
kitchin?*

WAS it in memoriall of that accord and league which they made with the Sabines? for after that they had ravished & carried away their daughters, there arose sharpe warres betweene them: but peace ensued thereupon in the end; in the capitulations whereof, this one article was expresly set downe, that the Roman husband might not force his wife, either to turne the querne for to grinde corne, nor to exercise any point of cookerie.

Why did not the Romans marie in the moneth of May?

Is it for that it commeth betweene Aprill and June? whereof the one is consecrated unto *Venus*, and the other to *Juno*, who are both of them the goddesses which have the care and charge of wedding and marriages, and therefore thinke it good either to go somewhat before, or else to stay a while after.

Or it may be that in this moneth they celebrate the greatest expiatorie sacrifice of all others in the yeere? for even at this day they fling from off the bridge into the river, the images and pourtraitures of men, whereas in old time they threw downe men themselves alive? And this is the reason of the custome now a daies, that the priestresse of *Juno* named *Flamina*, should be alwaies sad and heavie, as it were a mourner, and never wash nor dresse and trim her selfe.

Or what and if we say, it is because many of the Latine nations offered oblations unto the dead in this moneth: and peradventure they do so, because in this verie moneth they worship *Mercurie*: and in truth it beareth the name of *Maja*, *Mercuries* mother.

But may it not be rather, for that as some do say, this moneth taketh that name of *Majores*, that is to say, ancients: like as June is termed so of *Juniores*, that is to say yonkers. Now this is certaine that youth is much meeter for to contract marriage than old age: like as *Euripides* saith verie well:

*As for old age it Venus bids
farewell,
And with old folke, Venus is not
pleasd well.*

The Romans therefore married not in May, but staid for June which immediatly followeth after May.

87.

What is the reason that they divide and part the haire of the new brides head, with the point of a javelin?

Is not this a verie signe, that the first wives whom the Romans espoused, were compelled to mariage, and conquered by force and armes.

Or are not their wives hereby given to understand, that they are espoused to husbands, martiall men and soldiers; and therefore they should lay away all delicate, wanton, and costly imbelishment of the bodie, and acquaint themselves with simple and plaine attire; like as *Lycurgus* for the same reason would that the doores, windowes, and roofes of houses should be framed with the saw and the axe onely, without use of any other tooles or instrument, intending thereby to chase out of the common-weale all curiositie and wastfull superfluitie.

Or doth not this parting of the haire, give covertly to understand, a division and separation, as if mariage & the bond of wedlock, were not to be broken but by the sword and warlike force?

Or may not this signifie thus much, that they referred the most part of ceremonies concerning mariage unto *Juno*: now it is plaine that the javelin is consecrated unto *Juno*, insomuch as most part of her images and statues are portraied resting and leaning upon a launce or javelin. And for this cause the goddess is surnamed *Quiritis*, for they called in old time a speare *Quiris*, upon which occasion *Mars* also (as they say) is named *Quiris*.

88.

What is the reason that the monie emploied upon plates and publike shewes is called among them, Lucar?

MAY it not well be that there were many groves about the citie consecrated unto the gods, which they named *Lucos*: the revenues whereof they bestowed upon the setting forth of such solemnities?

89.

Why call they Quirinalia, the Feast of fooles?

WHETHER it is because (as *Juba* writeth) they attribute this day unto those who knew not their owne lineage and tribe? or unto such as have not sacrificed, as others have done according to their tribes, at the feast called *Fornacalia*. Were it that they were hindred by other affaires, or had occasion to be forth of the citie, or were altogether ignorant, and therefore this day was assigned for them, to performe the said feast.

90.

What is the cause, that when they sacrifice unto Hercules, they name no other God but him, nor suffer a dog to be seene, within the purprise and precinct of the place where the sacrifice is celebrated, according as Varro hath left in writing?

Is not this the reason of naming no god in their sacrifice, for that they esteeme him but a demigod; and some there be who hold, that whiles he lived heere upon the earth, *Evander* erected an altar unto him, and offered sacrifice thereupon. Now of all other beasts he could worst abide a dog, and hated him most: for this creature put him to more trouble all his life time, than any other: witnesse hereof, the three headed dog *Cerberus*, and above all others, when *Oeonus* the sonne of *Licymnius* was slaine ^[146] by a dog, he was enforced by the Hippocoontides to give the battell, in which he lost many of his friends, and among the rest his owne brother *Iphicles*.

91.

Wherefore was it not lawfull for the Patricians or nobles of Rome to dwell upon the mount Capitoll?

MIGHT it not be in regard of *M. Manlius*, who dwelling there attempted and plotted to be king of *Rome*, and to usurpe tyrannie; in hatred and detestation of whom, it is said, that ever after those of the house of *Manlij*, might not have *Marcus* for their fore-name?

Or rather was not this an old feare that the Romans had (time out of mind)? For albeit *Valerius Poplicola* was a personage verie popular and well affected unto the common people; yet never ceased the great and mightie men of the citie to suspect and traduce him, nor the meane commoners and multitude to feare him, untill such time as himselfe caused his owne house to be demolished and pulled down, because it seemed to overlooke and commaund the common market place of the citie.

92.

What is the reason, that he who saved the life of a citizen in the warres, was rewarded with a coronet made of oake braunches?

WAS it not for that in everie place and readily, they might meet with an oake, as they marched in their warlike expeditions.

Or rather, because this maner of garland is dedicated unto *Jupiter* and *Juno*, who are reputed protectors of cities?

Or might not this be an ancient custome proceeding from the Arcadians, who have a kind of consanguinitie with oakes, for that they report of themselves, that they were the first men that issued out of the earth, like as the oake of all other trees.

Why observe they the Vultures or Geirs, most of any other fowles, in taking of presages by bird-flight?

Is it not because at the foundation of *Rome*, there appeared twelve of them unto *Romulus*? Or because, this is no ordinarie bird nor familiar; for it is not so easie a matter to meete with an airie of Vultures; but all on a sudden they come out of some strange countrey, and therefore the sight of them doth prognosticke and presage much.

Or else haply the Romans learned this of *Hercules*, if that be true which *Herodotus* reporteth: namely, that *Hercules* tooke great contentment, when in the enterprise of any exploit of his, there appeared Vultures unto him: for that he was of opinion, that the Vulture of all birds of prey was the justest: for first and formost never toucheth he ought that hath life, neither killeth hee any living creature, like as eagles, falcons, hauks, and other fowles do, that prey by night, but feedeth upon dead carrions: over and besides, he forbeareth to set upon his owne kind: for never was there man yet who saw a Vulture eat the flesh of any fowle, like as eagles and other birds of prey do, which chase, pursue and plucke in pieces those especially of the same kind, to wit, other fowle. And verily as *Aeschylus* the poet writeth:

*How can that bird, which bird doth
eat,
Be counted cleanly, pure and neat.*

And as for men, it is the most innocent bird, and doth least hurt unto them of all other: for it destroieth no fruit nor plant whatsoever, neither doth it harme to any tame creature. And if the tale be true that the Aegyptians doe tell, that all the kinde of these birds be females; that they conceive and be with yoong, by receiving the East-wind blowing upon them, like as some trees by the Western wind, it is verie profitable that the signes and prognosticks drawen from them, be more sure and certaine, than from any others, considering that of all, besides their violence in treading and breeding time; their eagernesse in flight when they pursue their prey; their

flying away from some, and chasing of others, must needs cause much trouble and uncertaintie in their prognostications.

94.

Why stands the temple of Aesculapius without the citie of Rome?

Is it because they thought the abode without the citie more holesome, than that within? For in this regard the Greekes ordinarily built the temples of *Aesculapius* upon high ground, wherein the aire is more pure and cleere.

Or in this respect, that this god *Aesculapius* was sent for out of the citie *Epidaurus*. And true it is that the Epidaurians founded his temple; not within the walles of their city, but a good way from it.

Or lastly, for that the serpent when it was landed out of the galley in the Isle, and then vanished out of sight, seemed thereby to tell them where he would that they should build the place of his abode.

95.

Why doth the law forbid them that are to live chaste, the eating of pulse?

As touching beanes, is it not in respect of those very reasons for which it is said: That the Pythagoreans counted them abominable? And as for the richling and rich pease, whereof the one in Greeke is called λάθυρος and the other ἐρεβινθος which words seeme to be derived of *Erebus*, that signifieth the darknesse of hell, and of *Lethe*, which is as much as oblivion, and one besides of the rivers infernall, it carieth some reason that they should be abhorred therfore.

Or it may be, for that the solemne suppers and bankets at funerals for the dead, were usually served with pulse above all other viands.

Or rather, for that those who are desirous to be chaste, and to live an holy life, ought to keepe their bodies pure and slender; but so it is that pulse be flateous and windy, breeding superfluous excrements in the body, which had need of great purging and evacuation.

Or lastly, because they pricke and provoke the fleshly lust, for that they be full of ventosities.

96.

What is the reason that the Romans punish the holy Vestall Virgins (who have suffered their bodies to be abused and defiled) by no other meanes, than by interrings them quicke under the ground?

Is this the cause, for that the maner is to burne the bodies of them that be dead: and to burie (by the meanes of fire) their bodies who have not devoutly and religiously kept or preserved the divine fire, seemed not just nor reasonable?

Or haply, because they thought it was not lawfull to kill any person who had bene consecrated with the most holy and religious ceremonies in the world; nor to lay violent hands upon a woman consecrated: and therefore they devised this invention of suffering them to die of their owne selves; namely, to let them downe into a little vaulted chamber under the earth, where they left with them a lampe burning, and some bread, with a little water and milke: and having so done, cast earth and covered them aloft. And yet for all this, can they not be exempt from a superstitious feare of them thus interred: for even to this day, the priests going over this place, performe (I wot not what) anniversary services and rites, for to appease and pacifie their ghosts.

97.

What is the cause that upon the thirteenth day of December, which in Latine they call the Ides of December, there is exhibited a game of chariots running for the prize, and the horse drawing on the right hand that winneth the victorie, is sacrificed and consecrated unto Mars, and at the time thereof, there comes one behinde, that cutteth off his taile, which he carrieth immediatly into the temple called Regia, and therewith imbrueth the altar with blood: and for the head of the said horse, one troupe there is comming out of the street called Via sacra, and another from that which they name Suburra, who encounter and trie out by fight who shall have it?

MAY not the reason be (as some doe alledge) that they have an opinion, how the citie of *Troy* was sometime woon by the meanes of a wooden horse; and therefore in the memoriall thereof, they thus punished a poore horse?

*As men from blood of noble Troy
descended
And by the way with Latins issue
blended.*

Or because an horse is a couragious, martiall and warlike beast; and ordinarily, men use to present unto the gods those Sacrifices which are most agreeable unto them, and sort best with them: and in that respect, they sacrifice that horse which wan the prize, unto *Mars*, because strength and victorie are well beseeeming him.

Or rather because the worke of God is firme and stable: those also be victorious who keepe their ranke and vanquish them, who make not good their ground but fly away. This beast therefore is punished for running so swift, as if celeritie were the maintenance of cowardise: to give us thereby covertly to understand, that there is no hope of safetie for them who seeke to escape by flight.

What is the reason that the first worke which the Censors go in hand with, when they be enstalled in the possession of their magistracie, is to take order upon a certaine price for the keeping and feeding of the sacred geese, and to cause the painted statues and images of the gods to be refreshed?

WHETHER is it because they would begin at the smallest things, and those which are of least dispense and difficultie?

Or in commemoration of an ancient benefit received by the meanes of these creatures, in the time of the Gaules warre: for that the geese were they who in the night season descried the Barbarians as the skaled and mounted the wall that environed the Capitol fort (where as the dogs slept) and with their gagling raised the watch?

Or because, the Censors being guardians of the greatest affaires, and having that charge and office which enjoyneth to be vigilant and carefull to preserve religion; to keepe temples and publicke edifices; to looke into the manners and behaviour of men in their order of life; they set in the first place the consideration and regard of the most watchfull creature that is: and in shewing what care they take of these geese, they incite and provoke by that example their citizens, not to be negligent and retchlesse of holy things. Moreover, for refreshing the colour of those images and statues, it is a necessarie piece of worke; for the lively red vermilion, wherewith they were woont in times past to colour the said images, soone fadeth and passeth away.

99.

What is the cause that among other priests, when one is condemned and banished, they degrade and deprive him of his priesthood, and choose another in his place: onely an Augur, though he be convicted and condemned for the greatest crimes in the world, yet they never deprive in that sort so long as he liveth? Now those priests they call

Augurs, who observe the flights of birds, and foreshewed things thereby.

Is it as some do say, because they would not have one that is no priest, to know the secret mysteries of their religion and their sacred rites?

Or because the Augur being obliged and bound by great oaths, never to reveale the secrets pertaining to religion, they would not seeme to free and absolve him from his oath by degrading him, and making him a private person.

Or rather, for that this word Augur, is not so much a name of honor and magistracie, as of arte and knowledge. And all one it were, as if they should seeme to disable a musician for being any more a musician; or a physician, that he should bee a physician no longer; or prohibit a prophet or soothsayer, to be a prophet or soothsayer: for even so they, not able to deprive him of his sufficiency, nor to take away his skill, although they bereave him of his name and title, do not subordaine another in his place: and by good reason, because they would keepe the just number of the ancient institution.

100.

What is the reason that upon the thirteenth day of August, which now is called the Ides of August, and before time the Ides of Sextilis, all servants as well maids, as men make holy-day and women that are wives love then especially to wash and cleanse their heads?

MIGHT not this be a cause, for that king *Servius* upon such a day was borne of a captive woman, and therefore slaves and bond-servants on that day have libertie to play and disport themselves? And as for washing the head; haply at the first the wenches began so to do in regard of that festivall day, and so the custome passed also unto their mistresses and other women free borne?

Why do the Romanes adorne their children with jewels pendant at their necks, which they call Bullæ?

PERADVENTURE to honor the memorie of those first wives of theirs, whom they ravished: in favour of whom they ordained many other prerogatives for the children which they had by them, and namely this among the rest?

Or it may be, for to grace the prowesse of *Tarquinius*? For reported it is that being but a verie child, in a great battell which was fought against the Latines and Tuskanes together, hee rode into the verie throng of his enemies, and engaged himselfe so farre, that being dismounted and unhorsed; yet notwithstanding he manfully withstood those who hotly charged upon him, and encouraged the Romanes to stand to it, in such sort as the enemies by them were put to plaine flight, with the losse of 16000. men whom they left dead in the place: and for a reward of this vertue and valour, received such a jewell to hang about his necke, which was given unto him by the king his father.

Or else, because in old time it was not reputed a shamfull and villanous thing, to love yoong boyes wantonly, for their beauty in the flowre of their age, if they were slaves borne, as the Comedies even at this day do testifie: but they forbare most precisely, to touch any of them who were free-borne or of gentle blood descended. To the end therefore man might not pretend ignorance in such a case, as if they knew not of what condition any boyes were, if they mette with them naked, they caused them to weare this badge and marke of nobilitie about their neckes.

Or peradventure, this might be also as a preservative unto them of their honor, continence and chastitie, as one would say, a bridle to restraints wantonnesse and incontinenzie, as being put in mind thereby to be abashed to play mens parts, before they had laid off the marks and signes of childhood. For there is no apparance or probabilitie, of that which *Varro* alledgeth, saying: That because the Aeolians in their Dialect do call Βουλη, that is to say, Counsell, Βολλα, therefore such children for a signe and

presage of wisdom and good counsel, carried this jewel, which they named *Bulla*.

But see whether it might not be in regard of the moone that they weare this device? for the figure of the moone when shee is at the full, is not round as a ball or boule, but rather flat in manner of a lentill or resembling a dish or plate; not onely on that side which appeareth unto us, but also (as *Empedocles* saith) on that part which is under it.

102.

Wherefore gave they fore-names to little infants, if they were boies upon the ninth day after their birth, but if they were girls, when they were eight daies olde?

MAY there not be a naturall reason rendered hereof, that they should impose the names sooner upon daughters than sonnes: for that females grow apace, are quickly ripe, and come betimes unto their perfection in comparison of males; but as touching those precise daies, they take them that immediatly follow the seventh: for that the seventh day after children be borne is very dangerous, as well for other occasions, as in regard of the navill-string: for that in many it will unknit and be loose againe upon the seventh day, and so long as it continueth so resolved and open, an infant resembleth a plant rather than any animall creature?

Or like as the Pythagoreans were of opinion, that of numbers the even was female and the odde, male; for that it is generative, and is more strong than the even number, because it is compound: and if a man divide these numbers into unities, the even number sheweth a void place betweene, whereas the odde, hath the middle alwaies fulfilled with one part thereof: even so in this respect they are of opinion, that the even number eight, resembleth rather the female and the even number nine, the male.

Or rather it is because of all numbers, nine is the first square comming of three, which is an odde and perfect number: and eight the first cubick, to

wit foure-square on every side like a die proceeding from two, an even number: now a man ought to be quadrat odde (as we say) and singular, yea and perfect: and a woman (no lesse than a die) sure and stedfast, a keeper of home, and not easily removed. Heereunto we must adjoyne thus much more also, that eight is a number cubick, arising from two as the base and foot: and nine is a square quadrangle having three for the base: and therefore it seemeth, that where women have two names, men have three.

103.

What is the reason, that those children who have no certaine father, they were wont to tearme Spurius?

FOR we may not thinke as the Greeks holde, and as oratours give out in their pleas, that this word *Spurius*, is derived of *Spora*, that is to say, naturall seed, for that such children are begotten by the seed of many men mingled and confounded together.

But surely this *Spurius*, is one of the ordinary fore-names that the Romans take, such as *Sextus*, *Decimus*, and *Caius*. Now these fore-names they never use to write out at full with all their letters, but marke them sometime with one letter alone, as for example, *Titus*, *Lucius*, and *Marcus*, with *T*, *L*, *M*; or with twaine, as *Spurius* and *Cneus*, with *Sp.* and *Cn.* or at most with three as *Sextus* & *Servius*, with *Sex.* and *Ser.* *Spurius* then is one of their fore-names which is noted with two letters *S.* and *P.* which signifieth asmuch, as *Sine Patre*, that is to say, without a father; for *S.* standeth for *Sine*, that is to say, without; and *P.* for *patre*, that is to say a father. And heereupon grew the error, for that *Sine patre*, and *Spurius* be written both with the same letters short, *Sp.* And yet I will not sticke to give you another reason, though it be somewhat fabulous, and carieth a greater absurdity with it: forsooth they say that the Sabines in olde time named in their language the nature or privities of a woman, *Sporios*, and thereupon afterwards as it were by way of reproch, they called him *Spurius*, who had to his mother a woman unmarried and not lawfully espoused.

104.

Why is Bacchus called with them, Liber Pater?

Is it for that he is the authour and father of all liberty unto them who have taken their wine well; for most men become audacious and are full of bolde and franke broad speech, when they be drunke or cup-shotten?

Or because he it is that ministred libations first, that is to say, those effusions and offerings of wine that are given to the gods?

Or rather (as *Alexander* said) because the Greeks called *Bacchus*, *Dionysos Eleuthereus*, that is to say, *Bacchus* the Deliverer: and they might call him so, of a city in *Bæotia*, named *Eleutheræ*.

105.

Wherefore was it not the custome among the Romans, that maidens should be wedded upon any dates of their publicke feasts; but widdowes might be remarried upon those daies?

WAS it for that (as *Varro* saith) virgins be ^[147]ill-apaid and heavie when they be first wedded; but such as were wives before, ^[148]be glad and joyfull when they marrie againe? And upon a festivall holiday there should be nothing done with an ill will or upon constraint.

Or rather, because it is for the credit and honour of young damosels, to be married in the view of the whole world; but for widdowes it is a dishonour and shame unto them, to be seene of many for to be wedded a second time: for the first marriage is lovely and desireable; the second, odious and abominable: for women, if they proceed to marrie with other men whiles their former husbands be living, are ashamed thereof; and if they be dead, they are in mourning state of widowhood: and therefore they chuse rather to be married closely and secretly in all silence, than to be accompanied with a long traine and solemnity, and to have much adoe and great stirring at their

marriage. Now it is well known that festivall holidaies divert and distract the multitude divers waies, some to this game and pastime, others to that; so as they have no leisure to go and see weddings.

Or last of all, because it was a day of publicke solemnitie, when they first ravished the Sabines daughters: an attempt that drew upon them, bloody warre, and therefore they thought it ominous and presaging evill, to suffer their virgins to wed upon such holidaies.

106.

Why doe the Romans honour and worship Fortune, by the name of Primigenia, which a man may interpret First begotten or first borne?

Is it for that (as some say) *Servius* being by chance borne of a maid-servant and a captive, had Fortune so favourable unto him, that he reigned nobly and gloriously, king at *Rome*? For most Romans are of this opinion.

Or rather, because Fortune gave unto the city of *Rome* her first originall and beginning of so mightie an empire.

Or lieth not herein some deeper cause, which we are to fetch out of the secrets of Nature and Philosophie; namely, that Fortune is the principle of all things, insomuch, as Nature consisteth by Fortune; namely, when to some things concurring casually and by chance, there is some order and dispose adjoined.

107.

What is the reason that the Romans call those who act comedies and other theatricall plaies, Histriones?

Is it for that cause, which as *Claudius Rufus* hath left in writing? for he reporteth that many yeeres ago, and namely, in those daies when *Cajus*

Sulpitius and *Licinius Stolo* were Consuls, there raigned a great pestilence at *Rome*, such a mortalitie as consumed all the stage plaiers indifferently one with another. Whereupon at their instant praier and request, there repaired out of *Tuscane* to *Rome*, many excellent and singular actours in this kinde: among whom, he who was of greatest reputation, and had caried the name longest in all theaters, for his rare gift and dexteritie that way, was called *Hister*; of whose name all other afterwards were tearmed *Histriones*.

108.

Why espoused not the Romans in mariage those women who were neere of kin unto them?

WAS it because they were desirous to amplifie and encrease their alliances, and acquire more kinsfolke, by giving their daughters in mariage to others, and by taking to wife others than their owne kinred?

Or for that they feared in such wedlock the jarres and quarrels of those who be of kin, which are able to extinguish and abolish even the verie lawes and rights of nature?

Or else, seeing as they did, how women by reason of their weaknesse and infirmitie stand in need of many helpers, they would not have men to contract mariage, nor dwell in one house with those who were neere in blood to them, to the end, that if the husband should offer wrong and injurie to his wife, her kinsfolke might succour and assist her.

109.

Why is it not lawfull for Jupiters priest, whom they name Flamen Dialis to handle or once touch meale or leaven.

FOR meale, is it not because it is an unperfect and raw kind of nourishment? for neither continueth it the same that it was, to wit, wheat, &c. nor is that

yet which it should be, namely bread: but hath lost that nature which it had before of seed, and withall hath not gotten the use of food and nourishment. And hereupon it is, that the poet calleth meale (by a Metaphor or borrowed speech) *Mylephaton*, which is as much to say, as killed and marred by the mill in grinding: and as for leaven, both it selfe is engendered of a certaine corruption of meale, and also corrupteth (in a maner) the whole lumpe of dough, wherein it is mixed: for the said dough becommeth lesse firme and fast than it was before, it hangeth not together; and in one word the leaven of the paste seemeth to be a verie putrifaction and rottennesse thereof. And verely if there be too much of the leaven put to the dough, it maketh it so sharpe and soure that it cannot be eaten, and in verie truth spoileth the meale quite.

110.

Wherefore is the said priest likewise forbidden to touch raw flesh?

Is it by this custome to withdraw him farre from eating of raw things?

Or is it for the same cause that he abhorreth and detesteth meale? for neither is it any more a living animall, nor come yet to be meat: for by boiling and roasting it groweth to such an alteration, as changeth the verie forme thereof: whereas raw flesh and newly killed is neither pure and impolluted to the eie, but hideous to see to; and besides, it hath (I wot not what) resemblance to an ougly sore or filthie ulcer.

111.

What is the reason that the Romans have expresly commaunded the same priest or Flamen of Jupiter, not onely to touch a dogge or a goat, but not so much as to name either of them?

To speake of the Goat first, is it not for detestation of his excessive lust and lecherie; and besides for his ranke and filthie savour? or because they are

afraid of him, as of a diseased creature and subject to maladies? for surely, there seemeth not to be a beast in the world so much given to the falling sicknesse, as it is; nor infecteth so soone those that either eat of the flesh or once touch it, when it is surprised with this evill. The cause whereof some say to be the streightnesse of those conduits and passages by which the spirits go and come, which oftentimes happen to be intercepted and stopped. And this they conjecture by the small and slender voice that this beast hath; & the better to continue the same, we do see ordinarily, that men likewise who be subject to this malady, grow in the end to have such a voice as in some sort resembleth the bleating of goats. Now, for the Dog, true it is haply that he is not so lecherous, nor smelleth altogether so strong and so ranke as doth the Goat; and yet some there be who say, that a Dog might not be permitted to come within the castle of *Athens*, nor to enter into the Isle of *Delos*, because forsooth he lineth bitches openly in the sight of everie man, as if bulls, boares, and stalions had their secret chambers, to do their kind with females, and did not leape and cover them in the broad field and open yard, without being abashed at the matter.

But ignorant they are of the true cause indeed: which is, for that a Dog is by nature fell, and quarelsome, given to arre and warre upon a verie small occasion: in which respect men banish them from sanctuaries, holy churches, and priviledged places, giving thereby unto poore afflicted suppliants, free accesse unto them for their safe and sure refuge. And even so verie probable it is, that this *Flamen* or priest of *Jupiter* whom they would have to be as an holy, sacred, and living image for to flie unto, should be accessible and easie to be approached unto by humble suters, and such as stand in need of him, without any thing in the way to empeach, to put backe, or to affright them: which was the cause that he had a little bed or pallet made for him, in the verie porch or entrie of his house; and that servant or slave, who could find meanes to come and fall downe at his feet, and lay hold on his knees was for that day freed from the whip, and past danger of all other punishment: say he were a prisoner with irons, and bolts at his feet that could make shift to approach neere unto this priest, he was let loose, and his gives and fetters were throwen out of the house, not at the doore, but flung over the verie rooffe thereof.

But to what purpose served all this, and what good would this have done, that he should shew himselfe so gentle, so affable, and humane, if he had a curst dog about him to keepe his doore, and to affright, chase and scarre all those away who had recourse unto him for succour. And yet so it is, that our ancients reputed not a dog to be altogether a clean creature: for first and formost we doe not find that he is consecrated or dedicated unto any of the celestial gods; but being sent unto terrestrial & infernall *Proserpina* into the quarrefires and crosse high waies to make her a supper, he seemeth to serve for an expiatorie sacrifice to divert and turne away some calamitie, or to cleanse some filthie ordure, rather than otherwise: to say nothing, that in *Lacedæmon*, they cut and slit dogs down along the mids, and so sacrifice them to *Mars* the most bloody god of all others. And the Romanes themselves upon the feast *Lupercalia*, which they celebrate in the lustrall moneth of Purification, called February, offer up a dog for a sacrifice: and therefore it is no absurditie to thinke, that those who have taken upon them to serve the most soveraigne and purest god of all others, were not without good cause forbidden to have a dog with them in the house, nor to be acquainted and familiar with him.

112.

For what cause was not the same priest of Jupiter permitted, either to touch an ivie tree, or to passe thorow a way covered over head with a vine growing to a tree, and spreading her branches from it?

Is not this like unto these precepts of *Phythagoras*: Eat not your meat from a chaire: Sit not upon a measure called *Chænix*: Neither step thou over a broome or ^[149]besoome. For surely none of the Pythagoreans feared any of these things, or made scruple to doe, as these words in outward shew, and in their litterall sense do pretend: but under such speeches they did covertly and figuratively forbid somewhat else: even so this precept: Go not under a vine, is to be referred unto wine, and implieth this much; that it is not lawfull for the said Priest to be drunke; for such as over drinke themselves, have the wine above their heads, and under it they are depressed and weighed downe, whereas men and priests especially ought to be evermore

superiors and commanders of this pleasure, and in no wise to be subject unto it. And thus much of the vine.

As for the ivie, is it not for that it is a plant that beareth no fruit, nor any thing good for mans use: and moreover is so weake, as by reason of that feeblenesse it is not able to sustaine it selfe, but had need of other trees to support and beare it up: and besides, with the coole shadowe that it yeelds, and the greene leaves alwaies to be seene, it dazeleth, and as it were bewitcheth the eies of many that looke upon it: for which causes, men thought that they ought not to nourish or entertaine it about an house, because it bringeth no profit; nor suffer it to claspe about any thing, considering it is so hurtfull unto plants that admit it to creepe upon them, whiles it sticketh fast in the ground: and therefore banished it is from the temples and sacrifices of the celestiall gods, and their priests are debarred from using it: neither shall a man ever see in the sacrifices or divine worship of *Juno* at *Athens*, nor of *Venus* at *Thebes*, any wilde ivie brought out of the woods. Mary at the sacrifices and services of *Bacchus*, which are performed in the night and darknesse, it is used.

Or may not this be a covert and figurative prohibition, of such blind dances and fooleries in the night, as these be, which are practised by the priests of *Bacchus*? for those women which are transported with these furious motions of *Bacchus*, runne immediately upon the ivie, and catching it in their hands, plucke it in pieces, or else chew it betweene their teeth; in so much as they speake not altogether absurdly, who say, that this ivie hath in it a certaine spirit that stirreth and mooveth to madnesse; turneth mens mindes to furie; driveth them to extasies; troubleth and tormenteth them; and in one word maketh them drunke withoute wine, and doth great pleasure unto them, who are otherwise disposed and enclined of themselves to such fanaticall ravishments of their wit and understanding.

What is the reason that these Priests and Flamins of Jupiter were not allowed, either to take upon them, or to sue for any government of State, but in regard that they be not capable of such dignities, for

honour sake and in some sort to make some recompense for that defect, they have an usher or verger before them carrying a knitch of rods, yea and a curall chaire of estate to sit upon?

Is it for the same cause, that as in some cities of *Greece*, the sacerdotall dignitie was equivalent to the royall majestie of a king, so they would not chuse for their priests, meane persons and such as came next to hand.

Or rather, because Priests having their functions determinate and certaine, and the kings, undeterminate and uncertaine, it was not possible, that when the occasions and times of both concurred together at one instant, one and the same person should be sufficient for both: for it could not otherwise be, but many times when both charges pressed upon him and urged him at ones, he should pretermitt the one or the other, and by that meanes one while offend and fault in religion toward God, and anotherwhile do hurt unto citizens and subjects.

Or else, considering, that in governments among men, they saw that there was otherwhiles no lesse necessitie than authority; and that he who is to rule a people (as *Hippocrates* said of a physician, who seeth many evill things, yea and handleth many also) from the harmes of other men, reapeth griefe and sorrow of his owne: they thought it not in policy good, that any one should sacrifice unto the gods, or have the charge and superintendence of sacred things; who had been either present or president at the judgements and condemnations to death of his owne citizens; yea and otherwhiles of his owne kinsfolke and allies, like as it befell sometime to *Brutus*.

THE END.

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Notes

[1]

Livy, x. 47, 7, *Ep.* 11; Val. Max., I. viii. 2; Strabo, xii. p. 567; Ovid, *F.* i. 291; *M.*, xv. 622; Oros, iii. 22; Lactant., *Inst.*, II. vii. 13; Arnob., vii. 44;

Augustin, *C. D.*, iii. 17; Aurel. Vict., *De V. Ill.*, 25; Dion., v. 13; Pliny, *N. H.*, 29, 16.

[2]

Schrader, *Prehistoric Antiquities of the Aryan Peoples*, p. 162.

[3]

Religionsgeschichte, ii. 203.

[4]

Meyer, *Indogermanische Mythen*, ii. p. 612.

[5]

Marquardt, *Römische Staatsverwaltung*², iii. p. 2.

[6]

Mommsen, *History of Rome*, i. 173.

[7]

Ibid.; cf. Roscher, *Lexikon*, s.v. *Ianus*.

[8]

Rochholz, *Deutscher Glaube*, ii. 136.

[9]

Wuttke, *Deutscher Volksaberglaube*², § 57.

[10]

Ibid., § 177, 388.

[11]

Ibid., § 395; cf. Pliny, *N. H.*, 28, 86.

[12]

Marquardt, iii. 6.

[13]

De la Saussaye, ii. 203.

[14]

Marquardt, p. 7.

[15]

De la Saussaye, i. 53.

[16]

Marquardt, p. 6.

[17]

Folk-Lore, vol. ii. p. 235.

[18]

Marquardt, p. 25.

[19]

"Chez les Chinois *Ti* est bien et uniquement la terre ... qui n'a aucun personnalité, aucun aspect anthropologique."—De Rialle, *Mythologie Comparée*, i. 235. As in Rome, so in China, though the sky advanced to the rank of a spirit, the earth remained a fetich.

[20]

Preller, *R. M.*, i. 1 and 2, points out that Italian mythology is "quite different" from the Greek; that it is only in "a certain sense" that there can be said to be a Roman mythology; that it is a very different thing from Greek, Hindoo, Persian, Teutonic, and Scandinavian mythology; that the Romans had not advanced far in personifying and individualising their gods, and consequently could not develop much mythology. Finally, Italian religion was "far less widely removed" from the primitive Aryan belief than Greek religion and mythology were.

[21]

Livy, ii. 21; Dion., vi. i.

[22]

Mommsen, *Hist. of Rome*, i. 482 ff.

[23]

According to Schwegler, *Röm. Gesch.*, i. 354-383, Εὐάνδρος is simply Greek for *Faunus* = *Favinus*, "the benevolent" or "good" god. Cf. *Fauna* = *Bona Dea*.

[24]

"Rapi ... similatur virgo ex gremio matris ... cum ad virum trahitur, quod videlicet ea res feliciter Romulo cessit."—Festus, s.v. *rapi*.

[25]

E.g., among the Esthonians, Finns, Wotjaks, Mordwins, Vedic Hindoos, and Bohemians.

[26]

For the use of the sword, axe, or dagger to keep off evil spirits from a wedding, see Schroeder, *Hochzeitsbräuche der Ester*, 99-102.

[27]

For the sacredness of the head especially, see the *Golden Bough*, i. 187-193.

[28]

The myth, as given by Plutarch, is to be found also in Livy, i. 9; Serv. ad *Æn.*, vi. 55; and in Varro, quoted by Festus, p. 351. The word occurs in Martial, i. 35. 6 and 7; iii. 93. 25; xii. 42. 4, 95. 5 (Friedländer says nothing), and Catullus, lxi. 134 (Robinson Ellis has nothing to say).

[29]

Hartley, *Science of Fairy Tales*, pp. 279-281, for examples. The tale of Servius is also told by Ovid, *F.*, vi. 577.

[30]

It is interesting to note that two hundred years ago Boxhorn, in commenting on this passage of Plutarch, laid down a fundamental proposition of the science of folk-lore:—"Mortales cum inquirerent in causas rerum, nec invenirent, pro libitu suo verisimiles sunt commenti. Sic ut fabulæ proponerentur tanquam causæ rerum, cum res ipsæ essent causæ fabularum." See his edition of the *Roman Questions*, printed in vol. v. of the *Thesaurus* of Grævius (Lugd., Batavor, 1696).

[31]

Ethnology in Folk-Lore, pp. 120 ff. Mr. Gomme, however, argues that the fear of dead kindred was borrowed by the Aryans from the non-Aryan inhabitants of Europe. But why may not the pro-ethnic Aryans, as well as other savages, have had, at one stage of their development, a fear of dead kindred?

[32]

My authorities for the customs quoted in the next few pages are (unless special references are given) Wuttke, *Deutsche Volksaberglaube*, §§ 725-756; Rochholz, *Deutscher Glaube und Brauch*, ii. pp. 170-173; and De Rialle, *Mythologie Comparée*, i. p. 125.

[33]

Weinhold, *Altnord. Leben*, 476.

[34]

The Lares are thus represented on a coin of the gens Cæsia. See Cohen, *Méd. Cons.*, pl. viii, *Cæsia*.

[35]

Ovid, *F.*, v. 129-147.

[36]

De la Saussaye, *Religionsgeschichte*, i. 281.

[37]

Wuttke, § 755.

[38]

Waldron's *Isle of Man*, p. 103.

[39]

Encyc. Britan., art. "Sacrifice."

[40]

Frazer, *G. B.*, i. 239.

[41]

Daoine Shie or *Sluagh Maith*.

[42]

Frazer, i. 122.

[43]

De Rialle, i. 190.

[44]

See *The Secret Commonwealth* by Mr. Robert Kirk, Minister of Aberfoyle, 1691.

[45]

See Saupe's edition of the *Indiculus*, p. 9.

[46]

Servius on Georg., i. 302, and Prudent, *c. Symm.*, ii. 444.

[47]

Frazer, ii. 332.

[48]

Preller, *R. M.*³, ii. 198.

[49]

Cic. *de Div.*, i. 18, 36; Plut. *Ti. Gracch.*, i. A similar story is related of D. Laelius, *Jul. Op. seq.* 58.

[50]

H. N., xxix. 72.

[51]

C. I. L., i. 603.

[52]

We have no direct evidence of this, but we may infer it from the analogous case of *Dius Fidius*:—"Qui per *Dium Fidium* iurare vult, prodire solet in compluvium."—Non. Marc., p. 494, quoting Varro. The temples of *Dius Fidius* had a hole specially made in the roof ("*perforatum tectum*," Varro, *L. L.* v. 66), under which one might swear. Probably the temples of *Hercules* were similarly provided; certainly those of *Terminus* were ("*exiguum templi tecta foramen habent*."—Ov. *F.* ii. 672).

[53]

Reifferscheid, in the *Annali dell' Istituto* for 1867, p. 352 ff., identifies *Hercules* with the *genius Jovis*. But, in the first place, this seems to me the wrong inference from his own facts, which all have exclusively to do with the *genii virorum*. Next, the *genius Jovis* is not known before B.C. 58. Schwegler, before Reifferscheid, noticed that in Gellius, xi. 6. 1, "*der römische Hercules erscheint als identisch mit dem genius der Männer*."—*R. G.*, i. 367 n.

[54]

Roscher's arguments to show that *Juno* is the moon are not satisfactory. He assumes without proof that *Juno* was always *Lucina* (whereas *Lucina* was an independent spirit worshipped in woods, *Lexikon*, pp. 583 and 602), that *Lucina* was the moon (whereas she is the spirit that brings children to light, and is not = *Luna*), that the Italians connected the moon with child-birth (which, as Birt says, lacks proof), that the name *Juno* indicates a light-giving deity (whereas, though from the root **Div*, it does

not imply the giving of light any more than *deus* does, which is applied to the *di manes*, the *di indigetes*, *dea bona*, *dea dia*, &c.). The arguments drawn by Roscher from works of art are untrustworthy, because borrowing is specially probable in their case. Finally, the hypothesis of a Græco-Italian period, on which Roscher relies to prove that Juno = Hera = the moon, is now discredited.

[55]

In B.C. 361 an Aius Locutius was produced (Liv. v. 32. 6, 50. 6, 52. 11); in 211 a Rediculus Tutanus (Festus s.v.); in or after 269 a spirit of silver coin, Argentinus (August., *C. D.* iv. 21 and 28); but no spirit was forthcoming for gold coin, which was first struck in B.C. 217. See further Roscher's *Lexikon*, s.v. *Indigitamenta*.

[56]

So called "quod mare effuso semine liberat."—Augustin, *C. D.* vii. 2.

[57]

Finally, with regard to *Matuta*, the very remarkable fact recorded in *Romane Questions*, 17, that people prayed to her not for any blessings to their own children, but for their nephews only (brothers' or sisters' children), immediately suggests that we have here an indication that the Nair type of family was once known in Italy. But the indication, being isolated, has perhaps not much value.

[58]

She occurs in the following series:—Fluvionia, Mena, Vitumnus, Sentinus, Alemona, Nova, Decima, Partula, Carmenta, Lucina, for which see S. August., *C. D.* vii. 3; Tertull., *De An.* 37, and *Ad Nat.* ii. 11.

[59]

Liv. v. 47; Dion. Hal. i. 32; Serv. on *Æn.* viii. 337; W. Becker, *Handb. d. röm. Altert.*, i. 137.

[60]

Derived probably from Varro, *R. R.* II. xi. 5.

[61]

Livy, i. 45. 3; Dionys., iv. 25; Aur. Vict., *De Vir. Ill.*, vii. 9.

[62]

As Preller does, *R. M.*³, i. 313.

[63]

e.g., *C. I. L.* vi. 656, 658, &c.

[64]

C. I. L., vii. 451.

[65]

Grimm, *D. M.*⁴, iii. 104; *cf.* Gummere, *Germanic Origins*, 383. "Special influence over cattle is ascribed to wood-spirits" (*Golden Bough*, i. 105).

[66]

Gummere, p. 387; *cf.* Bugge, *Studien*, p. 393 *ff.*

[67]

Golden Bough, i. 187 *ff.*

[68]

Ibid., 188. The date of the rite was 13th August; *cf.* Auson., *De Fer. Rom.*, 6; Martial, 12, 67, 2. The asylum for runaway slaves afforded by the temple finds a folk-lore explanation in a folk-etymology. "Ædem Dianæ dedicaverit in Aventino, cuius tutelæ sint cervi, a quo celeritate fugitivos vocent cervos" (Festus, p. 343^a, 7, s.v. *Servorum dies*). Birt (Roscher's *Lexikon*, i. 1008) seems to take this explanation seriously; but the temple on the Aventine was precisely the temple in which the goddess of *cervi* was not worshipped. Possibly the right of asylum was conferred on the temple as part of the political changes brought about by the formation of the Latin confederacy, for this temple was the religious centre of the Latin alliance, "Commune Latinorum Dianæ templum" (Varro, *L. L.* v. 43).

Hence, then, the folk-story that Servius Tullius, "natus servus" (Festus, *l.c.*), built the temple and gave it the right of asylum.

[69]

For the full list see Marquardt, 328-331.

[70]

Golden Bough, i. 37 ff.

[71]

Ibid., i. 39.

[72]

Golden Bough, ch. ii.

[73]

*Röm. Mythol.*³, i. 201.

[74]

Kämpfer, *History of Japan*, quoted by Mr. Frazer, i. 110.

[75]

Kämpfer, *History of Japan*, quoted by Mr. Fraser, i. 110.

[76]

With *Q. R.*, 111, *cf. Golden Bough*, i. 207; with *Q. R.*, 112, *cf. G. B.*, i. 183; and generally see i. 117.

[77]

G. B., i. 130.

[78]

For instances see Hartland, *Science of Fairy Tales*, pp. 272-274.

[79]

Momms., *R. H.*, i. 25.

[80]

Ibid., i. 60.

[81]

G. B., i. 170. I may point out that in some parts of Europe these taboos still survive. For six weeks after delivery, the young mother is forbidden to enter a strange house, or go shopping, or draw water from a well, or walk over a sowed field (Grimm, *D. M.*⁴, iii. pp. 435, 464, Nos. 35, 844, 845). The Esthonians also regard a new-born child as tabooed, and indirect contact with it as dangerous (*Ibid.*, p. 488, No. 28). For the death-dealing qualities of women, *cf.* Burchard von Worms, *Samlung der Decrete*, Coln, 1548, p. 201*a* (quoted by Grimm, iii. 410). Amongst the Eskimo, as amongst the Germans, the young mother is forbidden to leave the house for six weeks (Reclus, *Primitive Folk*, 36); she is also tabooed by the Badagas of the Neilgherrie Hills (*Ibid.*, 192).

[82]

Hartland, *S. of F. T.*, p. 93 *ff.* for instances.

[83]

"Make of it an image in his likeness (*i.e.*, of Namtar, the plague); apply (the image) to the living flesh of his body (*i.e.*, of the sick man). May the malevolent Namtar who possesses him pass into the image" (Lenormant, *Chaldaean Magic*, p. 51). The Buddhists of Ceylon cure disease in exactly the same way (J. Roberts, *Oriental Illustrations of Scripture*, p. 171).

[84]

Cf. C. F. Gordon Cumming, *Two Happy Years in Ceylon*, i. p. 278, "The astrologer is called in to preside at baby's 'rice feast,' when some grains of rice are first placed in its month. He selects for the little one a name which is compounded from the name of the ruling planet of that moment. This name he tells only to the father, who whispers it low in baby's ear—no one else must know it, and, like the Chinese 'infantile name,' this 'rice name' is never used lest sorcerers should hear it and be able to work malignant spells."

[85]

For instances see *Folk Lore*, iii. 137. The Romans themselves fettered the image of Saturnus (Macrob., i. 8. 5; Stat. Silv., i. 6. 4; Arnob., iv. 24; Minuc. Fel., c. 22. 5).

[86]

Chemnitzer Rockenphilosophie, 16 and 325 (Grimm, *D. M.*⁴, iii. 435 and 445).

[87]

The classical references are: Festus, p. 143 and 385; Dionys., i. 38; Ov., *F.*, i. 56, iii. 791, v. 62 ff.; Varro, *L. L.*, vii. 44; Paul. Diac., p. 15; Lact, I. i. 21. 6; Macrob., i. 5. 10, and 11. 47; Prudent. *C. Symmach.*, ii. 295; Cicero *pro Roscio Am.*, 35. 100; Catull., xvii. 8. 23; Non. Marc., p. 358b.; Liv. i. 21, iv. 12. The modern literature: first and foremost and final, Mannhardt, *Wald- und Feldkulte*, p. 265 ff., whose explanation is adopted in Roscher's *Lexikon*; further, Preller, *Röm. M.*³, ii. 135 ff.; Marquardt, 190 ff.; Grimm, *D. M.*, 733, n. 4. The meaning of the word *Argei* has received no satisfactory explanation yet. The number of the images is accounted for by the fact that each of the twenty-four quarters of ancient Rome required rain for its crops.

[88]

See *Rhein. Museum*, 1867, p. 129.

[89]

Macrob., i. 10, 11 ff.; Gell., *N. A.*, vii. (vi.) 7; Plut., *Rom.*, 4. 5; Lactant., i. 20. 5.

[90]

"Exuuntur etiam vestibus populo flagitante meretrices, quæ tunc (*i.e.*, at the Floralia) mimarum funguntur officio" (Lact. *l.c.*). Cf. Val. Max., 2. 10. 8; Senec., *Ep.*, 97. 7; Mart., 1 *præf.*; Ov., *F.*, iv. 946, v. 183; Tertull., *De Spect.*, 17; Min. Felix, 25. 8; Augustin, *C. D.*, ii. 27.

[91]

The Arval Brothers wore a harvest-crown, *vittis spiceis coronati*, *C. I. L.*, vi. 2104^a 16. They preserved a sheaf of corn (corn-baby, mother, &c.) from the previous year's harvest; this is the *fruges aridas* of *C. I. L.*, l.c. 6. They consecrated the old corn, the green corn of the new year, and a loaf, *fruges aridas et virides contigerunt et panes laureatos*, l.c.; and they sacramentally "ate the god," *fruges libatas*.

[92]

Mommsen, *Die echte und die falsche Acca Larentia*, 3 A. 3.

[93]

Jordan, *Krit. Beitr.*, 75, compares Italian *atta*, "mother" and Greek ἄκκῶ?

[94]

"E nos Lases iuvate" = Age nos, Lares, iuvate.

[95]

The classical references on this subject of beans are: Diog. Laert., viii. 24 and 34 (quoting Aristotle, ἦτοι ὅτι αἰδοίοις εἰσὶν ὅμοιοι), Gellius, *N. A.*, iv. 11; Cic., *de Div.*, i. 30, ii. 58; Pliny *N. H.*, xviii. 12; Didymus in *Geopon.*, ii. 58; Sext. Emp., *Pyrrh. Hyp.*, iii. 224; Iambl., *Vit. Pyth.*, 109 and *Protrept. extr. Symb.*, 37; Anon. (e. Photio), *Vit. Pyth.*, 7; Pseudo-Orig., *Philos.* ii.; Apollon. Dysc., *Mirab. Hist.*, c. 46; Eudocia, p. 368; Suidas, s. v. Συμβ. Πυθαγ.; Eustath., *N.*, p. 948.

[96]

For its meaning as a symbol, see Westropp, *Primitive Symbolism*, p. 28.

[97]

R. Q., 1, 2, 6, 7, 8, 29, 30, 31, 65, 86, 87, 105, 108.

[98]

The custom is also testified to by Serv. on Virg., *Ecl.*, viii. 29; Isid., *Orig.*, ix. 8; Plaut., *Cas.*, IV. iv. 1; Catull., lxi. 159; Lucan, *Phars.*, ii. 358.

[99]

Ueber die römische Ehe, p. 360.

[100]

Reinsberg-Düringsfeld, *Hochzeitsbuch*, p. 57.

[101]

Ibid., 84.

[102]

Ibid., 251.

[103]

Weinhold, *Die deutschen Frauen*², i. 410.

[104]

Haas in Weber's *Ind. Stud.*, v. 324, 359, 373.

[105]

V. Schroeder, *Hochzeitsbräuche der Esten*, pp. 88 ff.

[106]

Plutarch, *R. Q.*, 31. Cf. Festus, "In pelle lanata nova nupta considerare solet."

[107]

Serv. ad *Æn.*, iv. 374.

[108]

Διὸς κώδιον, Suidas, s.v.

[109]

De Witte, *Descr. des Antiq. de l'Hôtel Lambert*, p. 68, pl. 22 (reproduced in Daremberg et Saglio, *Dict.*, s.v., and in Duruy, *Hist. des Grecs*, i. 786). The right interpretation of this scene was first given by Lenormant, *Contemporary Review*, 1880, p. 137.

[110]

The Roman, at this crisis of his personal history, placed himself under the protection of a series of Di Indigetes, *e.g.*, Subigus, Prema, Pertunda (S. August., *C. D.*, vi. 9).

[111]

The Latin phrase is "Aqua et igni accipi." The custom is testified to by *Dion. Hal.*, ii. 30; Varro, *L. L.*, v. 61; Serv. ad *Æn.*, iv. 167; Ov., *F.*, iv. 787; Fest. s.v. Scæv., *Dig.*, 24. 1. 66; Stat., *Silv.* I. ii. 3; Val. Fl., *Argon.*, viii. 244.

[112]

Weinhold, i. 375 and 408.

[113]

Schrøeder, 128 *ff.*

[114]

Reinsb.-Düringsfeld, 84.

[115]

"Aqua aspergebatur nova nupta," s.v. Facem in nuptiis.

[116]

Reinsb.-Düringsfeld, 59.

[117]

Haas, 358.

[118]

Reinsb.-Düringsfeld, 73.

[119]

Ibid., 92.

[120]

Ibid., 63.

[121]

Ibid., 59.

[122]

Cat., lxi, 81-86, 110, 119; Claud., *Fescenn.*, 106; *De Rapt. Pros.*, ii. 335.

[123]

Haas, 327.

[124]

Schrøeder, 87.

[125]

F. B. Jevons, *Kin and Custom*, in the "Journal of Philology," xvi. pp. 87 *ff.*

[126]

Moore, *Indian Appeals*, ii. 75.

[127]

For which see *R. Q.* 6.

[128]

In Chambers's *Encyclopædia*, s.v. "Family."

[129]

In Chambers's *Encyclopædia*, s.v. "Names."

[130]

This custom also crops out in fairy tales. See Mr. J. Jacob's *Indian Fairy Tales*, p. 28.

[131]

Or, nuptiall.

[132]

Daughters husband.

[133]

Wives father.

[134]

This may seeme to have some reference to the former question.

[135]

Κρόνος.

[136]

Χρόνος.

[137]

Or Matuta.

[138]

By *Prolepsis*, meaning the place where afterwards Rome stood.

[139]

Or Phaulius.

[140]

That is to say, *Kalends*, *Nones*, & *Ides*.

[141]

ἔπέτειον οἶνον, or, a certeine quantitie of wine yeerely, as some interpret it.

[142]

χρηστους.

[143]

μηδένα χρηστὸν

[144]

ἀριστερὸς, sinistra.

[145]

I suspect this place to be corrupt in the originall.

[146]

Or about a dog by the Hippocoontides.

[147]

Or, feele paine: alluding haply *Ad rupturam Hymenis*.

[148]

Or take delight and pleasure.

[149]

σάρον.

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